

THE
WORKS
OF
RICHARD HURD, D. D.
LORD BISHOP OF WORCESTER.
IN EIGHT VOLUMES.
VOLUME VIII

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VOL. IV.

SERMONS ON PUBLIC OCCASIONS.
CHARGES TO THE CLERGY.
AND
AN APPENDIX:
CONTAINING
CONTROVERSIAL TRACTS
ON DIFFERENT SUBJECTS AND OCCASIONS.

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THREE SERMONS

PREACHED ON

PUBLIC OCCASIONS.

A
SERMON
PREACHED BEFORE
THE RIGHT HONOURABLE
THE HOUSE OF LORDS,
IN THE
ABBAY CHURCH OF WESTMINSTER,
ON FRIDAY, DECEMBER 13, 1776,
BEING

The Day appointed by AUTHORITY for a GENERAL FAST, on Account of the AMERICAN REBELLION.

Die Veneris, 13^o Decembris 14, 1776, Post Meridiem.

ORDERED, by the Lords Spiritual and Temporal, in Parliament assembled, That the Thanks of this House be, and are hereby, given to the Lord Bishop of Lichfield and Coventry, for the Sermon by him preached before this House, this day, in the Abbey Church, Westminster; and he is hereby desired to cause the same to be forthwith printed and published.

ASHLEY COWPER,
Cler. Parliamentor.

SERMON, &c.

PSALM CXIX. v. 59.

I called mine own ways to remembrance: and turned my feet unto thy testimonies.

THE great object of this day's solemnity, is, *to humble ourselves before Almighty God, in order to obtain pardon of our sins.* But this end requires, that we enter into an earnest recollection of our ways, and stedfastly resolve to *forsake* all those, which we shall find reason to condemn.

Such is the example set us by the royal author of the text: And, though it might claim our respect at all times, it especially does so, at this juncture, when our sins have brought down upon us the heaviest of those judgments, with which it pleases God to visit, and, if it may be, to reclaim, offending nations.

And the hand of Heaven is not the less, but the more visible in this calamity, for it's befalling us, when the acknowledged power of our country seemed to secure it against all resistance, both within and without; and when it was not to be expected, from the usual course of human affairs, that an attempt of this nature, so unprovoked, at once, and so hazardous, would be made. Something there must have been, much amiss in that people, against whom the Almighty permits the sword of civil fury, under *such* circumstances, to be drawn.

From what *causes*, and by what *steps*, this portentous mischief hath grown up to it's present size and terror, it is not needful, and may not be proper, for me to say. For which of us is unacquainted with these things? And how ill

suited to the modest piety of this day would be, the vehement accusation of others, or the solicitous justification of ourselves!

Yet, among the various pretences, which have served to pervert the judgments of many, ONE is so strange, and of so pernicious a tendency, were it to be generally admitted, that a word or two cannot be misemployed in the censure of it.

It is in the order of things, that they who, for any purpose, wish to draw the people into a scheme of resistance to an established government, should labour to impress them, first of all, with a persuasion of their being ill governed. Acts of tyranny and oppression are, therefore, sought out with diligence; and invented, when they cannot be found: And the credulous multitude have but too easily, at all times, lent an ear to such charges.

But it is quite new, and beyond measure extravagant, to tell us, That, although there be no considerable abuse of the government, as it now stands, we are bound in conscience to resist it, because such abuse is possible, and because a more desirable form of government may be conceived. And yet, to the disgrace of an age, calling itself philosophical, such sophistry has passed, not on the multitude only, but, as it is said, on wise men.

On the other hand, it would be unjust to say, that speculations on the nature and end of government are, therefore, useless or even hurtful, because we see them, in the present instance, so egregiously misapplied. Theories on government, when framed by sober and thinking men, cannot but be of great importance, as serving to remind both the governors and governed of their respective interests and duties; nay, and as tending ultimately to improve establishments themselves; but by degrees only, and by constitutional means. Our own excellent establishment has, in this way, been much improved: And we surely owe our thanks to those theorists, whose generous labours have contributed to this end.

But to apply these theories, how reasonable soever in themselves, directly to the correction of established governments, and to insist, that force may, or should, be called in to realize these visions, is a sort of fanaticism, which, if suffered to take it's course, would introduce the utmost confusion into

human affairs; would be constantly disturbing, and must, in the end, subvert, the best government, that ever did, or ever can, subsist in the world.

Thus much, then, in reproof of so wild and destructive a principle, I could not help saying in the entrance of a discourse, which, to suit the occasion, should have little of altercation and dispute; and which, agreeably to the text, must turn chiefly on the great duties of Recollection and Repentance.

But what, you will say, “Is a criminal enterprize, like this, which occasions our present meeting, to be charged on those only, against whom it is directed? And must we be the worst of sinners, because there are those of our fellow-subjects, who have taken up arms against their Sovereign?”

Far be it from me to affirm either of these things! Yet he was a wise man, who said, that, *when a man’s ways please the Lord, he maketh even his enemies to be at peace with him*^[1]: And I think it clear from the tenour of scripture, and even from our own experience, that no national distress is ever inflicted, before it is deserved.

And the conviction of this sad truth is ground enough for us to turn ourselves to the great work of Repentance; which does not require us to form discouraging, or indeed any, comparisons between ourselves and the enemies we contend with, but to call to mind that we have, indeed, merited the evil, we suffer, whether brought upon us immediately by our own sins, or those of other men. A civil war is the most dreadful of those instruments, by which the moral government of God is administered in this world. And, *when such a judgement is in the earth*, be our comparative merits what they may, we shall do well to *learn righteousness*^[2].

But, after all, who, or what are we, that we should talk of *merits*, or scruple to place this alarming visitation of Heaven to the account of our sins?—Merciful God! Do thou incline our hearts to follow the example of thy servant, David, this day, in *calling our own ways to remembrance*, and we shall presently see what need there is for us to *turn our feet unto thy testimonies*!

1. To begin from that point, whence all true worth and goodness, proceeds, I mean, from RELIGION.

There is no people on the face of the earth, more deeply indebted to Providence for blessings of all sorts, spiritual as well as temporal, than we of this Christian and Protestant nation. But has our pious gratitude kept pace with these obligations?

Infinite are the benefits, that descend upon us from our WELL-REFORMED Religion, and from the watchful care of Heaven in the support and protection of it. Yet who reflects on these things? Should we so much as hear a word on the subject, if it did not suit the purpose, sometimes, of peevish men and parties among us, to revive the memory of it? Have we even a decent regard for the honour of our great Reformers? And is not the little zeal, we have left for Protestantism itself, spent in idle cavils at the stupendous work, atchieved by their hands?

But why speak I of *reformed* religion? Is there any of us, almost, who is animated with that zeal for CHRISTIANITY itself, which glowed in the breasts of our fathers?

Too many proclaim their disbelief of it, nay, their utter contempt of all that is called Religion; and yet appear to give no offence (where, methinks, it should be taken) by their manifest, their avowed, their ostentatious impieties. Is it not even growing into a maxim, in certain quarters, that Religion, or Irreligion, is a matter of no moment in the characters of men, and that none, but a bigot, is affected by that distinction?

It is true, the wiser, and, in every sense of the word, better, part of the public have an abhorrence of this profligacy. They profess, and without doubt entertain, a respect for the authority of their divine religion. Yet who has not observed, that more than a few of these reduce that authority to just nothing, and, in a sort of philosophical delirium, are for setting up their Reason, that is, their *own* authority, in it's stead?

Even we, of the Clergy, have we not some need to be put in mind of *doing our first works*, and of returning to *our first love*^[3]? Has not the contagion of the times sicklied over the complexion of even *our* zeal and charity? while

we neither repel the enemies of the faith with that vigour, nor confirm the faithful themselves with that vigilance, which did so much honour to our predecessors in the sacred ministry.

But to come to plain *practical Religion*, as evidenced in our churches, and houses, and in the offices of common life.

How few are there, in comparison, who make a conscience of serving God, either in public, or in private? Is there so much as the air of piety in numberless families, even on that day, which by God and man is set apart for the duties of it? Nay, is not that day, I had almost said, in preference to others, prophaned by every sort of amusement and dissipation? As if there was a full purpose to shake off even that small appearance of religion, which the Lord's day has hitherto, and but barely, kept up. So little do we retain of that habitual seriousness, that awful sense of God, and of our dependence upon him, in which the essence of the religious character consists!

2. And, if such be the state of religion among us, who will wonder, that the MORAL VIRTUES, which have no firm abode in the Godless mind, are deserting us so fast? Who can think it strange, that oaths have lost their power? And that the most solemn engagements, even those contracted at the altar itself, are falling apace, or rather are *fallen* with many, into contempt?

Our *natural* appetites, indeed, are impatient for their respective gratifications; and the lower classes of men, uneducated and undisciplined, are, at all times, too generally enslaved by them. But an overflow of wealth, and, it's consequence, ingenious Luxury, has now made our *fantastic* wants, as clamorous, as the natural; and the rage, with which the objects of them, or what we call polite and elegant pleasures and accommodations, are pursued in the higher ranks of life, discovers an impotency of mind, equal to that of the lowest vulgar, and more ruinous in its effects. For, whence is it, else, that bankruptcies are so frequent? that every species of fraud and rapine is hazarded? that a lust for gaming is grown epidemical and uncontrollable? that the ruin of noble and opulent families surprises nobody? that even suicide is the crime of almost every day, nay and justified, too, as well as committed?

If horrors, like these, admit of aggravation, it is, that they meet us in a country, where the religion of Jesus is taught in it's purity, and, as yet, is publicly professed; in a country, that wants no means of knowing it's duty, and, among it's other motives to the practice of it, has one, as rare as it is valuable, I mean, The best example in the highest place.

3. In this relaxed state of *private morals*, it is easy to guess what must be the tone of our CIVIL or POLITICAL virtues.

Vice is never so shameless, as when it pretends to public spirit. Yet this effrontery is so common, that it scandalizes nobody. If, indeed, noise and clamour and violence; if an affected tumour of words, breaking out in a loud defiance of dignities; if intemperate invectives against the most respected characters, and a contempt of all that wears the face of authority among us——were proofs of a just concern for the common weal; there would be no want of this virtue.

But who sees not, that true patriotism dares not allow itself in these liberties? that, if, in pursuit of a favourite object, it goes, occasionally, some lengths, scarce justifiable itself, it never fails, however, to stop at a certain point, and to respect, at least, the firm immoveable barriers of the Constitution? But has such been the modesty of our times? Let every one judge for himself. And, for the rest, I wish it had not appeared of late, that such a spirit of rapine and corruption prevails, both at home and abroad, as threatens the subversion of all our public interests;—a spirit! which neither the vigilance of parliament, for the severity of public justice, hath been able to controul.

I PASS RAPIDLY over these things, and omit a thousand others, that might be mentioned, because I would rather suggest matter to your own reflexions, than enlarge on so unwelcome a subject, myself. Besides, I know what is commonly thought of such representations. Some will treat them, as decent words, on this occasion; others, as charges much aggravated, if not groundless; even, on many well-intentioned men an old and oft-repeated complaint will make, it is possible, but a slight impression.

Still, it is *our* duty to speak plainly, on such a day, as this; and if we speak truly too, it is very clear what must be the duty of our *hearers*. Reason

stands aghast at the sight of an “unprincipled, immoral, incorrigible” publick: And the word of God abounds in such threats and denunciations, as must strike terror into the heart of every Believer. And, although Repentance may not ensure success in the great contest, now depending, (for the All-wise Disposer of events may see fit to decree otherwise); yet the likeliest method we can take to procure that success will be, by rendering ourselves somewhat less unworthy of it, than, assuredly, we now are. At all events, an amendment of life will recommend us to the favour of God, and must therefore be useful, indeed is the only thing that, in the end, can be truly so, to us.

Let us then (every one for himself) try what Repentance can do, under this conviction of a too general depravity, and in this hour of national distress. One natural effect of it will be, A readiness to submit ourselves to the authority of Government in all those just measures, which it may see fit to take in the present emergency, and to give the utmost effect to them by our entire agreement and unanimity.

And would to God, we had always been of this mind!—But, let us, at length, resolve to be so. Then may we hope, with the divine blessing (which we have supplicated this day) on his Majesty’s arms and councils, that this unnatural Rebellion will be soon composed; the just rights of the nation restored; and a way opened for the re-establishment of *law* and *order* in those miserably distracted provinces, which have now learned, from experience, the just value of both.

To conclude; a pious and Christian use of the present occasion, in putting up our vows to heaven for the return of the public tranquillity, and in forsaking, every one of us, the error of our ways, will perfectly correspond to the views of our most religious and gracious Sovereign; who, in calling upon us to join with him in this solemn fast, in the midst of his successes, demonstrates, that his trust is not in his own strength, but that of the Almighty; that He regards this necessary chastisement of his undutiful subjects as a matter of the deepest humiliation; and that Victory itself but redoubles his ardour to procure for us, and for all his people, the blessings of Peace.

A
SERMON
PREACHED BEFORE
THE INCORPORATED SOCIETY
FOR THE
PROPAGATION OF THE GOSPEL IN FOREIGN PARTS;
AT THEIR ANNIVERSARY MEETING
IN THE PARISH CHURCH OF ST. MARY-LE-BOW,
ON FRIDAY FEBRUARY 16, 1781.

*At the Anniversary Meeting of the Society for the Propagation of
the Gospel in Foreign Parts, in the Vestry-Room of St. Mary-le-
Bow, on Friday the 16th Day of February, 1781;*

AGREED, That the Thanks of the SOCIETY be given to the Right Reverend the
Lord Bishop of *Lichfield* and *Coventry*, for the Sermon preached by his
Lordship this day before the SOCIETY; and that his Lordship be desired to
deliver a copy of the same to the SOCIETY to be printed.

William Morice, Secretary.

SERMON, &c.

HEBREWS, xiii. 8.

Jesus Christ, the same yesterday, to-day, and for ever.

THESE words, if considered with an eye to the preceding verses, may mean, “That our Lord Jesus Christ is always attentive to the wants and distresses of his faithful followers, and always at hand to relieve them:” Or, if we connect them with the verse immediately following, we may understand them as expressing this proposition, “That the doctrine of Jesus Christ is always one and the same, independently of the wayward and changeable fancies of men.” In either way, I say, the words may be taken; and they do not necessarily imply more than the one or the other of these two senses, which the context will oblige us to bestow upon them.

But the minds of the Apostles, full of the greatest ideas, and swelling with the suggestions of the holy Spirit, which, in no scanty measure, was imparted to them, perpetually overflow, as it were, the subject of their discourse, and expatiate into other and larger views, than seem necessary to the completion of the argument, immediately presented to them.

This being the manner of the inspired writers, it can be thought no forced or violent construction of the text, to take it in the full extent of the expression; which is so striking and awful, as naturally to turn our thoughts towards the contemplation of the three following particulars:

First, The ineffable glory of our Lord’s *Person*;

Secondly, The immensity of the scheme of *Redemption through his blood*^[4];
And

Lastly, The unchangeable nature of his *Religion*.

In these several senses, it is truly and emphatically said of Jesus Christ, That *he is the same yesterday, to-day, and for ever*.

I. The transcendent dignity of our blessed Lord's PERSON is expressed in these words.

For what less do they imply than a perfect state of being, a proper eternity of existence? Agreeably to what we read elsewhere, That *he was in the beginning*^[5]—*before all things*^[6]—that *he is Alpha and Omega, the first and the last*^[7]—that *his throne is for ever and ever*^[8]—and *his goings forth from everlasting*^[9]: Nay, and suitably to the very turn of phrase, which the Holy Ghost employs in characterizing the Supreme Majesty of Heaven, *I am Alpha and Omega, the beginning and the ending, saith the Lord, which is, and which was, and which is to come, the Almighty*^[10].

When Jesus Christ, therefore, is held out to us in the text, as being *the same yesterday, to-day, and for ever*, we may be allowed, or rather we are required, to elevate our thoughts to the utmost, and to conceive with inexpressible awe and veneration of *that glory which he had with the Father, before the world was*^[11].

II. We are called upon by these words to reflect on the constant, uniform tenour of that amazing scheme of REDEMPTION, which was planned before the ages, was unfolded by just degrees, and was finally completed in *Christ Jesus*; in this sense, likewise, so interesting to us, *the SAME yesterday, to-day, and for ever*.

The works of the Lord, says the Psalmist, *are great, and sought out of all those that have pleasure therein*^[12]. But which of his works is so stupendous, or carries the enraptured mind to so high an original, as that which respects the redemption by Christ Jesus? Man was produced in time, and stationed on this earth at the distance of no more years, than our chronology easily reckons up. But who can go back to that moment, when the Godhead sate in council on *the dispensation of Grace* by the Gospel? *On the mystery, which from the beginning of the world hath been hid in God, who created all things by Jesus Christ; to the intent that, in the fullness of time, unto the principalities and powers in heavenly places might be known by the Church the manifold wisdom of God, according to*

the eternal purpose which he purposed in Christ Jesus our Lord^[13]? Inspired language itself labours, we see, in setting forth the extent of this dispensation; in declaring to us *what is the breadth, and length, and depth, and height* of this scheme of divine wisdom, *through the love of Christ, which passeth knowledge*^[14].

Known unto God, indeed, *are ALL his works from the beginning*^[15]. But this great work of love seems to have been ever present to him; to have engaged and occupied, if we may presume so to speak, the constant, the unremitting, the unwearied attention of the divine mind; and to have entered into all the counsels of his providence, which he had formed for the display of his glory, *through all ages, world without end*^[16].

Such is the idea which the Scriptures oblige us to entertain of *the manifold wisdom* of God in Christ Jesus: *manifold*, as it presents to us the various evolutions of an eternal and infinitely extended dispensation of Grace; but *one and the same*, with regard to the end in view, the redemption of a ruined world, and to the conduct and completion of them all by the means, and in the person, of the Redeemer.

What parts of this scheme lie out of the verge of our world, and how much of it hath respected, or may hereafter respect, other and higher natures by far, than the sons of men, it would be fruitless to inquire, as these deep things of God have not been distinctly revealed to us. Yet one thing deserves our notice, That *the Angels themselves*^[17] *desire to look into this scheme of salvation*; and are surely some way concerned in it, since it was designed to comprehend, *and gather together in one, all things in Christ, both which are in heaven, and which are on earth, even in HIM*^[18].

But conceive of the interest which celestial beings have in Jesus Christ, as you will; there can be no doubt, that he has been invariably the end of all God's revelations to mankind. The history of Redemption is coæval with that of the Globe itself, has run through every stage of its existence, and will outlast its utmost duration. The precious hope of a Redeemer was the support of fallen man; the theme of all the Patriarchs; the basis of all the Covenants; the boast and exultation of all the Prophets; and the desire of all nations.

Look round on the shifting scenes of glory, which have been exhibited in the theatre of this world; and see the success of mighty conquerors, the policy of states, the destiny of empires, depend on the secret purpose of God in his son Jesus: before whom all the achievements and imaginations of men must bow down, and to whose honour all the mysterious workings of his providence are now, have hitherto been, and will for ever be, directed.

Such is the uniform, immutable, everlasting tenour of that dispensation, we call Christian; the power and wisdom of God in *Jesus Christ, the same yesterday, to-day, and for ever*. But

III. Lastly, these words express the unchangeable nature and perpetual obligation of Christianity, considered as a *Law of Religion*, or *Rule of Life*, as well as a scheme of wisdom and mercy unspeakable for the redemption of mankind.

Salvation by the blood of Christ was the eternal purpose of God, the ultimate end of all his counsels. But, for the attainment of it, He chose to reveal his will gradually by several intermediate and preparatory communications. Hence the divine Law, though still directed to the same end, has been diversified, according as the Legislator saw fit, *at sundry times, and in divers manners, to speak in times past unto the Fathers by the* PROPHETS.

But now, at length, *He hath spoken to us by his SON*; whose word has become the standing law of mankind; obligatory on all, to whom it is made known, and unalterable by any authority, or by any change of circumstances whatsoever. The terms of salvation are irrevocably fixed. They are proposed to all, and required of all, without distinction of seasons or persons. The everlasting Gospel is addressed to *all that dwell on the earth; to every nation and kindred and tongue and people*^[19]. The extent of it is universal; and the obligation so indispensable, that *if an Angel from Heaven preach any other Gospel than that we have received*, he is to be rejected by us; nay, an anathema rests upon him^[20]. Since *the sound of the Gospel is gone out into all the world*^[21], we are to listen to no other. Nor is it to be modified to our expectations or fancies. *We are complete in HIM, which is the head of all principality and power*^[22]; even in JESUS CHRIST, with regard to the

perpetuity and eternity of his Law, as well as in the other senses before considered, *the SAME yesterday, to-day, and for ever.*

AFTER THIS explanation of the text, every one sees with what force it applies to the occasion of our present meeting. For surely such a Religion, as that of Jesus, so divine in its origin, so extensive in its views, and so permanent in its obligations, deserves to be propagated through the world; and justifies, or rather demands, the utmost zeal of its professors to spread it abroad among all nations.

And such is the end of this venerable Society; instituted for the double purpose of converting the Heathen, who sit in darkness and the shadow of death, to the blessed hopes of the Gospel; and of keeping up and promoting in professed Christians that *faith*, which they have already received, but, through indigence, ignorance, or a vicious life, have suffered to languish and die away, or have not, at least, cultivated to any valuable purpose.

And can either of these objects be indifferent to us? Be it but the *latter* of the two, it must deeply affect a good and compassionate mind. Where the want of instruction is extreme in those who bear the name of Christians, and the means of obtaining it clearly not within their power, there is no doubt that both benevolence and piety call upon us to administer what relief we properly can to their pressing necessities.

But the *former*, I suppose, is the main object of the Society: And if, on this occasion, we may have leave to enlarge our ideas a little, and to contemplate that object in the extent to which it has been carried by the zeal not of our's only, but of other ancient and modern missions, we shall find it above measure interesting to all true believers in Jesus.

For look on the various wild and uncivilized tribes of men, of whatever name or colour, which our ambition, or avarice, or curiosity has discovered, in the new or old world; and say, if the sight of human nature in such crying distress, in such sordid, disgraceful, and more than brutal wretchedness, be not enough to make us fly with ardour to their relief and better accommodation.

To impart some ideas of order and civility to their rude minds, is an effort of true generosity: But, if we can find means at the same time, or in consequence of such civility, to infuse a sense of God and Religion, of the virtues and hopes which spring out of faith in Christ, and which open a scene of consolation and glory to them, who but must regard this as an act of the most sublime charity?

Indeed, the difficulties, the dangers, the distresses of all sorts, which must be encountered by the Christian Missionary, require a more than ordinary degree of that virtue, and will only be sustained by *him*, whom a fervent love of Christ and the quickening graces of his Spirit have anointed, as it were, and consecrated to this arduous service. Then it is, that we have seen the faithful minister of the word go forth with the zeal of an Apostle, and the constancy of a Martyr. We have seen him forsake ease and affluence; a competency at least, and the ordinary comforts of Society; and, with the Gospel in his hand and his Saviour in his heart, make his way through burning deserts and the howling wilderness: braving the rage of climates, and all the inconveniencies of long and perilous voyages; submitting to the drudgery of learning barbarous languages, and to the disgust of complying with barbarous manners; watching the dark suspicions, and exposed to the capricious fury, of impotent savages; courting their offensive society, adopting their loathsome customs, and assimilating his very nature, almost, to their's; in a word, *enduring all things, becoming all things*, in the patient hope of finding a way to their good opinion, and of succeeding, finally, in his unwearied endeavours to make the word of life and salvation not unacceptable to them.

I confess, when I reflect on all these things, I humble myself before such heroic virtue; or, rather, I adore the grace of God in Christ Jesus, which is able to produce such examples of it in our degenerate world.

The power of Religion has, no doubt, appeared in other instances; in PENANCES, suppose, in PILGRIMAGES, in CRUSADES; and we know in what light they are now regarded by reasonable and judicious men.

But let not things so dissimilar be compared together, much less confounded. Uncommanded, useless, sanguinary zeal provokes your contempt and abhorrence; and with reason: Only remember, for pity's sake,

under what circumstances of ignorance and barbarity the provocation was given. But when the duty is clearly enjoined^[23] by the Redeemer himself; when no weapon is employed by the enterprising adventurer but that of the Spirit; when the friendliest affections prompt his zeal; and the object in view is eternal life; when, I say, the authority is unquestionable, and the means blameless; the motive so pure, and the end so glorious—O! let not the hard heart of Infidelity prophane such a virtue, as this, with the disgraceful name of *fanaticism*, or *superstition*.

Nay, Candour, methinks, should be ready to make allowance for some real defects or miscarriages, which will ever attend the best performances of mortal men. What though some error in judgment, some impropriety of conduct, some infirmity of temper, I had almost said, some imbecillity of understanding, be discernible in the zealous Missionary? Something, nay much, may be overlooked, where so much is endured for Christ's sake. It is enough that the word of the Cross is preached *in simplicity and godly sincerity*^[24]. He, whose *strength is made perfect in weakness*^[25], will provide that even the frailties of his servants contribute, in the end, to the success of so good a cause, and the display of his own glory.

Thus much I could not help saying on the behalf, and in admiration, of a CHARITY, which intends so much benefit to the souls of men, which brings out so many shining virtues in its ministers, and reflects so much honour on the Christian name. They that feel themselves unworthy to be made the immediate instruments of carrying on this great work of conversion among savage tribes and infidel nations, should bless God for the nobler gifts of zeal, and resolution, and fortitude, which he has bestowed on others; and should promote it by such means as are in their power, by their countenance, their liberality, their counsel; by a strenuous endeavour, in this humbler way, to spread the honour of their Saviour, and the invaluable blessings of his Religion, to the ends of the world.

Thus shall we make some amends for those multiplied mischiefs, and, I doubt, injuries, which our insatiable Commerce occasions; and second the gracious designs of an all-wise Providence, which brings good out of evil, and turns to his own righteous ends even those VICES which our boisterous

passions produce, and which He sees it not fit, in this our day of trial, to prevent or restrain.

Lastly, Thus shall we act as becomes the professors of that Religion, which is divine, universal, perfect; in one word, the gift and the likeness of HIM, who is THE SAME YESTERDAY, TO-DAY, AND FOR EVER.

A
SERMON
PREACHED BEFORE
THE RIGHT HONOURABLE
THE HOUSE OF LORDS,
IN THE
ABBAY CHURCH OF WESTMINSTER,
ON MONDAY, JANUARY 30, 1786,
BEING
The Anniversary of KING CHARLES'S MARTYRDOM.

Die Lunæ, 6^o Februarii, 1786.

ORDERED, by the Lords Spiritual and Temporal in Parliament assembled,
That the Thanks of this House be, and are hereby, given to the Lord Bishop
of Worcester, for the Sermon by him preached before this House, on
Monday last, in the Abbey Church, Westminster; and he is hereby desired to
cause the same to be forthwith printed and published.

ASHLEY COWPER,
Cler. Parliamentor.

SERMON, &c.

1 ST. PETER, ii. 16.

As free, and not using your liberty for a cloak of maliciousness, but as the servants of God.

CHRISTIANITY, while it provides, chiefly, for the future interests of men, by no means overlooks their present; but is, indeed, studious to make its followers as happy in both worlds, as they are capable of being.

As an instance of this beneficent purpose, we may observe, that the religion of Jesus is most friendly to the CIVIL AND RELIGIOUS LIBERTIES of mankind.

There is something in the constitution of our nature, which leads men to expect, and even claim, as much independence on the will and caprice of each other, as the ends of society, and the form of government, under which they live, will permit.

Agreeably to these instincts, or conclusions of reason, call them which you will, the Gospel, both in its genius and precepts, invites its professors to the love and cultivation of LIBERTY. It allows the freedom of private judgment, in which the essence of *religious* liberty consists: And it indulges our natural love of *civil* liberty, not only by giving an express preference^[26] to it, before a state of slavery, when by just and lawful means we can obtain it; but, also, by erecting our thoughts, and giving us higher notions of the value and dignity of human nature (now redeemed by so immense a price, as the blood of the Lamb of God), and consequently by representing a servile condition as more degrading and dishonourable to us, than, on the footing of mere reason, we could have conceived.

But now this great indulgence of Heaven, like every other, is liable to be misused; and was, in fact, so misused even in the early times, when this indulgence of the Gospel to the natural feelings of men was, with the Gospel itself, first notified and declared. For the zealot Jews, full of theocratic ideas, were forward to conclude, that their Christian privileges absolved them from obedience to *civil government*: And the believing Gentiles (who had not the Jewish prejudices to mislead them) were yet unwilling to think that the Gospel had not, at least, set them free from *domestic slavery*; which was the too general condition of those converts in their heathen state.

These notions, as they were not authorized by Christianity (which made no immediate and direct change in the politic and personal condition of mankind), so, if they had not been opposed and discountenanced, would have given great scandal to the ruling powers in every country, where the Christians resided, and have very much obstructed the propagation of the Christian faith.

The holy Spirit, therefore, to guard the rising Church from these mischiefs, saw fit, by the Apostle Peter, to admonish both the Jewish and Gentile converts to conduct themselves as *free men* indeed, so far as they were, or could honestly contrive to become free (for that their religion no way disallowed); but not as *misusing* the liberty they had, or might have (which every principle of their religion, as well as prudence, forbid). As *free*, says he, *and not using your liberty for a cloak of maliciousness*: As if he had said, “Be careful to observe a due mean in this matter: Maintain your just liberties; yet so, as not to gratify your malignant passions under pretence of discharging that duty.” And the better to secure the observance of this precept, he adds—*but as the servants of God*—that is, “Remember ye are so to employ your liberty as never to forget the service ye owe to God; who, in the present instance, commands you to *obey Magistrates*; that is, to submit yourselves to the government, under which ye live, *not only for wrath*, for fear of punishment, *but for conscience sake*.”

And this caution, so guarded by religious as well as moral considerations, was the more important, because no word is so fascinating to the common

ear, as that of *Liberty*, while the few only know what it means; and the many, of all ranks, in all times, mistake it for *licence*.

And well had it been if this warning voice of the holy Apostle, which sunk deep into the hearts of the first Christians, had continued to make the same impression on the whole Christian world; which, unhappily, has contemned, or at least neglected it, in almost all ages; but never more remarkably, than in those disastrous days, which the present solemnity calls upon us to recollect and lament.

I. The great quarrel of the times I speak of, was opened with the cry of RELIGIOUS LIBERTY; not without reason, it must be confessed, yet with an ill grace in the complainants; who certainly would have denied to others what they so peremptorily, and indeed with too much petulance, demanded for themselves.

The source of this evil (to do justice to all sides) is to be sought in the Reformation itself; which, when it had succeeded in its great view of cleansing Religion from the corruptions of Popery, concluded that no man could have reason, thenceforth, to dissent from the national church; and that an universal conformity to its discipline and doctrine was to be exacted. The conclusion was natural enough in their situation; and the benefit of such conformity, past dispute. But it was not considered, that differences *will* arise, many times, without reason; and, when they do, that force is not the proper way to compose them. This oversight continued long, and had terrible effects. It kept the Protestants of all denominations from entertaining just ideas of *Toleration*; the *last* great point of reformed religion which was clearly understood, and perhaps the *only* one of real moment in which the extraordinary persons, whom Providence raised up to be the conductors of *our* Reformation, were deficient.

In this state of things, it unfortunately happened that the Reformation was suddenly checked by the return of Popery, which forced many pious and eminent men to take refuge in the Protestant churches abroad; where they grew enamoured of certain forms of church-government, different from those that prevailed at home; and which, on their subsequent return, they fanatically strove to obtrude on their brethren, and to erect, under the new name of THE DISCIPLINE, on the ruins of the established hierarchy. So

unreasonable a pretension naturally alarmed and exasperated those who had power in their hands, and had their prejudices too, not less violent than those by which the *Puritans* (for that was the name they went by) were possessed. The consequence was what might be expected. A *toleration* for their discipline out of the establishment, which was all they should have aimed at, and to which they had a right, would not have satisfied them; and their iniquitous claim of *Dominion* was too naturally repaid by penal laws and compulsive statutes: that is, one sort of tyranny was repressed and counteracted by another. And thus matters continued through several reigns; till some more pressing claims of civil liberty, mixing with these struggles for church-dominion, overthrew, in the end, the ancient ecclesiastical government; drove the bishops from their sees, the liturgy from our churches, and brought in the classical regimen, enforced, in its turn, as the episcopal one had been, with the rigours of persecution.

Still, the restless spirit of the times continuing, or rather increasing, this new model was forced to give way to another, which assumed the more popular name of *Independency*; under whose broad wing a thousand sects sprung up, each more extravagant than the other, till, in the end, all order in religious matters, and religion itself, disappeared, under the prevailing torrent of fanaticism and confusion.

Such is the brief, but just, account of the religious factions of those days: from which we collect how miserably the zealots for religious liberty defeated their own aims; or rather how wickedly they contended for power and libertinism, under the mask of liberty: An evil, which could not have happened, had they paid the least regard to the Apostle's injunction of *being free, but not as using their liberty for a cloak of maliciousness*.

II. The claims of CIVIL LIBERTY (which sprung up amid this rage of religious parties) were better founded; were for a time carried on more soberly; and, as was fitting, were, at first, attended with better success.

The mixed form of the English government, originally founded on the principles of liberty, had, from many concurring causes, degenerated into a kind of monarchical despotism, which an unquestionably virtuous, but misinformed and misguided Prince, was for moulding into a regular system. Happily the growing light and spirit of the times excited a general

impatience of that project; and produced a steady and constitutional opposition to it. The distresses of government aided the friends of liberty, who managed their advantage so well as, in process of time, to support their claims, redress their grievances, establish their rights, and, in a word, to reduce the Crown, from the exorbitances it affected, within the ancient and legal boundaries of the Constitution.

This the Patriots of that time effected; with great advantage to their country, and with singular honour to themselves. Nothing indeed could have equalled their glory, had their labours in the cause of liberty stopped there. But, besides that some means employed by them, in the prosecution of their best-intended services, cannot be justified; the intention itself of many of them, hitherto so pure, began to grow corrupt; their fears and passions transported them too far; their public ends degenerated into selfish: having vindicated the constitution, their own security, or some worse motive, prompted them to make free with it, that is, to commit the very fault they had so justly resented at the hands of their Sovereign: In a word, the patriots, in their turn, insulted the Crown, and invaded the Constitution.

The particulars are well known. Ambitious leaders arose, or the old leaders in the popular cause turned ambitious. Unconstitutional claims were made: unconstitutional schemes were meditated: what before was self-defence and sober policy, was, now, revenge and hate: the nation grew delirious, and the civil war followed.

The rest is recorded in the disgusting annals of those times. Six desolating years brought on the subversion of the monarchy; and (as if the victors meant to insult the law itself), by I know not what forms of mock-justice, the bloody scene was wantonly closed with the public arraignment, trial, condemnation, and execution of the monarch.

The tragedy of this day was the last insolent triumph of pretended liberty. What followed, was the most avowed tyranny; upheld for a while by force and great ability, but terminating at length in wild and powerless anarchy.

Such, again, were the miserable consequences of not observing the Apostle's rule of *being free, but not as using liberty for a cloak of maliciousness*. Freedom was, first, justly sought after, and happily obtained:

It was, then, made the cover of every selfish and malicious passion, till the wearers of it were enabled to throw it off, as an useless disguise; when barefaced tyranny and licentious misrule were seen to emerge from beneath this specious mantle of public liberty.

The RESTORATION, which followed, redeemed these nations from some part of the miseries, which their madness had brought on themselves. But for the full establishment of our civil and religious rights, we were finally and chiefly indebted to the REVOLUTION.

From that memorable æra, we became, in every sense of the word, a free people. Conscience was secured in the exercise of its just rights by a legal toleration: and the civil constitution was restored to its integrity.

III. Such are the observations, which the sad story of the times we have been reviewing obviously suggests to us. And now let us pause a little: And having before us what the nation so long suffered, and what it so late acquired; that is, the horrors of fanatical tyranny on the one hand, and the blessings of established order and freedom on the other; let us inquire dispassionately what improvements we have made of both. Have the black pages of our annals given us a just abhorrence of the principles and practices, which brought that cloud over them? And have the bright ones, which so happily at length succeeded, affected our hearts and lives, as, in all reasonable expectation, they ought? In particular (to keep the momentous admonition of my text in full view) has the most perfect LIBERTY, civil and religious, been acknowledged with that thankfulness it calls for, or been enjoyed with that sobriety which so inestimable a gift of Heaven should naturally inspire?

1. To begin with RELIGIOUS liberty.

Has this great privilege, so rightfully belonging to us, as men, as Protestants, and as Christians, which so many ages had panted after, and the last so happily obtained, Has this invaluable acquisition been employed by us to the promotion of its proper ends, the cultivation of just inquiry, and manly piety? On the contrary, has not the right of private judgment been abused to the worst of purposes; the open profession of libertinism in principle, and its consequent encouragement of all corruption in practice?

Has not religious liberty been the *cloak*, under which revealed and even natural religion has been insulted; infidelity, and even atheism, avowed; and the most flagitious tenets propagated among the people? In a word, has not every species of what is called *free-thinking*, *free-speaking*, and *free-writing*, been carried to an extreme?

But to come to those who are not guilty of these excesses; have we all of us made the proper use of the fostering liberty we enjoy in religious matters? Have we been careful to apply it to the purpose of dispassionately studying the sacred scriptures; of investigating their true sense with a due veneration for the high authority they claim, and for the awful subjects they set before us; and of maintaining our conclusions from them with a becoming modesty, which in such inquiries can hardly be too great? Have we betrayed no symptoms of bigotry even in disclaiming it? Are we ready to indulge that candour to others, which we so justly expect ourselves? And is the public wisdom itself treated by those who speculate, at their ease, under the most tolerant establishment of Christianity that ever existed, Has it been treated, I do not say, with a blind submission (God forbid!) but with that decent respect, which is surely due to it? In short, have we, in our several situations and characters, been careful to exert the full spirit of Christianity, which, one is ready to think, should naturally spring up from Christian liberty; or, at least to observe that temper of mutual forbearance, which should seem to be an easy as well as reasonable duty, now that all unjust restraints and provoking severities are withdrawn?

2. Thus much for our religious liberties. Have our CIVIL, on which we equally, and with good reason, value ourselves, been secured from all abuse? Have we that reverence of just authority, not only as lodged in the persons of inferior magistrates, or in the sacred person of the supreme Magistrate, but as residing in the LAW itself (in which the public will, that is, the whole collective authority of the State is, as it were, concentered)—Have we, I say, that ingenuous and submissive respect for this authority, which not only reason and religion, but true policy, and every man's proper interest requires? Our boasted Constitution itself, now so accurately defined and generally understood, Does it meet with that awful regard from us, which it justly deserves? Are we anxious, that, of its several parts, each should have its full play, without interfering with any other? And are we

sufficiently on our guard against a spirit of innovation, which, after all our experience, can have no probable view of effecting much good, but may easily do unforeseen and irreparable mischief? It is true, in the less perfect forms of government, alterations may not be so sensibly felt. But in a Polity like our's, so nicely and artificially adjusted, and, like a well-constructed arch, held together by the intimate relation and mutual pressure of its several parts, the removal or even change of any one may loosen the connexion of the rest, and, by disjointing the whole fabrick, bring it unexpectedly on our heads.

Let me, then, repeat the question. Have we that religious reverence for the Constitution which its value, its authority, its compact and harmonious contexture, so evidently demands? And, when it hath bestowed upon us the blessings of civil liberty, in as full measure as is perhaps consistent with government itself, are we only solicitous to preserve it pure, enjoy it thankfully, and transmit it, unimpaired by hasty and hazardous experiments, to the generations to come?

If to these, and other questions of the like sort, we can answer to our satisfaction, it is well. If we cannot, we should lay hold on the present occasion of recollecting the miscarriages and the miseries of past times, and of regulating our conduct by the instructive lessons, which they read to us. We shall see, in every instance I have suggested to you, how the abuse of religious and civil liberty kept operating in those days, till it produced the ruin and the loss of both—the *irreparable* loss, if it had not pleased a gracious Providence to be much kinder to us than we deserved, or had reason to expect.

Not to profit by this experience would be inexcusable; especially, when the date of it is so recent, and when this solemn day of humiliation (for that purpose kept up by authority) so affectingly reminds us of it. We cannot, if we reflect on what it sets before us, but see in the most convincing manner, that, to reap the benefits of the best government, we must, ourselves, be moderate and wise; and that *to use our liberty for a cloak of maliciousness* is, at once, the greatest impiety in those who profess themselves *the servants of God*, and the greatest folly in those who are, and would continue to be, a *free* and happy people.

SIX CHARGES

DELIVERED TO THE CLERGY.

A
CHARGE
DELIVERED TO THE CLERGY
OF THE
DIOCESE OF LICHFIELD AND COVENTRY,
AT THE BISHOP'S PRIMARY VISITATION
IN 1775 AND 1776.

A CHARGE, &c.

REVEREND BRETHREN,

IT having pleased God to call me to the care of this large Diocese, I thought it became me to take the first opportunity, which the established course of Visitation afforded, of meeting my brethren, the Clergy: that so we might be the sooner acquainted with each other; and that, by means of their prudent advice and information, I might be the better enabled to sustain the weighty office imposed upon me.

I may, hereafter, as occasion serves, be more *particular* in my directions to you. At this time, it will be sufficient to lay before you some *general* considerations on our common PASTORAL DUTY, and to animate myself and you to a faithful discharge of it.

When our blessed Lord and Master sent forth his favoured servants to labour in that ministry to which he had called them, he addressed them in these memorable words—*I have chosen and ordained you*, THAT YE SHOULD GO AND BRING FORTH FRUIT, AND THAT YOUR FRUIT SHOULD REMAIN^[27]: “That ye may go with this commission to plant my doctrine in the world; and that, by your cultivation of it, it may take such root as to bring forth a fruitful harvest of believers, and continue to do so through all ages.”

But what, then, is this *mature and perpetual harvest*, which is here proposed to the Disciples, as the end of their labours? Is it a harvest of such believers, as shall barely give their name to Christ? Certainly, not; but of such as shall be found worthy of him. It is a harvest, then, of *well-informed, pious, and righteous*, believers. This is the precious everlasting *fruit*, which it was entrusted to their office to produce: and this fruit, the due discharge of their office, under the blessing of God, makes them *capable* of producing.

In these affecting words, then, of our divine Master (the more affecting, because among the last that were uttered by him) the *Apostles*, first, and, after them, *all* succeeding ministers of the Gospel, are called upon to bring forth,

1. The fruit of a RIGHT FAITH in their hearers; as resulting from the soundness of their doctrine. 2. The fruit of PIETY in their flocks; in consequence of a diligent ministration in all the offices of their sacred function. And, 3. The fruit of CHARITY in their Christian brethren; as springing out of their godly exhortations and blameless examples.

Such, my reverend brethren, is the end for which WE are *chosen and ordained* to serve in the church of Christ. And though, in setting this end before you, I shall but reflect your own thoughts: yet, in doing this, I may be a no unuseful, certainly, no ungrateful, remembrancer; since it is the duty, the desire, and the glory of us all, that we *bring forth fruit*, and that *our fruit remain*.

I. The FIRST object of our ministry is, to instruct our hearers in the RIGHT FAITH: and to this end, we are required to *take heed to our doctrine*^[28].

The Religion of Jesus claiming to be from God, the *doctrines*, it delivers, are as well to be believed, as its *precepts* to be observed. Thus, a *dogmatic theology* becomes essential to Christianity; its professors are equally bound by a certain rule of *faith*, and of *manners*.

When the Scriptures of the New Testament were made public, these were that Rule of faith to the whole church of Christ. And, if that Church had *agreed* in the interpretation of them; or, if peace and charity could have consisted with its *disagreement*, no other provision for the maintenance of the faith had been thought needful. But the Scriptures, like all other writings, being liable to a different construction, according to the different views and capacities of uninspired men; and it being presently found that such difference of construction produced the most violent animosities among Christians, while each sect pretended a divine authority for its own fancies; no remedy occurred for these disorders, but that the *catholic* church should be held together by one and the same confession, received and acknowledged by all its ministers; or, when, afterwards, this extensive

project was found impracticable, that those, who agreed in the same interpretation of the sacred oracles, should be allowed to separate from all others, and unite themselves into one distinct and *subordinate* church.

Thus, *Schism*, though it be always an evil, and may be a crime, was introduced into the church, and was even tolerated there, to prevent other and greater evils, as well as crimes, from flowing into it. For, though a diversity of interpretation, in consequence of this liberty, prevailed in *different* Christian communities, which yet acknowledged the same common Rule, *the Scriptures of God*; still, peace was, by this means, preserved in *each* particular community; and, by virtue of that general principle of mutual toleration, which the expedient itself implied, it was, or might be, in good measure, preserved through *all the quarters* of the Catholic church.

This, in one word, is the ORIGIN, and, at the same time, the JUSTIFICATION, of Creeds and Confessions; which are only a bond of union between the members of each Christian society. For the purpose of them is not to set up human decisions against the word of God; but, by larger comments, and more explicit declarations, in such points of doctrine as have been differently apprehended, and much controverted, to express and ascertain the sense, in which THEY interpret that word, who communicate together in the same Church.

Thus the case stands, before the State gives a preference to any particular Church. Thenceforth, indeed, the State concurs with the Church to enforce one common Confession, by confining the emoluments, which it provides for the encouragement of Religion, to the peculiar doctrines of the favoured Church. This, the State does, in *equity* towards that religious society, with which it is now so closely connected: it does it, too, in *prudence and good policy*; because it conceives its own true interests to be concerned in maintaining those peculiar doctrines.

Thus, whether we regard the *Church*, before it acquires the countenance of the State, as intent on truth and orthodoxy, and only meditating how best to preserve that truth in the bosom of *peace*; or, whether we regard the *State*, after it affords that countenance to the Church, as studious to provide for its own great object, *General Utility*, of which the preservation of peace makes

so considerable a part; either way we understand why an agreement of opinion is required in the appointed Guides and Teachers of Religion. But, as such agreement cannot be expected, or not maintained, where every Teacher is left to inculcate what doctrines he thinks fit, hence some *common formulary* of faith (not in opposition to that delivered in the Scriptures, but by way of more precise explanation of what is believed to be its true meaning) is reasonably proposed to the assent of those Guides and Teachers, before they exercise their office in any particular Christian society; as a TEST of their opinions; and as a RULE, by which, in subordination to the general Rule of Christians, they undertake to frame their public instructions.

This Confession, or formulary of faith, with us, is THE THIRTY-NINE ARTICLES: to which a subscription is required from every candidate of the Ministry. So that THE SCRIPTURE, interpreted by *those articles*, is the proper rule of doctrine, to every Minister of our Church.

It follows from what has been said, that such, as cannot honestly assent to this formulary, *must* (if they aspire to be public Teachers of Religion) unite themselves with some other *consentient* Church. This compulsion may, sometimes, be a *hardship*; but can, in no case, be an injury: or, if some may chuse to consider it in the light of an *injury*, it is such an one as must be suffered by individuals for the general good of that Society, to which they belong.

It is nothing, that some object to these articles, as *improper*, or *ill-drawn*. The Church will judge for itself of these points. Societies have surely the same right of private judgement as Individuals; and, till they revoke a constitution, it should, methinks, be presumed that they see no cause to do it: just as it is very fitly presumed, on the other hand, that such individuals, as will not subscribe to this constitution, cannot. But it is forgotten in this dispute, that, although *truth* can only be on one side, *good faith* may be on either.

Still, it may be said—“*These articles are themselves liable to various interpretations.*” Without doubt, they are: and so would any other, which could be contrived. Yet, with all the latitude of interpretation of which they are capable, they still answer, in a good degree, the main end of their

appointment; as may be seen from the animosity expressed by some against them, as too strict. And, if we only use *that* latitude, which the expression fairly admits, and which the Church allows, they will continue to answer the *great* end, hitherto effected by them, of preserving, among the members of our Church, *an unity of the spirit in the bond of peace*.

Such then is the fruit of a *right faith*, which the ministers of our Church are required to bring forth, by the *soundness of their doctrine*.

II. They are, in the next place, ordained to produce the fruit of PIETY, in their several congregations, by a faithful discharge of the sacred offices, committed to them.

The LITURGY of the Church of England, in which these offices are contained, is composed with so much wisdom, and is animated, at the time, with so true a spirit of piety, that impartial men have generally agreed in the commendation of it. That the *forms*, prescribed by it, may be lawfully used, few at this time of day will dispute. That *other* forms, more complete and perfect, *may* be devised, *as* it is not denied by *us*, who hold those forms, however excellent, to be of human composition only; so, that any such forms of greater perfection are likely to be devised by those who are the readiest to find fault with our Liturgy, will hardly be expected by reasonable and knowing men. Much indeed, abundantly *too* much, has been said and written on this subject. Most of the defects, which some have pretended to find in our Ritual, are purely imaginary: the rest are certainly unimportant. So that our concern is plainly to submit all deliberations of this sort to the wisdom of the Church itself; and, in the mean time, to give all the effect, that depends on *us*, to the ministration which it requires.

And to this end, it must be our duty to perform the sacred offices with *regularity, decency, and fervour*.

1. By *regularity*, I mean such an observance of times and seasons, and of all the modes of performance, as the Church hath thought fit to prescribe. To this observance we are, indeed, constrained by ecclesiastical penalties: but I mention it as a fit testimony of respect to public authority; and as the means of promoting the true interests of Religion. For what is *punctually* performed by the Minister will acquire a due consideration with the people:

and the uniformity of *our* service will make the attendance on religious offices more acceptable, more convenient, more edifying to *them*.

2. Nor is it enough that these offices be performed regularly, or according to stated rules: they must also be performed *decently*, or with due grace and propriety in the *manner* of discharging them. For it is not, perhaps, enough considered, how much a becoming celebration of the sacred offices contributes to make men delight in them, and profit by them: or, on the contrary, how much any degree of negligence in the *posture*, or of impropriety in the *accent*, or indifference in the *air*, of the officiating Minister, sinks the credit and authority of his ministration, and deadens the attention and devotion of his flock.

3. Still, this regular and decent discharge of our duty, how useful soever, is but an *outward* thing, and may, to a degree at least, be counterfeited by those who are, otherwise, very unfit to be employed in this service. To enliven, to animate, to consecrate our ministry, we must bring to it all the zeal of *internal* devotion; such as is sober indeed, but real, active, and habitual; such as flows from a religious temper, and is wrought into the very frame and constitution of our minds. For to this end, more especially, are we set apart from secular pursuits, to give ourselves up to reading, to meditation, to all spiritual exercises; that so we may be thoroughly penetrated and informed with pure affections and heavenly dispositions. When these prevail in us, they will naturally break forth and express themselves in all our ministrations; they will be seen and felt by all who partake of them, and, by a kind of sympathy, will force the hearts of others to *consent* with our own.

III. The *last* and best fruit we are to produce, is the fruit of CHARITY, or a good life, in those committed to our charge; which is more especially cultivated and matured by our *godly exhortations*, and *blameless examples*.

1. As to our public exhortations, and discourses from the Pulpit, such an audience as this cannot want to be instructed in the manner of preparing them. Permit me only to say, “*That your Sermons cannot well be too plain; and that they ought to be wholly Christian.*”

The word of God is designed for the edification of all sorts and degrees among us, and should be so dispensed as to reach the hearts and understandings of all. And I need not say to you who hear me, that to frame a discourse in this manner, as it is the usefulest way of preaching, so it will afford full scope and exercise for all the talents which the ablest of us may possess.

But, further, you will allow me to observe, that the topics and principles, on which we form our discourses, must be *wholly Christian*. I do not mean to exclude natural Reason from our public exhortations, but to employ it in giving force to those best and most efficacious arguments for a good life, which the Gospel supplies. I would only say, That we are not to preach morality, in exclusion of Christianity: for that would be to incur the guilt of *preaching ourselves*, and not *Jesus Christ*.

The various motives to virtue and all goodness, which may be drawn from the great doctrines of the Christian Revelation, as they are infinitely more persuasive and affecting than all others; so they should be constantly and earnestly impressed on our hearers. To live as becometh the Gospel, is the duty of Christians: and therefore to preach that Gospel must be the proper duty of Christian Ministers.

For that *other* requisite of a *good example*, the case is too plain to require more than one word. Our blessed Master has told us, that we are *the salt of the earth*: and we remember what he pronounces of that salt, *when it hath lost its savour*. This warning may suffice to guard the minister of the word from gross vice and immorality. But much more is expected from him. He is to *excell* in all virtue, and in such sort as to make it amiable in the eyes of men. He is to take care, that even *his good be not evil-spoken of*, and that *the ministry be not blamed*. For there are certain decencies, which must be ranked by us in the place of virtues. To be wanting in *these*, is to scandalize the brethren, and dishonour ourselves. Our profession is so sacred, that even our Christian liberty must be abridged on many occasions; and we must deny ourselves an *innocent* amusement, when we have reason to conclude that others will take offence at it.

How far, and in what respects, this sacrifice must be made to the decencies of our profession, is a matter of great *prudence* and *charity*; and can only be

determined, in particular cases, by an honest exertion of those *two principles*.

Ye have now, my reverend Brethren, presented to you a brief sketch of our ministerial duties. And our encouragement, for the performance of them, is, That hereby *we shall bring forth fruit*, and that *our fruit will remain*: that is, we shall be instrumental in producing a RIGHT FAITH, a PIOUS OBSERVANCE OF RELIGION, and a TRULY CHRISTIAN LIFE, in our several charges and congregations; and we shall, likewise, be the means of transmitting these blessings to Posterity, and of perpetuating these good fruits to the end of the world. Thus, that which is the *end* of our ministry, is also the reward of it. Nor will the recompence of our labours end here. In saving others, by the means now recommended, we shall assuredly save ourselves. For, by giving this full proof of our ministry, we shall be *sincere, and without offence till the day of Christ; being filled with all the fruits of righteousness, which are by Jesus Christ unto the glory and praise of God*^[29]. AMEN.

A
CHARGE
TO THE
CLERGY
OF THE
DIOCESE OF WORCESTER,
DELIVERED AT THE BISHOP'S PRIMARY
VISITATION IN 1782.

A CHARGE, &c.

REVEREND BRETHREN,

ON this first occasion of our meeting, you will think it agreeable to the relation I have the honour to bear to you, if I take leave to remind you of such of your Clerical Duties as tend more immediately to your own credit, and to the good order of this Diocese: Not, as if I suspected you of being, in any peculiar degree, deficient in them; but as, from the general state of the *present* times, and from the singular importance of them at *all* times, these Duties deserve to be frequently and earnestly recommended to you.

The Clergy of the Reformed Church of England have always distinguished themselves by the soundness of their learning, by the integrity of their manners, and by a diligent discharge of the pastoral office. But these virtues could not have flourished so much and so long, had it not been for the PERSONAL RESIDENCE of the Clergy. Hence that leisure which enabled them to excell in the best literature: hence those truly clerical manners, unadulterated by too free a commerce with the world: and hence that punctuality in performing the sacred offices, so edifying to the people, and, from their being always upon the spot, so easy to themselves.

Now this Residence, which the very institution of Parishes supposes, and the Common Law intends, has, from early times, been bound upon us by ecclesiastical canons, and, from the Reformation, also by express Statute. So that, in the style of Law, and even in common language, *Incumbent* is the proper name of every Parochial Minister.

I know, indeed, what exceptions there are to the Statute, and needs must be in a Constitution like our's, founded on a principle of Imparity and Subordination. I know, too, how many more exceptions must be made on account of the poverty of very many Cures, and the necessity there

unfortunately is of having several churches served by the same person. Lastly, I do not forget that, in the case of ill health, and doubtless in other cases that may occur, there will sometimes be good reason for the Incumbent to desire, and therefore for the Ordinary to grant, an occasional suspension, or relaxation, at least, of the general Rule. But, when these cases are allowed for, no Clergyman, who considers the nature of his office, and the engagements he is under, or who respects as he ought, either the esteem of others, or the satisfaction of his own mind, will suffer himself to solicit, or even to accept, an exemption from Residence.

And even they, who have to plead the privilege of the Statute, or can alledge any other just and reasonable excuse, will endeavour to compensate for their absence, *by* occasional visits to their benefices; *by* diligent inquiries into the conduct of their assistants; *by* acts of benevolence, hospitality, and piety; in short, *by* such means as testify a readiness to do all the good they can under their circumstances, and manifest a serious consideration of the duties which, in some degree or other, are inseparable from the Pastoral Care.

In short, the reason of the thing speaks so strongly for the incumbency of Parochial Ministers, that they, who have the best excuse to make for themselves, will lament their absence, and accept the leave granted to them with regret. And the rest of the Clergy will not allow themselves to desert their charge, and forfeit the dignity and almost the use of their destination, for such slight and frivolous reasons as can neither satisfy themselves nor others: for the convenience, suppose, of living in a better air or neighbourhood; of seeing a little more, or, what is called, *better*, company; or sharing in the advantages and amusements, be they ever so innocent, of the larger and more populous towns.

Pretences of this sort are nothing, when they come in competition *with* the decency and utility of being where we ought to be, and among those whom we ought to serve; *with* the obligation that lies upon us to make ourselves acquainted with the spiritual and temporal wants of our people, and, as far as we can, to relieve them; *with* the precious opportunities, which a personal residence affords, of knowing their characters, and of suiting our publick and private applications to them; *of* watching over their lives, and

contributing to reform or improve them; *of* guarding them against the attempts of those who lie in wait to pervert their minds, and indispose them to our Communion; *with* the heart-felt satisfaction of being beloved by our flocks, or of meriting, at least, to be so; of knowing, in short, that we discharge our duty towards them; and, while we approve ourselves faithful ministers of the Church in which we serve, are promoting the noblest ends which a mortal can propose to himself, The salvation of souls, and the honour and interest of our divine Religion.

These considerations are so animating, that they cannot but make a deep impression upon every serious mind; and are so obvious at the same time, that just to have mentioned them to you must be quite sufficient.

I return, therefore, to the duty of those who, on several accounts, may very reasonably excuse themselves from a constant personal residence. And with regard to such of you as may be in this situation, I must,

II. In the second place, recommend it to you, in most particular manner, that you be careful in looking out for proper persons to supply your place, and that you faithfully co-operate with me in appointing none but *regular, well-qualified, and exemplary Curates*.

By REGULAR Curates, I mean such as lie under no legal disabilities, and have received episcopal ordination. You will perhaps think it strange that these cautions should be thought necessary. But in our licentious times there are those who will presume to offer themselves to you to be employed as Curates, although they have incurred the public censure of their superiors, or have not perhaps been admitted into holy Orders. You will be careful, therefore, before you allow any one to officiate for you, though for a short time, and on a pressing occasion, to inform yourself of his general character, and to inspect his Letters of Orders.

But, if you mean to take him for your settled Curate, you must do a great deal more. You must send him with a *Title* and *Testimonial* to be examined and allowed by me. And then I shall have it in my power, not only to prevent your being imposed upon by *irregular* persons, but to see that you take for your assistants only such as are in all respects WELL QUALIFIED: including under this term *a competent degree of knowledge for the service*

of the Cure to which they are nominated; a good report of their moral and religious conduct by credible and respectable witnesses; and a willing conformity to the discipline and doctrine of the Church of England.

With these qualifications, it is to be presumed that your Curates will represent you not unworthily, and will instruct and edify your people as you yourselves would endeavour to do, if you lived amongst them. And the rather, as both you and I are concerned *to take care, as much as possible, that whosoever is admitted to serve any Cure* DO RESIDE IN THE PARISH WHERE HE IS TO SERVE: *especially in livings that are able to support a resident Curate; and, where that cannot be done, that he do reside at least* SO NEAR TO THE PLACE, *that he may conveniently perform all the duties both in the Church and Parish*^[30].

Still, it is not enough that an officiating Minister, whether principal or substitute, be of no ill fame, and under no disability, nay that he possess the *qualifications* and the *means* of discharging his duty. It is further expected of all who are commissioned to minister in holy things, and therefore of Curates as well as others, that they execute their important trusts with fidelity and zeal, that they be EXEMPLARY in their whole conduct and conversation.

To merit the application of this term to himself, a Clergyman will not only perform the duties of his Church with becoming seriousness, and with exact punctuality, but he will be ready at fit seasons to advise or exhort, to comfort or rebuke, as occasion requires, such of his parishioners, whether in sickness or health, as may stand in need of his charitable assistance. He will spend much of his leisure in reading and meditation, particularly in the study of the sacred Scriptures, that he may adorn and purify his mind, and qualify himself the better for his spiritual ministrations. He will even take care that his very amusements be inoffensive, and not pursued with an eagerness or constancy that may give occasion for censure or misconstruction. He will be so far from drawing upon himself the imputation of any gross vice (which it would be dreadful for a minister of the Gospel to deserve), that he will not be suspected of levity or dissipation; *but, as the Canon directs, will always be doing the things which shall appertain to honesty, and endeavouring to profit the Church of God; having*

always in mind that the ministers of religion ought to excell all others in purity of life, and should be examples to the people of good and Christian living^[31].

Such is the conduct which the Church requires of those whom you employ in the care of your parishes. I hope therefore I shall not be thought too severe, if I give a particular attention to the appointing and licensing of Curates, and if I expect of the beneficed Clergy that they chearfully and heartily concur with me in this necessary circumspection.

To this end, and that the Church may be served with reputable and useful ministers, I must,

III. Further make it my earnest request (and this is the *last* particular I have at present to give in charge to you), that you take especial care *what persons you recommend to me on all occasions*.

It is my duty, and if it were not, it would be my inclination, to rely much on your advice in all things; much more, to lay the greatest stress on your opinion and sentiments, when presented to me under your hands in the solemn way of a Testimonial. No consideration, therefore, I hope will ever prevail with you, no bias of acquaintance, neighbourhood, civility, or compassion (for I shall never suspect my brethren of any worse motive), to give the credit of your testimony to any person whatever that is unworthy of it, whether for the purpose of obtaining holy Orders, or my License to a Cure, or Institution to a Benefice. The most scrupulous good faith must be observed in all these cases; or it will be impossible for me to prevent those scandals, which an unqualified Clergy will be sure to give to the world, and the infinite mischiefs they do to Religion.

Whenever you set your hand to a testimonial, consider, I beseech you, that the honour of the Church is concerned in what you are doing; that the edification of the people, the integrity of their lives and purity of their faith, the salvation, in short, of their souls, depends on your signature. When such momentous interests as these are at stake, inattention is something worse than *neglect*, and the easiness of good-nature the greatest *cruelty*.

And now, my reverend brethren, by observing these few plain directions—by residing on your benefices when you can, and by improving that residence to its proper uses—or, when you cannot reside yourselves, by employing only resident and respectable Curates—and, lastly, by a scrupulous use of your credit with me in recommending none but fit persons for the several departments of the Ministry.—By complying, I say, with my earnest request, in these several instances, you will render the government of this Diocese easy and pleasant to me. I reckon so much on your kindness to me as to believe that *this* consideration will be some inducement to you. But there are *others* of more importance. For you will consult your *own* honour, and that of your *Order*: You will rejoice the hearts of your *friends*, and stop the mouths of your *enemies*.

I said, *of your enemies*; for enemies you will always have, so long as there are bad men. And, while we endeavour to lessen the number of these, it should be our utmost care that none but *such* be ill-affected towards us. God forbid that the friends of virtue and religion should have so much as a pretence to speak or think ill of us! They cannot have this pretence, but through our own fault. Be we therefore strictly observant of our duty: Let us be seen, where the world will naturally look for us, in our proper places, intent on our proper business; and acting in our proper characters; and we shall infallibly secure the esteem of *good* men, and till it please God to touch and convert their hearts, we may defy the malice of *bad* ones.

The truth is, my reverend brethren, it depends very much on ourselves, whether the world shall conceive well or ill of us. Licentious and unbelieving as that world is, a learned and prudent and pious Clergyman will force respect from it. The more it may be inclined to blame, the greater must be our diligence and circumspection. And to animate myself and you to this care, is the whole end and purpose of this friendly address to you.

It only remains that *I pray*, with the holy Apostle, *that we may abound in knowledge and in all judgment; that we may approve things that are excellent; that we may be sincere and without offence till the day of Christ; being filled with the fruits of righteousness, which are by Him to the glory and praise of God*^[32].

The grace of our Lord Jesus Christ, and the love of God, and the fellowship of the Holy Ghost, be with us all evermore. Amen.

The Use and Abuse of Reason in Matters of Religion:

A

CHARGE

OF THE

BISHOP OF WORCESTER

TO THE

CLERGY OF HIS DIOCESE.

DELIVERED IN THE YEAR 1785.

A CHARGE, &c.

REVEREND BRETHERN,

WITHOUT the use of Reason in Religion, we are liable to be imposed upon by others. With the immoderate or indiscreet use of it, we impose upon ourselves. Both extremes are to be carefully avoided: but the *latter*, being that into which we are most in danger of falling in these times, will possibly deserve your first and principal attention.

Indeed the great Apostle of the Gentiles, foreseeing the mischiefs which the pride of human reason would produce in the Church of Christ, gave a timely warning to the Roman converts, *not to be wise in their own conceits*^[33]. And whoever considers the history of the Church from that time to this, will find that nothing has been so injurious to it as the affectation of being wise *above*, or *beside*, what is written; I mean, in opposing our own sense of things to the authority of Scripture, or (which is the commoner, because something the modester way of the two) in forcing it out of the sacred text by a licentious interpretation. In either way, we idolize our own understandings; and are guilty of great irreverence towards the word of God.

It infinitely concerns the preachers of the Gospel to stand clear of these imputations; and therefore it may not be unsuitable to the occasion of our present meeting, if I set before you what I take to be the whole office of REASON on the subject of revealed Religion; what it has to do, and what it should forbear to attempt; how far it may and should go, and where it ought to stop; and lastly, how important it is for a Christian teacher, and indeed for every Christian man, to confine his curiosity within those bounds.

I. The first and principal office of Reason on this subject is to see whether Christianity be a divine Religion; in other words, whether the Scriptures, especially those of the New Testament, which contain the religion of

Christians, be written by inspiration, or have no higher authority than the compositions of mere fallible men.

Now, for this purpose, you will collect and examine the numerous proofs, *external* and *internal*, which have been alledged as the proper grounds of assent to the truth of Christianity: The proof EXTERNAL; first, from *Prophecy*, involving in it an incredible number of probabilities, some less striking than others, but all of them of some moment in your deliberation; secondly, from *Miracles*, said to have been purposely wrought to attest the truth of Christianity; recorded by persons of the best character, who themselves performed there miracles, or saw them performed, or had received the accounts of them immediately from the workers and eye-witnesses of them; and not questioned, as far as we know, by any persons of that time, or for some ages afterwards. In the next place, you will consider the INTERNAL PROOF, from the history and genius, from the claims and views and pretensions of this Religion.

Under this *last* head, you will particularly attend to the promises said to have been made by Jesus to his disciples; and to the manner in which those promises appear to have been made good: the promise of inspiration to the Apostles, and the evidence they afterwards gave of their being actually so inspired.

Above all, you will carefully inspect those books which contain the account of these and other momentous things, as well as the doctrines of Christianity itself; and you will see whether the *facts* they relate be, any of them, contradicted by authentick history, or the *doctrines* they deliver be repugnant to the first and clearest principles of human knowledge. You will next inquire whether these books, containing nothing but what is credibly or supposeably true, were indeed written by the persons whose names they bear, and not by persons of later times, or by persons of that time, whose authority is more questionable. You will, further, consider what *degree* of inspiration these writings claim to themselves, and whether their claims have, in any instance, been discredited and confuted. You will, lastly, take into your account the *event* of things, and will reflect how far the success of so great an undertaking has corresponded to the supposition of its having

been divinely directed; if, in short, you can any way account for what you know and see to be clear and evident *fact* on any other supposition.

Such, I think, is the outline of what must be thought the duty of a reasonable inquirer into the pretensions of Christianity. To fill up this sketch would require a volume: but you see from these hints that here is room enough for the exercise of the understanding, for the full display, indeed, of its best faculties. If Christianity, which invites, will stand the test of this inquiry, you cannot complain that Reason has not enough to do, or that your reception of it, as a divine revelation, is not founded on reason. Only, let me caution you against coming hastily to a conclusion from a slight or summary view of the particulars here mentioned. You must have the patience to evolve them all; to weigh the moment of each taken separately, and to decide at length on the united force of these arguments, when brought to bear on the *single* point to which you apply them, the DIVINE AUTHORITY of your religion.

To grasp all these considerations in one view will require the utmost effort of the strongest mind: And, when you have done this, you will remember that very much (so widely extended and so numerous are the presumptions on this subject) has probably, nay, has certainly, escaped your best attention.

However, on these grounds, I will now suppose that a serious man, who would be, and is qualified to be, a believer on conviction, has fully satisfied himself that Christianity is true, and that the Scriptures, in which the whole of that religion is contained, are of divine authority.

II. A second and very momentous use of Reason will then be, To scrutinize these Scriptures themselves, now admitted to be divine; that is, to investigate their true sense and meaning. For, whatever their authority be, as they were written for the use of men, they must be studied, and can only be understood, as other writings are, by applying to them the usual and approved rules of human criticism.

I have already supposed, that you have seen enough of these Scriptures to be satisfied of their containing no contradictions to the clear intuitive principles of human knowledge. For this satisfaction must precede the general conclusion, that the Scriptures are divinely revealed; all truth being

consistent with itself, and it being impossible that any evidence for the truth of revelation should be stronger than that of Intuition. Still, it remains to inquire of doctrines taught in these books, and apparently, as to the general sense of them, not inadmissible, what is their precise and accurate interpretation.

And here, besides the use of languages, antiquities, history, and such other helps as are necessary to the right understanding of all ancient books, you will have ample scope for the exercise of your sagacity in studying the character of the sacred writers, the genius and views of each, with the peculiarities of their style and method; in tracing the connexion of their ideas, the pertinence and coherence of their reasonings; in comparing the same writer with himself, or different writers with each other; in explaining the briefer and darker passages by what is delivered more at large and more perspicuously elsewhere; in apprehending the harmony of their general scheme, and the consistency of what they teach on any particular subject.

In all these ways, and if there be any other, your Reason may be and should be employed with all the attention of which ye are capable. And when this task is now performed, and you have settled it in your own minds what the true genuine doctrines of Christianity are; what our religion teaches of divine things, and what it prescribes to us in moral matters; What more remains to be done? Clearly, but this—To BELIEVE, AND TO LIVE, according to its direction.

But, instead of acquiescing in this natural and just conclusion, the curiosity of the human mind is ready to engage us in new and endless labours. “*The wise in their own conceits* will examine this Religion, and see if it be REASONABLE: for surely nothing can proceed from Heaven but the purest and brightest reason.”

Here, *first*, they perplex themselves and others, by the use of an ambiguous term: for, by *reasonable* is meant, either what is *not contrary* to the clearest principles of reason, or what is *clearly explicable*, in all respects, by those principles. In the *former* sense, it must be maintained that Christianity is a *reasonable* Religion, and that no such contrariety to reason is to be found in it. In the *latter* sense, it may be true that Christianity is *not reasonable*, I mean, that the reasons on which it is founded are not always apparent to us:

but then this sense of the word is not pertinent to the case in hand; and we may as well pretend that the constitution of the natural world is *unreasonable*, as that the system of Revelation is so, because we are in the same ignorance, for the most part, of the grounds and reasons on which either fabrick is erected.

In the *next* place, supposing that, by intense pains, and a greater sagacity than ordinary, we are enabled to see, or guess at least, in some instances, on what principles of reason the great scheme of revelation or some of its doctrines at least are founded, what do we get by the discovery? Only, the addition of a little speculative knowledge, which does not make us at all *wiser* to salvation, than we were before, and possibly not so *wise*; since *knowledge*, we know, *puffeth up*, and *God giveth grace to the humble*.

But, *lastly*, how do we arrive at this supposed pre-eminence of wisdom? Generally, by forcing the word of God to speak *our* sense of it, and not his; by taking advantage of some difficult texts, and by wresting many plain ones; by making every thing bend, in short, to our presumptuous fancies and preconceived opinions.

You see, then, what my meaning is—"That the EVIDENCE of Christianity, and not its *rationale* (which, however justly conceived and ably executed, cannot extend so far as curious men require, because Reason itself is so limited); I say then that the *evidence* of our religion is the proper object of inquiry;" and "that the *Scriptures* are to be admitted in that sense which they obviously bear, on a fair unforced construction of them, although that sense appear strange to us, or be, perhaps, inexplicable;" in a word, that the AUTHORITY and RIGHT INTERPRETATION of Scripture are what we ought to look after, and not the REASONABLENESS of what it teaches.

THE TRUTH is (for I would now, in conclusion, point out to you the mischievous *effects* of this curious theology, which has so much engaged the minds of Christians), the truth, I say, is, That we know not what we do, when we take heaven, as it were, to task, and examine a confessedly divine Revelation by the twilight of our Reason.

1. One effect is (and can there be a more dreadful one?) that this inquisitive humour, thus leads directly to *Infidelity*, and even *Atheism*. For *the wise in*

their own conceits, not being able to clear up many parts of the divine dispensations, whether of nature or grace, to their satisfaction, hastily conclude that there *is* no fitness or wisdom, where they *see* none, and make their inapprehension an argument for their rejection of both. A perverse conduct, indeed! but so common, that I doubt whether there be any *other* so fruitful source of irreligion. But

2. When the mischief does not proceed to this extreme, still it is no small evil, that heresies arise, and must for ever arise, among believers themselves, from this way of subjecting the word of God to the scrutiny of our reason. For this faculty, being a different thing, under the same name, in every pretender to it, and, in its most improved state, being naturally incapable, where the revelation itself is silent or obscure, of deciding on what is fit and right in the divine counsels, must needs lead to as many different views and conclusions, as there are capacities and fancies of curious men. And, as every man's reason is infallible to himself, because his *own* reason, his zeal in the propagation of what he calls *truth*, will keep pace with his presumption, till all is noise and dissonance and discord; till peace and charity forsake the world; till Religion herself disappears; and what is left to usurp her name and place is only an art, or rather a fit, of disputation. Then consider

3. How immense a sacrifice we make to the indulgence of a wanton curiosity. The Gospel was given to fix our faith and regulate our practice; to purify our hearts and lives, and to *fill us with all joy and peace in believing*. Instead of these substantial fruits, we reap I know not what phantom of self-applause for our ingenious speculations: we lose our precious time in reasoning, when we should act, and hardly ever come to an end of our reasonings: we grope on in these dark and intricate paths of inquiry, without ever attaining the heart-felt joy of conviction: we are so intent on *trying* all things, that we *hold fast* nothing: we spend a great part of our lives, some of us our whole lives, in suspense and doubt: and are so long examining what our *faith* is, and whether it be reasonable or no, that, with a divine directory in our hands, we drop into our graves before we come to a resolution of those questions.

These are the sad effects of this intemperate wisdom, which therefore we shall do well to exchange for a little modest piety. And such has been uniformly the advice of the ablest and wisest men, from the foundation of Christianity down to this day. It would be endless to refer you to particular instances in their writings. Their sentiments on this subject are concisely and forcibly expressed in the following passage of as great a master of reason as hath appeared in the Christian world since the revival of letters, which I will therefore leave with you, and would recommend to your most attentive consideration.

“Rationibus humanis scrutari divinæ naturæ (and what he observes of the *divine nature*, is equally true of the divine councils) cognitionem, temeritas est: loqui de his, quæ nullis verbis explicari queunt, dementis est: definire, impietas est.” And again—“Satis est ad consequendam salutem æternam, ea de Deo credere, quæ palam ipse de se prodidit in sacris literis, per selectos ad hoc viros, spiritu suo afflatos; quæque post versans in terris ipse discipulis aperuit: ac demum per spiritum sanctum iisdem in hoc selectis discipulis patefacere dignatus est. Hæc simplici fide tenere, Christiana philosophia est: hæc puro corde venerari, vera Religio est: per hæc tendere ad cœlestis vitæ meditationem, pietas est: in his perseverare, victoria est: per hæc vicisse, summa fœlicitatis est. Cæterum HOMINEM ULTRA HÆC HUMANIS RATIONIBUS DE REBUS DIVINIS VESTIGARE, PERICULOSÆ CUJUSDAM ATQUE IMPIÆ AUDACIÆ EST^[34].”

A
CHARGE
OF THE
BISHOP OF WORCESTER
TO THE
CLERGY OF HIS DIOCESE.

DELIVERED IN THE YEAR 1790.

A CHARGE, &c.

REVEREND BRETHREN,

IT has been observed, that men of sense and parts are not always on the side of Christianity: And it is asked, how the unbelief of such men can consist with the honour of that Religion?

We find this topic insisted upon, or insinuated at least, with much complacency, in all the free writings of these times. And some of them, however offensive for their impiety, being composed with vivacity, and delivered in a popular style, gain more credit with unwary readers than they deserve.

It behoves us to be on our guard against those insinuations, and to prevent their having an effect upon others. It will not therefore be unsuitable to the design of our meeting, if I suggest to the younger part of you (for the elder and more experienced have no need of my instruction), if I expose in few words the *folly* of inferring the falshood of religion from the rejection of it by a few plausible or learned men. And to give what I have to say the greater weight with you, I shall deliver my sentiments on the subject in a short comment on a remarkable text of St. Paul; who has indeed long ago obviated this prejudice, and fully accounted for the supposed *fact*, without derogating in any degree from the honour of our divine Religion.

For no sooner was Christianity published to the world, than it was opposed by all the wisdom of that age, which was, in truth, distinguished by its wisdom. But then it was *human* wisdom only, confiding in itself, and wholly unacquainted with *divine* wisdom. These were often at variance, and sometimes irreconcilable with each other. No wonder then, that *not many wise men after the flesh*, as the Apostle expresseth it, *were called*, i. e. converted to Christianity, and that the wisdom of Revelation was deemed

folly (as it is in our days, and as it always will be) by the idolaters of their own *carnal* wisdom.

This early and popular prejudice, therefore, against the religion of Jesus, the great Apostle of the Gentiles found it expedient to remove. And he does it effectually in that oracular sentence delivered by him in the first Epistle to the Corinthians, in these words;

“The natural man receiveth not the things of the spirit of God; for they are foolishness unto him: neither can he know them; because they are spiritually discerned^[35].”

The meaning of the words is clearly this: “That no man can, by the force of his natural understanding, however improved, discover the doctrines of the Gospel; nor even relish them, when they are proposed to him, so long as he judges of them by the light of his reason only: and that upon this account, *because* those doctrines are solely derived from the wisdom of God, which is superior to our wisdom; and will even seem *foolishness* to such a man, *because* those doctrines are not such as his natural reason, or wisdom, would suggest to him.”

The text therefore, you see, consists of two distinct *affirmations*, with a *reason* assigned for each. 1. That the natural man receiveth not the things of the spirit of God, *for* they are foolishness unto him: and 2. that he cannot know them, *because* they are spiritually discerned.

I begin with the *last* of these assertions. I. That the natural man cannot *know*, i. e. discover, the doctrines of the Gospel, is so clear, that this assertion hardly requires any proof; or, if it do, the reason given in the text is decisive—*because they are spiritually discerned*—i. e. because the knowledge of them is derived from the spirit of God. For, how can man’s understanding penetrate the secrets of divine counsels? Or, as the Apostle himself manages the argument much better, *What man knoweth the things of a man, save the spirit of man which is in him? Even so, the things of God knoweth no man, but the spirit of God.*

II. His other assertion—*That the natural man receiveth not the things of God*, i. e. is indisposed to receive them—is more interesting to us, and will

require a larger illustration. His reason for this assertion is, *For they are foolishness unto him*. The reason is very general, and therefore obscure: for you ask how or whence is it, *that those things are foolishness unto him?*

I answer then, 1. because, *he could not discover them*. It is argument enough, many times, with the natural man, to reject any doctrine, which his own sagacity was unable to find out. For, taking for granted the all-sufficiency of human reason, and that what is knowable of divine things is within the reach of his own faculties, he concludes at once that such doctrines as he could not have discovered are therefore false. If it be only in matters of human science, a discovery, which very much transcends the abilities of common inquirers, is for that reason ill-received and slighted by many persons. Much more may we suppose this prejudice to be entertained against discoveries which no human abilities whatever could possibly have made.

But 2. a further reason why such things are thought *foolish* by the natural man is, because they are widely different from his notions and apprehensions. He was not only unable to *invent* them himself; but, when proposed to him, he cannot see how they should merit his regard, being so little suited, as they are, to the previous conclusions of his own understanding. Now this prejudice is of great extent; and is almost natural to the pride of human reason.

For, supposing a divine Revelation to be given at all, men form to themselves certain notions of what it must needs be; and finding that it does not correspond to those notions, *they receive it not*, i. e. they conclude it to be unreasonable.

Thus, *one* man imagines that the Gospel could be only a republication of the law of nature. He finds it is much more; and therefore, without further search, infers its falshood. *Another* man admits that the Gospel might be an extraordinary scheme for the advancement of human virtue and happiness: but then he presumes that these ends could only, or would best, be answered by a complete system of moral truths, and by making the future happiness of man depend upon moral practice only. He understands that the Gospel proposes to reform mankind by *faith*, and holds out its rewards only to such as are actuated by that principle. He rejects then a scheme of religion which

so little accords to his expectations. A *third* person allows that *faith* may be the proper object of reward, but a faith in *God* only: to his surprize he perceives that this faith is required to be in Jesus, the son of God indeed, but the son of man too, and in him *crucified*; that the Gospel supposes mankind to have been under the curse of mortality, and to be redeemed from it only in virtue of Christ's sacrifice on the cross. This strange dispensation is nothing like that which he should have planned himself: it is therefore disbelieved by him.

Thus it appears how the *natural man* is disposed to think unfavourably of the Gospel, because its doctrines are not such as he should previously have expected. But another and more fatal prejudice misleads him. For

3. The things of the spirit seem *foolishness* to the natural man, because on the strictest inquiry he cannot perhaps find out the reasons of them; and must admit them, many times, upon trust, as we say, or, in the language of Scripture, on a principle of *faith* only. This experienced inability to search the deep things of God hurts his pride most of all. That the divine counsels are *beyond* his discovery, may be true; that they should be *besides* his first hasty expectations, may be digested: but that, when discovered and considered, they should yet elude his grasp, and not submit to be comprehended by his utmost capacity, this disgrace is insupportable to him. Yet such are the fundamental doctrines of the Christian Revelation. "The forfeiture of life and immortality, for all mankind, in consequence of one man's disobedience," implies a degree of rigour in the divine justice, of which he cannot understand the reason. On the other hand, "The restoration of that lost inheritance by the transcendent humiliation of the Son of God," is an abyss of mercy which he can still less fathom. These two principles, on which the whole scheme of the Gospel turns, are not to be scanned by human wisdom, and must be admitted on the authority of the Revelation only. The natural man finds his reason so much discountenanced and abased by its fruitless efforts to penetrate these mysteries, that he has no disposition to *receive*, nay, he thinks the honour of his understanding concerned in *rejecting*, such doctrines.

4. The *fourth* and last reason I shall mention (and but in one word) for the natural man's unfavourable sentiments of revealed religion, is, That the

wisdom of this scheme, so far as it may be apprehended by us, can only appear from considering the harmony of its several parts, or, as St. Paul expresses it, by *comparing spiritual things with spiritual*^[36]; a work of time and labour, which he is by no means forward to undertake. So that, as, in the former instances, his indisposition arose from the *pride* of reason, it here springs from its *laziness and inapplication*.

I omit other considerations, which indispose men for the reception of the Gospel; such I mean as arise from the perversity of the human *will*; because I confine myself at present to those only which respect the exercise of human *Reason*. Now it has been shewn, that this faculty, as it is commonly employed by those who pride themselves most in it, is unpropitious to Revelation—*because*, it cares not to admit what it could not discover—*because*, it willingly disbelieves what it did not expect—*because*, it is given to reject what it cannot at all, or cannot, at least, without much pains, comprehend. So good reason had the Apostle for asserting, that *the natural man receiveth not the things of the spirit of God!*

Very much of what has been here observed of *Unbelief*, might be applied to what is so prevalent in our days, and is termed *Socinianism*: which, though it do not disown altogether the authority of revealed religion, yet takes leave to reduce it to a small matter, and to explain away its peculiar doctrines, by a forced and irreverend interpretation of Scripture. So that the difference is only this: the *unbeliever* rejects revelation in the gross, as wholly inconsistent with *human* reason; the *Socinian* admits so much of it as he can bend, or torture into some conformity with his *own* reason.

But I have considered this species of *Unbelief* on a former occasion.

At present, I conclude, on the authority of the text now explained and justified, that no abilities whatsoever of the professed unbeliever bring any the least discredit on Christianity, because we know that the two inherent defects of the natural man, *pride* and *indolence*, very fully account for his unbelief, without supposing any want of evidence or reasonableness in the Christian Religion.

Let it then be no discredit to the Gospel, that it requires *faith*, which is but another term for MODESTY, in its professors. With this amiable, and surely

not unreasonable, turn of mind, the sublimest understanding will not scruple to receive the things of the spirit of God; without it, the natural man cannot receive them: *for*, as the Apostle declares, and this whole discourse testifies, *they are foolishness unto him*.

A
CHARGE
OF THE
BISHOP OF WORCESTER
TO THE
CLERGY OF HIS DIOCESE.

DELIVERED IN THE YEAR 1796.

A CHARGE, &c.

REVEREND BRETHREN,

THE Christian Church has, in no age, been exempt from trials. The *faith and patience of the Saints* have been successively exercised by persecution, by heresies, by schisms, by superstition, by fanaticism, by disguised or avowed infidelity, and sometimes by downright atheism.

In the midst of these perpetual changes, the duty of US, the Ministers of the Gospel, is one and the same, TO PREACH THE WORD, *in season and out of season*, that is, whether the circumstances of the time be favourable to us or not^[37].

Concerning the *evidences* of the Gospel, or the grounds on which our belief of it is founded, I say no more at present, than that they have been accurately considered, and set forth at large, by ancient and modern writers, and are in themselves abundantly satisfactory.

Taking for granted therefore, as we well may, the divine authority of our holy Religion, there can be no dispute about the obligation we are under to PREACH it with diligence. But this may be done in several *ways*: and it may be of use to consider in WHAT way we shall most effectually discharge that duty.

The Apostle delivers the whole secret in one word, when he ordains—IF ANY MAN SPEAK, LET HIM SPEAK AS THE ORACLES OF GOD. And my present business will be to unfold the meaning of this text, or rather to deduce the *consequences* which naturally flow from it.

We are to *speak as the Oracles of God*: that is, as men, who have it in charge to deliver the will and word of God.

I. It follows then, FIRST, that we are to preach the Gospel SIMPLY AND PLAINLY; i. e. 1. to deliver Scripture truths, in opposition to merely human tenets and positions: And 2. cogent and immediate inferences from those truths, in exclusion of far-fetched and fanciful deductions.

1. Having a *message* to deliver, our business is to report it with fidelity, and, as a message coming from *God*, with all imaginable reverence. Human ingenuity may be employed in other compositions, but has no place here. Our own fancies, and even persuasions, so far as they rest on our own discovery, must be kept distinct from revealed truths; and *the two sorts of learning, philosophy and divinity* (as the wisest man^[38] of the last age advised), *are on no account to be blended together*. The reason is, that they stand on different foundations; the one, on the use of our natural faculties, the other, on supernatural illumination only. The latter we call *Faith*; the former, *Opinion*, or, as it may chance, *Knowledge*.

Some regard must be had to this distinction, in discoursing on Christian *morals*, where Reason can do most. But, as to articles of *faith*, that is, the sum and substance of Christianity, properly so called, the rule is to be observed universally and inviolably.

2. It follows also, from our speaking as the *oracles of God*, That we take great care how we deviate from the sacred text, either in our conclusions from it, or in our glosses upon it. Our *conclusions*, unless immediate and direct, and even countenanced by the inspired writers themselves, may easily mislead us. For the nature of the subject being not at all, or very obscurely, known, we have but a dim view of the truths necessarily connected with it. Great caution, then, is in this respect necessary. It is not less so, in *explaining* the sacred text. An oracle of God should be delivered either in its own words, or, at least, in words clearly, and according to the best rules of interpretation, explicative of them. The contrary practice is evidently irreverent, rash, and even prophane. Had this circumspection in reasoning *from* revealed truths, and in commenting *upon* them, been strictly observed, all those heresies which have corrupted, and still corrupt the faith, had been prevented; and the Church of Christ had happily enjoyed the great blessing we daily pray for, *The unity of the spirit in the bond of peace*.

II. It follows, in the next place, from our being instructed to *speaking as the Oracles of God*, that we preach the truths of the Gospel AUTHORITATIVELY, in exclusion of doubt or hesitation.

This is a consideration of great weight, and puts a wide difference between the Christian preacher and the theoretical discourses. When weak men have no ground to stand upon in their moral or religious enquiries but their own industry and ingenuity, they may well suspect the soundness of their conclusions, and had need deliver them with distrust and caution. But the word of God is unquestionable. What is built upon it is certainly true. Our modesty therefore suffers nothing from announcing truths, so derived, with perfect assurance^[39].

The advantage of this mode of preaching must be obvious to every body. It was observed by the Jews in the case of our Lord himself; who, *speaking as the oracles of God*, and as *God*, astonished his auditory, for that *he taught them as one having authority, and not as the Scribes*^[40]: as having *authority*, because he uttered nothing but infallible truth, which he had received from God, and had even a right to deliver in his own name; and not as the *Scribes*, who might indeed have spoken with authority, if they had duly respected the Law of Moses, which was the Law of God; but had forfeited this advantage by the liberty they took of mixing with it their own glosses and traditions^[41]. A perpetual and awakening admonition to the Christian preacher never to forget or betray his high privilege of speaking with that tone of authority which becomes his office, and commands attention^[42].

This authoritative mode of preaching requires that we carefully avoid, in our public discourses, whatever has the air of CONTROVERSY^[43]. Our business is to speak undoubted truths, not to dispute about uncertain opinions. There are many points, no doubt, relative to the Christian Religion, besides the evidences of it, that may be properly inquired into, but not in our Churches. We are to press *there* only what we know to be true, and to press it *for that reason*. Let such persons, then, as are curious to pry into abstruse questions, have recourse to the *Schools*, where such discussions are in their place; or to *Books*, where they may be regaled with this sort of entertainment to satiety. But let them not carry this sceptical humour into that *Chair*, whence oracles only should proceed.

The preacher will indeed say, his design is to recommend and illustrate the truth by the use of reason. It may be so: but let him remember, that *the plainest truths lose much of their weight when they are rarefied into subtleties*^[44]; and that what is readily admitted on the authority of God's word, becomes doubtful to the common hearer, when we would prove it by ingenious argumentation.

To compleat the character of a Christian Preacher, it follows as a

III. Third inference from the Apostle's rule of *speaking as the oracles of God*, That he inculcate his doctrine with EARNESTNESS and ZEAL, and not with that indifference which is usually found, and cannot be much wondered at, in a teacher of his own inventions.

The Christian preacher should, I say, speak with *earnestness*; that is, with a solicitous concern to instruct and persuade, such as the known truth of his doctrine warrants. This earnestness must also be attended with *zeal*; by which I mean nothing extravagant or fanatical; but such a fervour of application as must become an Instructor, who, besides the certainty, knows the *moment* of what he utters.

These rules, it is true, were not unknown to the ancient masters of Rhetoric, who told their scholars, That to *convince*, and, much more, to *persuade*, they were to speak with force and warmth. But to do this, they were first to be convinced and persuaded *themselves*^[45]; which, in their case, was no easy matter. For the principles they went upon in their reasoning on moral or religious matters, were frequently such as they could not confide in; or the end they aimed at, in applying to the passions, was in no high degree interesting. In spite of the rule, then, their discourses were often feeble and unimpressive. It is quite otherwise with the Christian preacher. For we are not recommending a scheme of notions which we have framed out of our *own heads*, or which we think in some *small* degree conducive to the benefit of our hearers. But we speak that which is *indisputably* true; and inforce that which, out of all question, concerns us most, "The salvation of our souls, and eternal happiness." The coldest heart must be touched with sure truths, and cannot impart them without vehemence.

I intimate, rather than express, my meaning to you in few words; both because the time allows me to do no more, and because I know to whom these hints are addressed. For your experience in the ministry of the word must have prevented me in all I have *said*, and will readily supply what I have *omitted* to say. I assure myself, therefore, you will come with me to this short conclusion, “That in our sermons we should execute our commission with FIDELITY, because it is *a commission*—in the way of AUTHORITY, because it is a *divine* commission—and lastly with ZEAL, as knowing the *end* of our commission, and the infinite importance of it.”

By this method of instruction (of which there is no want of examples, or even *models*, in the sermons of our best preachers^[46]), by this Apostolic mode of preaching, I say, we shall do justice at once to our ministry and ourselves. By speaking as *the oracles of God*, we shall speak as we ought to speak; and we shall speak with an energy that can rarely fail of effect. We shall alarm the careless, instruct the ignorant, confirm the weak, reclaim the perverse, disconcert the wise, and silence the prophane. We shall do this, and more, in the strength of him who bade us *teach all nations*. And if we teach them in the way which the Holy Spirit enjoins, we may confidently expect the completion of that gracious and animating promise—LO, I AM WITH YOU ALWAYS, EVEN TO THE END OF THE WORLD^[47].

A
CHARGE
OF THE
BISHOP OF WORCESTER
TO THE
CLERGY OF HIS DIOCESE.

DELIVERED IN THE YEAR 1800.

A CHARGE, &c.

REVEREND BRETHERN,

I FOUND it necessary to defer my Visitation of you somewhat longer than the usual time; and have even now no pressing occasion to trouble you with many words of advice or pastoral exhortation.

For it is with great satisfaction I observe that, in the present eventful crisis, the clergy in general, and those in particular committed to my charge, have zealously performed their duty in those instances, that have chiefly called for their exertions.

If the unprecedented *expences* of a just and unavoidable war, against an enemy the most outrageous that has ever alarmed Christendom, have been felt by all; you have not only supported your share of them with becoming alacrity, but have done your utmost to infuse into others the same ready obedience to the authority of Government, and the same zeal for the support and maintenance of our invaluable Constitution.

If, again, for the punishment of our sins, and to recall us to a due sense of sobriety and piety, it has pleased God to visit us with *inclement seasons*, and with the usual effect of them, an extraordinary scarcity; you have every where come forth to assist the poor out of your own, not always affluent, incomes, and to solicit the contributions of your parishioners with such effect, as demonstrates *their* Christian temper, as well as your own watchful care and diligence.

If, lastly, the *portentous libertinism* of the times hath menaced the destruction of all civil subordination, and even set at defiance all the sacred ties of our holy Religion; you have not been wanting, in your respective spheres, to admonish the people of their duty; to revive in them that veneration of God's word and will, which had been their support and safety

in former ages; and, agreeably to your solemn engagements at your Ordination, *to banish and drive away all erroneous and strange doctrine.*

Having then so much to approve in your conduct, little remains but to put you in mind of those standing duties of our ministry, which should never be omitted, and cannot be too frequently recollected by us. And, of these, one is so particularly called for in the present moment, that I shall make it the subject of my address to you.

I mean the duty of *Catechizing* the children of your respective parishes. For, since the enemies of all goodness are unwearied in their endeavours to corrupt the young and unwary, and to eradicate from their minds, as far as they can, the first principles of religion and virtue, the Christian minister cannot by any means so effectually counteract their designs, as by a contrary conduct. In other words, he must labour incessantly to instruct the rising generation in the first grounds and elements of Christianity, contained in that excellent summary of faith and practice, which the Church has enjoined to be taught in its CATECHISM^[48].

Now the uses of discharging this part of the pastoral care with persevering industry are evidently very great in respect, 1. To the Catechumens; 2. To the congregation present at these exercises; And, 3. lastly, To the officiating clergy themselves, the younger part of them especially.

1. The Catechumens themselves cannot but be greatly benefited by this regimen. For the intention of the Church is, that, by the care of their parents, and by means of those little schools which are set up in all places, young children should be taught, as soon as they are able to attend to any thing, the Church Catechism. And when, by some practice in this discipline, they can repeat it well, they are to be sent to the Minister of the parish, to be by him publicly in the Church, at appointed seasons, proved and examined before the Congregation. This usage being continued for some years, not only the responses to the interesting questions in the Catechism must be deeply infixed in their memories, but something of the sense and meaning of what they have learned, will be gradually apprehended by them. So that, by the time they appear before the Bishop for Confirmation, if their respective masters and teachers be not wanting to them, they must have acquired a competent knowledge of those important doctrines and precepts,

which are contained in it. Add to this, that, though at the time of learning their Catechism their knowledge of it be not considerable, yet it is of the highest importance that it be learnt, and that they can readily recite it. For, this foundation being laid, they will, in maturer years, and as their understandings open, the more easily call to mind the rules of their duty, and profit the more by any future instructions conveyed to them in sermons, in the use of the Liturgy, and otherwise.

Such will especially be the case, if the children be accustomed, as they should be, to make their answers distinctly and deliberately; and, if the Minister intermix some short hints and observations of his own, tending to make the sense of those answers easy and familiar to them. So much for the *Catechumens*; I observe,

2. Further, that the whole *Congregation* present at these exercises must be specially edified by them.

The parents and friends of the catechized children will, for obvious reasons, take a lively interest in this public trial of their sufficiency. They will listen themselves, more attentively perhaps than they had ever done before, to the *questions* and *answers*, and will enter further into the drift and use of them. Nay, the whole congregation will be put in mind of those fundamental lessons of piety, which they had heretofore learnt and repeated themselves, and be now capable of reflecting more deeply upon them. So that the old will carry away with them much solid instruction, while the young are training up to smaller degrees of it.

There is no doubt, then, of the benefit which the Congregation would derive from this practice of Catechising. But it would rise still higher, if the Catechizers, besides interrogating the children, and trying their memories, would further take this opportunity of teaching all present the momentous truths contained in this breviary: I mean, if, during the season of Catechizing, they would make the several parts of the Catechism the subject of their Sermons. And, to induce them the rather to do this, I add,

3. Lastly, that, by exerting their industry and talents in this way, the Clergy themselves will derive no small use from this Catechetical institution.

From the earliest times of Christianity, care has been always taken to provide *Confessions*, *Creeds*, and *Catechisms*, for the use of Converts and the newly baptized. These were so contrived as to contain in few words the fundamental doctrines and commands of our Religion; that so they might be easily understood and remembered. Of these summaries, several were drawn up by our Reformers; and, after some changes and improvements, were reduced at length into our present *Church Catechism*, the most convenient and useful, because the simplest and shortest, of all others.

All these, whether of earlier or later date, are well known to the Clergy, and without doubt are studied by them.

Besides, some of the most eminent of our Divines have applied themselves particularly to write comments on these Catechisms, to explain their meaning more fully, and to give the most accurate expositions of them. These expositors are so numerous, and so well known, that I should scarce have mentioned the names of any, if two of them, I mean Bishop Pearson and Dr. Barrow, did not deserve to be specially recommended to the student in Divinity, for their superlative excellence.

Now then, by the use of our protestant Catechisms, and of the many learned Commentators upon them, the younger clergy, as well as the more advanced, will have such abundant materials before them, that they may, with no great trouble, and with extraordinary benefit to themselves, draw up a set of Sermons and Lectures to accompany their Catechetical examinations. I say with extraordinary benefit to *themselves*; because it is certain that he who takes due pains to teach others, teaches himself: nor can the least prepared of our brethren be at a loss to furnish his mind with a competent, indeed a sufficient, degree of knowledge; so as to instruct his congregation in all the Articles of the Church Catechism, that is, in all the necessary points of Christian faith and practice.

In contemplation therefore of these benefits, I recommend this mode of catechizing, and of expounding the Catechism in occasional concomitant discourses, to all my brethren very particularly. The children will be trained up for Confirmation in the knowledge of the first principles of their religion; those of riper years will be confirmed in what they had before

learnt; and the teachers of both will advance their own skill and ability by this course of theological study.

We shall be told perhaps by some, that this way of catechizing is the way to fill the minds of the Catechumens with *prejudices*. And, without doubt, what is taught them in this way is *pre-judged* for them. But by whom? Not by weak, or unskilful, or dishonest persons; but by men, the ablest, the most learned, and the holiest, that have appeared in the Christian world. Such doctrines, so derived, and, let me add, clearly sanctioned by apostolic authority, may surely deserve the name of *truths*, and not of prejudices.

I am persuaded, therefore, that a Regimen, so reasonable and so salutary, will recommend itself to your special notice, as the likeliest means of putting some stop to the licentious principles of the times. I will not suppose that your zeal to do good can be, at such a juncture, less operative, than that of others to do mischief. In a word, by adapting a set of clear, plain, earnest, and scriptural sermons to the authorized office of catechetical examination, we shall provide, at once, that our Congregations be *instructed* in the right way; the way which the wisdom of the Church prescribes; and that we ourselves be duly qualified to *impart* that instruction.

The Grace of our Lord Jesus Christ, and the love of God, and the fellowship of the Holy Ghost, be with you all. Amen^[49].

APPENDIX:
CONTAINING
FOUR OCCASIONAL TRACTS
ON
DIFFERENT SUBJECTS AND OCCASIONS.

OCCASIONAL TRACTS,
CHIEFLY
CONTROVERSIAL.

ADVERTISEMENT.

The controversial Tracts, which make up this Volume, were written and published by the Author at different times, as opportunity invited, or occasion required. Some sharpness of style may be objected to them; in regard to which he apologizes for himself in the words of the Poet:

——Me quoque pectoris
Tentavit in dulci juventâ
Fervor——
——nunc ego mitibus
Mutare quæro tristia.

R. W.

REMARKS
ON
MR. WESTON'S "ENQUIRY
INTO
THE REJECTION OF THE
CHRISTIAN MIRACLES
BY THE HEATHENS."

FIRST PRINTED IN 1746.

ADVERTISEMENT

IN 1746.

The following Remarks were drawn up within a few weeks after the publication of Mr. Weston's Book; but without any intention of printing them at that time, when it was conceived not unlikely that some more elaborate Answer might come out. But nothing of that kind appearing, and it being now no longer probable that there is in fact any such design, the Author has been induced to review his papers, and to give them, with some small additions and alterations, to the Public. How far that *Public* will esteem itself obliged to him for having suppressed them thus long, he presumes not to say; but believes himself well intitled to the thanks of the learned *Inquirer*, as having *still* this merit, that he is the FIRST who has paid his respects to him.

REMARKS
ON A LATE BOOK, ENTITLED,
AN ENQUIRY
INTO
THE REJECTION OF THE
CHRISTIAN MIRACLES
BY THE HEATHENS.

REMARKS ON A LATE BOOK, &c.

THE Writer of the *Inquiry into the Rejection of the Christian Miracles by the Heathens*^[50] having, as he is well assured^[51], an undoubted claim to one of the two reasons for making a work public, *that what it contains SHOULD be new*, and not willing that so uncommon a merit should be thrown away upon his reader, is careful to advertise us of this point himself, and accordingly flourishes upon it with much apparent alacrity and satisfaction through a great part of his Preface. For, not content with this bare assertion of his claim, he grows so elate, as to wonder this important theme should be reserved for him^[52], and that no sagacity of former times had been blessed in the discovery. Nay, lest his very Patron should neglect him, or as if he suspected my Lord might look no farther than the Dedication, he scruples not to mention even there the excellency of his work; and is very frank in declaring his own *good opinion* of it^[53].

An exordium like this, we know, is generally inauspicious. However, it may serve to one end, not the least considerable, it may be, in an author's views, to engage the public attention. For it is indeed but natural to inquire into the peculiar merit of a work that could inspire its writer with such boasts, and fill a place in it, till now sacred to a real or pretended modesty, with such unusual confidence and triumph. And this, we are told, consists in *the discovery of a new solution of a difficulty about miracles*^[54], *which had long perplexed the Inquirer more than all the rest put together*. For, taking into his consideration the argument for the divinity of our holy Religion, as arising therefrom, *he could not help thinking it extremely odd, that such numbers of men, for so long a time, could reject what to Christians in general, and himself in particular, seemed to be of so great weight*^[55]. And the embarrass he was under from this difficulty put him *upon looking for some solution of it amongst the variety of authors on this subject, both ancient and modern*; but to no purpose, it seems, till the felicity of his own genius had struck out a new route, and led him to seek it *in the low opinion which the heathens entertained of miracles*.

And now the whole discovery is out; and, to say the truth, is every way so surprising, that an author of less modesty than ours had assumed a still farther merit upon it. For, wherefore else should he rest in the honour of a new *solution*, when the *objection* itself is *his*? And surely at this time of day, when every species of hostility has been tried, and the whole armoury of the enemy been exhausted in the service, it must be deemed a higher praise of *invention* to have furnished new arms, than to counteract the use of them. Nor do I pay the author too great a compliment in supposing the objection *his*, since he fairly owns *it has always been passed over*^[56], which, in an age like this, when every difficulty relating to Revealed Religion has been sedulously urged, and honestly examined, is in effect saying it was never *started*. And, indeed, this is so much the case, that, instead of dreaming of any objection from this quarter, Christian writers have universally agreed in representing the quick and speedy conversion of the heathen world, as an undeniable evidence of its divinity. And, for the truth of the fact, they appeal to the testimony of the heathens themselves complaining of the enormous growth of the *new sect*; which had spread itself over at orders and degrees of men, insomuch that their altars were neglected, and the temples of their gods left in a manner desolate^[57]. Nay, the Christian apologists, we know, braved them to their very face with the incredible progress of Christianity^[58]. And thus, instead of its being true, as the Inquirer candidly insinuates, *that there was something so exceedingly perplexed and intricate in the subject itself, or something so critical and dangerous in the solution of it, that it was always thought proper to be kept from view*^[59], nothing, on the contrary, can be more evident than that there is no difficulty to be accounted for at all; or, if some more forward projector should affect to make one of it, the pretence might easily, and without any danger, admit a *solution*. So that, upon the whole (if a dealer in novelties were not too much disgraced by so *stale* an allusion), one should be apt to regard the learned writer as having been pushed on to this Inquiry by much the same spirit as, in an evil hour, led the valorous Knight of *Manca* out upon his rambles. For, struck with the conceit of his own superior prowess, and considering withal the loss the world might sustain by his not appearing in it, he marched forth into the land of Religious Disputation, in quest of adventures; where, finding no *real* objections to encounter, he was determined however to create *imaginary* ones, and so, converting the next innocent thing he came at into a monster, laid out his whole strength and

force in the combat. Where too the success of the adventurers is not unlike. For the difficulty, if it be one, is much too hard for the abilities of our Inquirer; as, whatever his antagonist was, the unlucky Knight had always the worst of it. For, in examining the other part of the author's discovery, his answer to the supposed objection, we shall find that as he set out with a difficulty without grounds, so he will salve it by a fact without proof. And this, it will be owned, consistently enough: for, where a phantom only is to be engaged, the hero but exposes himself that goes against it in *real armour*.

——Frustra ferro diverberet umbras.

But let us hear the fact itself. It is maintained then as the basis of the Inquirer's whole work, *that the heathens in general had a very low opinion of miracles; and that this was not put on by them to serve some particular purposes, but was really a principle that influenced their actions on the most interesting and trying occasions*^[60]. The Inquirer has more than once^[61] expressed his apprehensions that the *novelty* of his doctrine would, at least with many of his readers, be a prejudice against its reception; but not once, that I can find, does he appear to have entertained any the least distrust or concern about the truth of it. And yet the public will be apt to think this the fitter object of his fears. For, allowing the utmost weight and force to the several testimonies he has put together, the whole amount of their evidence is this:—*that a few particular persons, many of them under inveterate prejudices against Christianity, expressed but a low opinion of miracles, which they knew to be FALSE, or of certain REAL ones, which they did not believe*. And where is the wonder? Or how has the Inquirer, with all his sagacity, been able to collect a proof of the *low opinion of miracles amongst the heathen in general* from the unavailing evidence of such witnesses? For, is it strange that the Roman præfects^[62] were not the immediate converts of Jesus and Paul, on account of the wonders said to have been done by them? If the Inquirer believes such testimonies to his purpose, I will engage to furnish a long list of them, even as many as there were unconverted heathens, who had the means and opportunity of informing themselves of the truth of his history. Is it remarkable that the miracles of one impostor^[63] are not spoken of with *much* esteem by writers, who were not delivering the

popular opinion concerning them, and who had plainly too much sense to believe them themselves? Or is it so much as *true*, either of him, or the others he mentions, that they were then negligently treated by their professed admirers and encomiasts^[64]? Or, were it *true*, could any thing more be collected from it than that the miracles imputed to them were too trifling in themselves, or too weakly supported, to be believed?

But we have not yet done with the writer's negative testimonies. For he thinks *that* of *Marcellinus* should not be passed over; though the most he can make of it is, that the historian *dissembles* a miracle^[65] wrought to the utter confusion of his Master, and *relates an event, which he was not at liberty to confute*.

What comes next is indeed *positive*, but still less to the writer's purpose. We can scarce think him serious, when he would urge the testimony of Hierocles, Celsus, and Julian, the avowed and virulent opposers of Christianity^[66], as an evidence of a general contempt of miracles in the heathen world. Nor has he better luck with his philosophers. For, is the opinion of a few atheistical speculatists^[67], and perhaps one or two more of better fame, of the least weight in deciding this matter; especially when it is plain, from the very passage referred to^[68], that they saw through the imposture of the heathen miracles; and rejected them *merely* on that account? Can his Ægyptian Gymnosophists, piqued, as they were, at the reputation of the Indian miracles^[69], and yet, in effect, confessing their esteem of them by pretending to work such themselves, can these witnesses be thought deserving the least credit? Above all, is the wonder-working *Apollonius* brought in to disclaim miracles, and that too in a passage intended only to express his contempt of some fooleries in witchcraft^[70]? But what the *philosophers* could not do for him, the *law-givers* he resolves shall, and therefore brings in a long list of sages^[71], all of them, as he thinks, concurring to establish this point. But how? Why, in his *negative* way of witnessing, *in their making no pretence to miracles*—that is, as every body sees, in their making no pretence to what they *durst not* counterfeit, or *did not* want; and when it is certain they *did pretend* to them in the only safe way of a secret intercourse and communication^[72]. But the cause is growing still more desperate. For, are the Christian Apologists to be charged with this *evil principle*^[73]? and that only for maintaining, in their occasional

disputes with the heathens; what the ablest Divines have ever done, and still continue to maintain, the insufficiency of miracles *alone*, and if taken *by themselves*, to establish the divinity of any revelation? an opinion founded, as it should seem, on the express testimony of Jesus Christ^[74]; or, if *false*, which has not been made appear, excusable enough in their situation, when *real* miracles were owned to be in the power of evil spirits, or when at least the general prevalency of this persuasion amongst their heathen adversaries might render it expedient for the Christian writers to argue on the concession of it. But, ill as this treatment is, the venerable Apologists have no cause of complaint. They share but the same fate, as ONE much their better. For, the *dignity* of the writer's witnesses, whatever becomes of their *evidence, is still increasing*^[75]; and having made free with the *Fathers* of the Church (for I say nothing of his *Jews*, not only because he confesses them nothing to his purpose^[76], but because, if their evidence has any weight at all, it *determines* the contrary way^[77]), having, as I said, made free with the *Fathers* of the Church, he next claims the sanction of an *Apostle*. Has then the Inquirer one *sure* and *certain* retreat? And is his novelty at last, all spent and wearied as it is, to elude our hopes by finding refuge in the sacred writings^[78]? So indeed he would persuade himself or his readers. And this, it must be owned, is *no novel practice*. It is ever the last expedient of a sinking cause, when forsaken of all human help, and fearing the just vengeance of indignant reason, to strive to support itself by laying hold on the altar. But the Scriptures are no *sanctuary* for falshoods. We shall therefore esteem it no irreverence to approach the holy place, and, as we are instructed in a like case, to take the *fugitive* from it. The case appears to have been this: In the Apostle's design of breaking an unchristian faction in the Church of Corinth, which had arose, it seems, from a vain ostentation of human science, his business was to discredit their misapplied learning with the people, and to check the arrogance of these *perverse disputers* themselves. To this end, he sets himself to shew that it was not on account of any advantage of skill in human learning or eloquence that God was pleased to make choice of the preachers of the Gospel; but that, on the other hand, he rather chose the *foolish*, i. e. the illiterate and uneducated, the better to expose the weakness of human wisdom, and to display, with greater force, the power and excellency of the *Cross of Christ*^[79]. And this, he proceeds to observe, is but agreeable to the general œconomy of God's providence, which doth not conform itself to our views of fitness or

expediency; but most commonly by the choice of such instruments and means as to us seem *unfit* or *inexpedient*, *destroys the wisdom of the wise, and brings to nothing the understanding of the prudent*^[80]. A remarkable example of which method of dealing with mankind, continues the Apostle^[81], we have in the dispensation of the Gospel, *introduced* in such a manner, and *established* by such means, as both to *Jew* and *Gentile* appear absurd and unaccountable. *For the Jews ask after a sign*, i. e. look for an outward ostentatious display of worldly power and pre-eminence going along with, and attending on the Messiah; and, under the influence of such prepossession, make that a *sign* or test of his coming, and even refuse to acknowledge his Divine mission without it^[82]. Whilst the Greeks, on the contrary, seduced by the charms of a studied eloquence, or inslaved to the tenets of a conceited philosophy, require the Gospel to be preached in agreement to their notions and prejudices; and reject a Redeemer, whose method of salvation is not conformable to the conclusions of their schools, and whose doctrine is unadorned by the graces of their learning. Whereas, in fact, proceeds the Apostle, our commission is to publish, in all plainness, a religion to the world, fundamentally opposite to the prejudices of both. For its main doctrine, and on which hangs all the rest, is that of a *crucified Saviour*; which therefore, as being offensive to the fond hopes and expectations of the Jew, and not suited to his ideas of the *Divine power* and greatness, is to him a *stumbling-block*: And being a method of salvation neither agreeing to their conceptions of the *Divine wisdom*, nor set off with the colours of heathen wit, is to the Greeks *foolishness*. Though yet it is to both these *Jews and Greeks*, when rightly instructed in the ways of God's Providence, *both the power of God and the wisdom of God*^[83]. Thus we see, at length, what the writer's sacred authority is come to; which, having no foundation but in the groundless comment a mistaken passage is thus easily overturned and confuted. For from hence it appears, that the Apostle, far from attesting his whimsy of *the low opinion of miracles amongst the heathens*, does not so much as of Miracles at all: or, if he must be made an evidence in the cause, gives judgment against him; as plainly enough expressing his opinion, that it was not a *contempt of miracles*, but the *conceit of wisdom*, which made the great difficulty to converting the Pagan world.

And now having dispersed his *cloud of witnesses* (which, unlike the *sacred* one it would seem to resemble, instead of illustrating and reflecting a fuller light on the *fact* it surrounds, serves only to obscure and conceal it) having shewn, I say, if not the falshood of his *fact*, at least the insufficiency of his *evidence* to support it, I might fairly dismiss the remainder of his book without any confutation; the following chapters, as he tells us, being intended to account for this fact, which he presumes to have fully established. But, as he appears unwilling to rest the whole of his cause on the merit of so slight an evidence, and has therefore engaged for a further confirmation of it in the following pages^[84], it will be proper to collect in a few words, what additional evidence may arise from that quarter: And in doing this, I shall think it sufficient to examine, not his premises, but conclusion; and so, leaving him in full possession of his *facts*, to argue with him, in agreement to the design of these slight sheets, on the weight and force of his deductions. And here,

1. Allowing him to have proved *the vanity of the heathen pretensions to miracles*, c. iv. v. vi. in the fullest sense he can wish; and that no *real wonder* was ever wrought, or *oracle* delivered, by any of the numerous pretenders to either, what will the author say is the proper inference from it? —That therefore the heathens *could* not but have a low opinion of miracles? That, indeed, would be to his purpose; but nothing can be less supported. For were not such miracles and oracles at least generally believed? Or, if several impostures were detected, does the author imagine that such detection would utterly sink the credit of all future miracles^[85]? A writer, so skilled in the workings of superstition, and who appears to have taken much pains to pry into the dark corners of humanity, ought to know, that the passion for wonder is a foible too *intimately* connected with our nature to be thus easily driven out from it. And the history of mankind gives the strongest confirmation of this, in relating, as it does, notwithstanding the presumed effect of such discoveries, the very ready reception, which Miracles have ever met with. The truth is, the Inquirer might as well have set himself to prove *the vanity of the Popish pretension to miracles*, and then have inferred, from the frequent detection of impostures amongst them, that therefore the Papists cannot but have *a very low opinion of miracles*. This, I say, had been as logically inferred; and yet, I believe the first traveller from Rome, or next account he should look into of Italy, or

Spain, would infallibly spoil the argument, and confute his conclusion. And, to do the author justice, he seems not unconscious of this, when, after all the learned pains he had taken to establish this point, he allows, *that though his argument had shewn, what little reason the heathens had to think, that miracles had ever been wrought amongst them at all, yet it does not of consequence follow, that they would certainly make use of the light, that was held out to them; but observes, that whether they did or not, their esteem of miracles will be but little increased; for if ever they were alarmed by an appearance, which they could not tell how to account for, or overborne by the weight of such testimony, as they could not tell how to invalidate, the principle of magic was one general recourse.*

2. His strong-hold, then, we see, at last, is Magic. We shall follow him therefore one step further, and try if we cannot dislodge him from it. The fact conceded to him is, *that the persuasion was pretty general in the heathen world, that by means of magic, that is, of certain superstitious rites, and sacrifices, and by certain words and invocations of dæmons, many things could be done exceeding the power of man; and that accordingly many seeming miracles, wrought amongst them, were imputed to this power of magic.* But then to infer from hence, as the Inquirer would have us, that therefore the heathens under the persuasion of these principles, must necessarily entertain a very low opinion of *all* miracles, is sure concluding too fast. For, though I could admit this to be a tolerable reason for the rejection of *some Pagan* miracles, it does not, we see, at all affect the *Christian*; which *only* are, or ought to be, the concern of his book. So that the argument, fairly stated, confutes itself. For it stands thus: The heathens conceived many miraculous appearances, produced for some *trifling* or *noxious* purpose, to be in the power of certain persons, acting under the power of *bad dæmons*^[86], and by the means of certain *magical, and superstitious rites*.—THEREFORE they of necessity entertained a low opinion of *all* miracles, though wrought by pawns, claiming their power and pretensions from *God* himself, for purposes the most *momentous* and *benevolent*, and without the interposition of *any* sacrificial or superstitious rites^[87]. But this is not all: We learn from the history of the propagation of Christianity, that in certain places (and who can doubt in all where the pretended powers of magic were opposed to the genuine workings of the Spirit of God?) such methods were used by Christ and his Apostles, as were

sufficient to manifest the difference of their miracles from those of magicians, and to assert the divinity of their mission, in the very judgment of the magicians themselves^[88]. And this, as it seems, always with such illustrious evidence, as to render it inexcusable in those, who had the opportunity of seeing and examining the difference, to remain unsatisfied of it. For I cannot but think it worthy the Inquirer's regard, though no *novelty*, that the Heathen charge of *magic*, was but in other words the Jewish accusation of *Beelzebub*; either of them the genuine result of pure unallayed malice, and, concerning which, our Saviour's determination is well known. And therefore when the learned writer contends, that the Heathens had a low opinion of miracles in general, on account of the supposed power and efficacy of charms, and magical incantations, he might with equal reason here have taken upon him to shew, that the Jews also had it low opinion of miracles in general on account of the supposed power of their diviners, and sorcerers, of which we likewise bear much amongst them, and from their ascribing, as we know they did, many miraculous effects and operations to them: an opinion, which, I presume, the learned writer will not find it to his purpose to maintain.

3. As to the author's argument from the *multiplication of the Heathen Gods* (which is the only remaining part of his book I think myself concerned in^[89]) if he means to conclude from it, that in consequence of the multitude of pretended miracles, flowing from such belief, miracles themselves must of necessity *lose their force, and sink in their esteem*^[90], it is very frivolous, and admits an easy answer. For, besides its inherent weakness of bad logic, in concluding from a cause of possible efficiency to a *certain* effect, it has the misfortune, in common with his other reasonings on this subject, to be confuted by plain matter of fact. And, for his satisfaction in this point, I refer him once more to the case of the Romanists; who, notwithstanding the multiplicity of their saints, all of them dealers in miracles, and swarming in such numbers as to equal, if not exceed, the rabble of Pagan divinities, do not yet appear to have contracted from thence and disrelish, or disesteem for miracles. The truth is, the whole additional evidence arising from the main of his book in confirmation of his pretended fact, *that the Heathens entertained a low opinion of miracles*, is so very inconsiderable, that, as we now see, it hardly amounts to a bare probability. For, after all, the reader will perhaps incline to think, contrary to what the learned writer directs

him, that such prevalency of magic, and multiplicity of gods, is no bad proof of the esteem and credit, that miracles were in amongst them. At least, 'tis no unfair presumption, that a people could not be so averse to miracles, as the author pretends, nor generally be possessed by a thorough contempt of them, when, notwithstanding the frequent detection of *false* miracles, and more than one degrading solution at hand for the *true*, they should yet be able to maintain their ground, and take such footing in the popular belief, as to be continually affording fresh occasion to imposture, and fresh encouragement to the dealers in this traffic to practise on the wonder and credulity of mankind.

2. And whoever sets out with this surmise, (which is apparently not ill-founded) will find it greatly strengthened in observing, that of all the reproaches cast upon the Heathen world, and of all the prejudices objected to them by the first propagators of Christianity, this of the contempt of miracles was not so much as once mentioned, there not being the least hint, or remotest intimation in the sacred writings of their labouring under any peculiar prepossession of this kind. A circumstance perfectly unaccountable, if what the Inquirer contends for be true, since such prepossession could not but greatly obstruct the Apostolic labours, and make it necessary for them to bend their first care and application that way.

3. And it raises the wonder still higher to observe, that whilst the Heathens escape uncensured in this respect, the Jews are severely rebuked for their incredulity and disregard miracles^[91]; where too, by the very cast and turn of the reproof, the Heathens are to be understood as less chargeable on this head, than the Jews.

4. But, what has still the worst aspect on the writer's scheme, is, that whilst the Apostles are quite silent as to this charge upon the Gentile, nor appear once to rank it in the list of such impediments, as retarded the conversion of the Pagan world, they are at the same time very express in declaring to us, what the chief of those *impediments* were. They in part have been already suggested^[92], and were, if St. Paul may be credited, in reality, these: 1. *A conceit of superior wisdom* amongst the men of letters and education^[93]. And, 2. *The corruptions and gross idolatries* of the people at large^[94].

5. But what! it will after all be asked, Is there then no truth in what the learned writer has advanced concerning the Heathen contempt of miracles; and in particular, is his long detail of principles and circumstances, concurring, as it should seem, to produce such contempt, utterly without all force or meaning?

This has nowhere been said; and the contrary is what I am now ready to affirm. For, to do the Inquirer justice, it was upon the basis of a good, old truth, that this wondrous novelty was erected. A fine writer^[95] will tell us what it was. “We may observe,” (says he, in accounting for the silence of Pagan writers in respect of our Saviour’s history) “that the ordinary practice of MAGIC in those times, with the many pretended PRODIGIES, DIVINATIONS, APPARITIONS, and LOCAL MIRACLES amongst the Heathens, made them less attentive to such news from Judæa, till they had time to consider the NATURE, the OCCASION, and the END of our Saviour’s Miracles, and were awakened by many surprizing events to allow them any consideration at all.” We see here the ground-work of our author’s performance, and have determined to our hands with great accuracy, how far his general position is true, and to what extent the particular circumstances and situation of the Heathens would in *reality* affect their opinion of miracles. Had the learned writer confined himself within these limits, he would, I conceive, have had reason and history on his side, and, whatever alarm he may be in *from the froward and contentious spirit of party in religion*, no *enemies* to oppose him. But then this, it must be owned, had been saying nothing *new*: The world had lost the benefit of a discovery, and the author, what of all things he would most regret, the glory of INVENTION.

THE
OPINION
OF AN
EMINENT LAWYER, &c.

FIRST PRINTED IN 1751.

THE
OPINION
OF AN
EMINENT LAWYER,
CONCERNING
THE RIGHT OF APPEAL

FROM THE VICE-CHANCELLOR OF CAMBRIDGE, TO THE SENATE;

Supported by a short historical Account of the JURISDICTION of the
UNIVERSITY.

In Answer to a late Pamphlet, intituled,
*“An Inquiry into the Right of Appeal from the Chancellor or Vice-
Chancellor of the University of Cambridge,”* &c.

*Is ne erret, moneo, et desinat laccessere.
Habeo alia multa, nunc quæ condonabitur;
Quæ proferentur post, si perget lædere.*

BY A FELLOW OF A COLLEGE.

THE OPINION OF AN EMINENT LAWYER^[96], &c.

THE dispute *concerning Appeals*, which at present engages the attention of the University of *Cambridge*, is apparently of such importance to the peace and welfare of that great body; that it could not but be expected from any one, who proposed to deliver his thoughts upon it to the world, that he should at least have taken care to inform himself perfectly of the merits of the question, before he presumed, in so public a manner, to concern himself in it.

It must, therefore, surprize the reader of a late *Inquiry into the Right of Appeal*, &c. to find, that the writer of it, whoever he be (for as he chuses to conceal name, I shall not take the liberty to conjecture of it) should adventure to treat a matter of this consequence, without any distinct knowledge of the state of the case itself, or indeed without appearing to possess one single qualification, which is required to do justice to it. For the question, discussed, is of such a nature, that it cannot be determined, nor indeed tolerably treated by any one, who hath not a pretty exact knowledge of the *History, Customs, and Statutes*, of the University; and who is not, besides, at least competently skilled in the *Civil and Ecclesiastical Laws*. And yet this writer, as though nothing else was required of him, besides a confident face, and willing mind, boldly undertakes to decide upon it, under a perfect incapacity in all these respects. Instead of an accurate acquaintance with the Practice and Usages of the University, it appears he had no further knowledge of them, than what a few hasty and ill-considered extracts from the Register had supplied him with. So far is he from being conversant in the Statutes of the University, that he blunders in every attempt to explain the very easiest of them. And, as to his *Law*, he has only skimmed the surface of it for a few frothy terms, without giving the least proof of his being possessed, in any degree, of the sense and substance of it. This utter inability to discuss a point, he had voluntarily undertaken, must be thought the more extraordinary in a person, who, throughout the whole, assumes an air of authority; and though he professes modestly in his title

page to *enquire*, yet, in effect, *prescribes and dictates* from one end of his *pamphlet* to the other. The tone of this disputer, whatever becomes of his reasoning, is all along decisive; and he *does and must insist*, as if he thought his very word of force enough to bear down all the reason and argument, that could be opposed to him.

Indeed the superior airs he gives himself, on all occasions, are not without their use. For persons unacquainted, as the generality of his readers must needs be, with the question itself, are readily enough inclined to believe, that a person so *assured*, cannot be so entirely *ignorant* of the merits of it, as in fact he is. And they who know better, cannot but apprehend somewhat from the assumed authority of a writer, who talks so big; however his total insufficiency might, in other respects, provoke their contempt. For my own part, I could not help considering him as a person of eminent dignity in the University; whose rank in it might give him a right to dictate to the school-boys of the place; for so he gives us to understand, he conceives of *the Members of the University Senate*^[97]. In pursuing my conjectures further about him, I was sometimes inclined to think, from the very reverend regard he every where professeth for the Heads of colleges, that he must, himself, be one of that illustrious body and was led to excuse the superiority of his manner from reflecting, that a habit of governing absolutely in his own college (for so he thinks Heads of colleges have a right to govern^[98]) had insensibly inspired that despotic style and language, which were so disgusting, and had looked so ungracefully, in any other. But then, again, my profound respect and esteem of that venerable order, and my actual knowledge of the great talents, with which these reverend personages so worthily preside in their high places, would not suffer me to imagine, that any of their number could be so unqualified to treat a matter of a merely academical nature, as this writer had shewn himself to be; and especially, as it immediately concerned their own authority, which they so assiduously study, and so perfectly understand. On the whole, I was forced to dismiss this conjecture, as having no reasonable foundation to rest upon, and, in perfect civility and good manners towards a set of men, for whom I have so sincere an honour, could only conclude him, at last, to be some weak and shallow pedant; unknown and uncountenanced by *them*; whose vanity had done him an ill turn; and thrust him unadvisedly on a weighty office, which he had no warrant, as he had no abilities, to discharge.

Under this opinion, both of the writer and his performance, which, as the reader sees, I took not up upon slight grounds, it was not likely I should ever think of giving myself the least trouble about either; much less that I should believe it worth the while to undertake in form, the examination of a foolish pamphlet, which indeed, I had hardly patience enough to peruse. The truth is, it had lain for ever unnoticed by me among the rubbish, which of late hath so oppressed the publick, on the subject of our academical disputes; or, at least, had been left for some future ACADEMIC to discourse of, at his leisure; had it not been for the *Opinions* of two truly learned and respectable Lawyers; which the *Inquirer* had thought fit to intersperse, as a little needful seasoning, in his insipid performance; and which, indeed, give it all the real weight and authority, it can possibly carry with it to men of sense.

The *Inquirer*, as supposing these gentlemen to afford some countenance to the good cause, he is maintaining, thinks fit, on the mention of their names, to drop his crest a little; and, in a lower tone of voice than usual, affects to treat them even with some appearance of respect. Yet this he does in so awkward a manner, as shews it was not usual or familiar to him, to descend to such submissions; for, as the height of that civility, which he was willing to express towards them, he chuses to distinguish them only by the title of the *Gentlemen of the LONG ROBE*. What impression the idea of a sweeping train may possibly make on the phantasy of this writer, I know not; but I, who am more concerned about the *heads* than the *tails* of these learned gentlemen, should have thought it an apter compliment to have turned our attention the other way. Unless, perhaps, he was secretly conscious, that by a little unfair dealing in the proposal of the *Queries*, in relation to which their opinions were asked, their Answers themselves did no real honour to the more essential part of a great lawyer, and so far willing to pin the credit of them intirely on their *gowns*. In plain truth this was the very case, as will appear from the *Queries* themselves, and the *Answers*; together with a few observations, which I shall beg leave to subjoin to them.

“After stating the 42d and 48th of Queen Elizabeth’s Statutes, some circumstances of Mr. A—’s behaviour, and that an appeal of the same nature with his was not quite unprecedented, the two following Queries were put, [*Inq. p. 28.*]

“Qu. I. Whether, in this case, the Vice-Chancellor and his assessors have not acted solely under the *42d Statute; de Cancellarii Officio*; and whether any appeal can lie against the suspension of A. by virtue of that Statute? or whether this case must be deemed one of the *causæ forenses*, and of consequence subject to an appeal by virtue of the *48th Statute, de Causis Forensibus*?

“Qu. II. Whether, if in the case above stated, the said A— hath a right to appeal from his suspension; the same right of appeal will not follow to every delinquent scholar, who shall be punished a trifling mulct or piece of exercise by the Vice-Chancellor?”

After stating, says he, the 42d and 48th Statutes, &c. Whence it appears, that no other evidence was laid before the Lawyers, with regard to the right of appeals, than certain extracts from Q. *Elizabeth’s Statutes*: Which was not the most certain method of obtaining an accurate decision. For, though the Queen’s Statutes alone, as we apprehend, afford *sufficient* evidence of our right, yet they are by no means, as will presently be seen, the *whole* evidence.

But, waving this consideration, let us come directly to the *Queries* themselves. The *first* is a master-piece in its kind, and may be of use to instruct future querists, how to propose their doubts in the most convenient manner.

For instead of asking the Lawyers, whether the powers, given in the *42d Statute*, are subject to appeal, the question is put to them, whether in suspending Mr. A— they had acted under that Statute? Again; instead of inquiring whether the *jurisdiction* given in the *two Statutes* be the same or different, the Query is (on supposition of a difference) to which class of tryals Mr. A—’s case belonged? In short, the Lawyers were made to believe, that this was the main point in dispute, whether the case before them was of a *criminal* or (as the *Inquirer* expresses it) of a *forensic* nature.

It would have been hard indeed if a design so well laid, and so artfully conducted, had failed of success. Accordingly, we find both the Lawyers expressly declaring, that the case in question belonged to the *42d Statute*, and from thence seeming to infer, that an appeal is not to be allowed.

Answers to the Queries.

“To Q. I. I am of opinion, the Vice-chancellor’s authority in the case above stated is well founded by the 42d Statute, *de Cancellarii Officio*, and that the Vice-chancellor and his assessors acted under that Statute; and that this case does not fall under the 48th Statute. And I am of opinion that an appeal does not lie in the present case.

“To Q. II. This in effect is answered by what I have said upon the first Question. And if an appeal might be allowed in the present case, it would be of most fatal consequence to all discipline in the University; since it would take away all distinction between the two Statutes; and every scholar, who should fall under any censure or punishment inflicted by the Vice-chancellor, might have his appeal; and the 42d Statute would be entirely of no effect.

“*Dec. the 12th, 1750. W. N—.*”

“To Q. I. Upon consideration of the two Statutes above recited, it seems to me that the first was calculated to give a jurisdiction and power to the Chancellor, or, in his absence, to the Vice-chancellor, to interpose in criminal matters, *i. e.* in matters relating to discipline: the latter gives a jurisdiction or cognizance in civil matters, *i. e.* matters of controversy concerning civil rights: and therefore the first gives power, *contumaces, &c. suspensione graduum, carcere, aut alio leviori supplicio judicio suo castigare*: by the latter, power is given to determine *causas et lites*, *viz. causas forenses*, for that is the title of the Statute. As to the first, I think that the jurisdiction is final in the first instance: for his power is *judicio suo castigare*; and it must necessarily be so, for immediate imprisonment seems to be one of the punishments which he may inflict against which there can be no appeal, for it may be executed before there can be any appeal. As to the other, *viz.* the civil jurisdiction, there the statute requires speedy determinations; but gives an appeal from his sentences in *foro*, and prescribes the manner of appealing. Upon these principles, I think that no appeal can lie, the suspension of A— being grounded, I think, on the Statute *de Cancellarii Officio*; and that this is not *causa forensis* within the latter Statute.

“To Q. II. If all offences against the Statutes are punishable by this Statute, the punishments for the *minora*, as well as the *majora delicta*, would be appealable; which I think would be absurd.

Linc. Inn, Dec. the 13th, 1750. R. W—.”

It is seen that both these opinions rest on one common foundation, viz. that the 42d Statute gives authority in none but *criminal*, the 48th in none but *civil* causes. Now if this support shall appear to be wholly imaginary, all that is built upon it must fall to the ground. Let us proceed then to examine the Statutes themselves; or rather simply to represent what is contained in them. We shall have no occasion for nice distinctions, or remote inferences; the plain literal sense of the passages to be cited will overthrow at once the principle we are opposing; will afford such an evidence as cannot be resisted, until a method of interpreting shall be found out, wholly independent on the received rules of Criticism and Grammar.

The 42d Statute is entitled *De Cancellarii Officio*, and contains an enumeration of the various powers conferred on him by the University. It gives him a right to *hear and decide controversies; to call congregations; to give and refuse degrees; to punish the transgressors of the Statutes; to see that the University officers do their duty; to inflict censures on some particular sorts of offenders therein named, in some cases with, in others without, the consent of the Heads; to give or refuse leave to Members of the Senate to go out of a Congregation before it is ended, and to impose a mulct on those who depart without leave; to require the presence of regents and non-regents at Congregations and Conciones ad clerum, and to punish the absent; and, lastly, to make new Statutes, with the consent of the University.*

Now I think I may safely refer it to any reader, whether the single design of this Statute was to convey authority in *criminal causes*? or, whether it be not manifestly an enumeration of the various branches of the Chancellor’s power, intended to give, at once, a general view of the whole?

If any one shall think that the administration of *civil* justice is not here included, I must desire him to read again the very *first* clause. *Cancellarius potestatem habebit ad OMNES—controversias—tum audiendas tum dirimendas.* Nothing sure but the most outrageous zeal for a desperate cause

can make any one affirm that the word *controversias* is necessarily confined to the *trials of offenders*. But, if not, then the Statute gives jurisdiction of both sorts, in civil as well as criminal causes.

With as little foundation has it been asserted that the jurisdiction given in the 48th Statute relates only to *civil causes*. The single ground of this assertion is the title of the Statute, viz. *De Causis Forensibus*. It happens that a certain set of men, by endeavouring for a long time to deceive others, have in the end deceived themselves. For I would, in charity, suppose them to be sincere, when they translate *causæ forenses*, *causes between party and party*. It is true, no such use of the words can be found in ancient authors, or, in what might have been more convincing to them, modern Dictionaries. But what then? Admitting that a school-boy would have construed these words *trials in court*, or *public trials*, yet this sure cannot be alledged as a precedent to grave and wise men: much less can it be expected they should reverence quotations drawn from heathen writers, who had no idea at all of the ways of supporting discipline in an University.

But if the *title* of the 48th Statute will not confine the jurisdiction it gives, what shall we say to the Statute itself? It begins with these plain words, never afterwards restrained or limited, *OMNES causæ et lites, quæ ad Universitatis notionem pertinent, tam Procancellarii quam Commissarii judicio subjiçantur*. If this clause be not general, I should be glad to know whether a general clause be possible? whether any words can be invented of sufficient extent to include trials of every sort? But it is not indeed to be thought strange that the same profound critics, who would confine *omnes controversiæ* to *criminal* causes, should confine *omnes causæ et lites* to *civil* causes only.

After all, I have a good mind to give up this point, for the sake only of trying the experiment, what advantage can be made of it: Let it, then, be supposed that the jurisdiction given in the 48th Statute, and the appeals allowed in it, belong only to *civil* causes; and let it be further supposed that the 42d Statute relates merely to *criminal* causes. What will follow? That the Queen's Statutes allow no appeals, for *that the omission in this Statute amounts to a prohibition*? Nothing can be wider from the truth than this conclusion. For, 1st, the powers given to the Chancellor may not be

exercised in an arbitrary manner, but in strict conformity to the customs and privileges of the University: If this restriction were not always to be understood, the Chancellor might confer *degrees* by his *sole* power; for no mention is made in the Statute of the consent of the University. The powers, then, here given to the Chancellor are to be *limited* by the known rights of the *Senate*; and among these rights no possible reason can be given why that of *appeals* should not be included: a right (as will presently appear) of very great antiquity, perhaps not less ancient than the University itself. 2dly. The very same clause which empowers the Chancellor to judge *omnes controversias Scholasticorum*, that is (as we are now to render the words) *all offences committed by Scholars*, requires him to judge *secundum jus civile et eorum privilegia et consuetudines*; and consequently to judge not finally, but under an obligation of having his sentence *re-examined* on an appeal made to the University.

There is another argument in Mr. W—'s opinion, which seems indeed at first sight, to be more specious. He observes that the Chancellor is to punish *contumacy* and some other *offences judicio suo*, and seems to think these words might be intended to prevent *appeals*. But the learned person must excuse my differing from him also upon this head. The Queen's Statute *De Off. Cancell.* is copied, with some alterations, from a Statute upon the same subject in the *first* collection, she gave the University; as that was *verbatim* from one of King *Edward's*. In this Statute the Chancellor was empowered to punish *judicio suo et assensu majoris partis præfectorum collegiorum*; that is, he was appointed *judge*, they *assessors*. But the latter Statute of Queen *Elizabeth distinguished* these punishments into two sorts, regard being had to the importance of the punishments themselves, and to the rank and condition of the offender. In causes of less moment, and towards offenders of inferior rank, the Chancellor was to proceed *judicio suo*; in others, *non sine consensu præfectorum collegiorum*. These *two* clauses being so manifestly *opposed*, we cannot surely mistake, if we interpret the former *by his sole judgment*, or *by his single authority*; and suppose that nothing further was intended than to enable him to pass sentence, *without*^[99] the concurrence of the Heads; a circumstance which will never shew that his decision ought to be *final*.

There is one point more in which I cannot help dissenting from the gentleman last named. He seems to think there can be no appeal from a sentence of imprisonment; because such sentence is to be executed *immediately*. But I need not observe to so good a judge, that an appeal *apud acta* may suspend this execution; and he has not favoured us with his reasons why this manner of appealing may not be allowed (as it always has been allowed) in the University.

As to the *second Query*, it is a doubt altogether superfluous; and seems to have been proposed for no other reason than to obtain opinions concerning the *expediency* of appeals; which is not surely a point of *law*. The learned gentleman, who has declared his sentiments on the question, must therefore pardon us if we do not receive them with the same deference, as if the subject had fallen within the proper limits of his profession.

But I think it unnecessary to dwell any longer on these *Queries*, or the *Answers* to them; since it is clear that the learned persons were abused by a partial and unfair representation of the case; of which had they been fully informed, as they should have been, by laying before them a just view of the question in debate, and by furnishing them with the proper materials for decide upon it; there is no reason to doubt that persons, so eminently qualified to judge of all disputes of this nature, would have given much more satisfactory opinions about it, and such as the University might safely admit, as decisive in the present case. And I think myself authorized to say this the more confidently, as it luckily happens that the *proper Queries* concerning this very point were, some years ago, put more honestly by a very excellent person, at that time Vice-chancellor of the University; and therefore answered very *differently* by the greatest Lawyer^[100] of this or any age; from whose decision though there lies an appeal, yet his sentence never was, as indeed no good man had ever cause to wish it *should* be, reversed.

These *Queries*, together with the Answer of this great person to them, I purpose laying before the Reader, as a full and perfect confutation of all that has been yet advanced against the *right of appeal to the University*; and carrying with it more authority than any thing which the most knowing academical advocate could possibly say for it. But, that the reader may come the better prepared to judge of the merits of his determination, and as

some further support to it, for the satisfaction of such as are unacquainted with the state of the case itself, I have judged it not improper, in the first place, to draw together *a brief historical account of the jurisdiction of the University*; collected from authentic monuments, which are well known to such as are versed in academical matters; and which, if there shall be occasion, will be produced at large in a more proper place.

The University of *Cambridge* was possessed of a jurisdiction over its own members, as *clerici*, many years before *any* was granted to it by charter from the Crown. This jurisdiction, being ecclesiastical, seems to have been originally derived from the Bishop of the diocese. The causes cognisable by the University were chiefly causes of correction; the rule of proceeding in the Court was the ecclesiastical law, and Statutes of their own making, consonant to that law. The censures inflicted upon offenders were either ecclesiastical, viz. *excommunication*, *suspension*, &c.^[101] or such as were appointed by the Statutes for particular crimes; and the names of *places*, *offices*, *pleaders*, the same as are used in Ecclesiastical Courts to this day.

This jurisdiction was not usually exercised by the University in its *collective* capacity. But a particular officer was empowered to exercise it, under the name of *Chancellor*; who as *official*^[102], acted by an authority derived to him from the University, was accountable to them for the use of it, and liable to have his acts annulled at their discretion; every person who thought himself aggrieved by the Chancellor being at liberty to apply to the Body for redress.

When an *Appeal* was brought before the University, they usually authorized Delegates to hear and judge it, as was agreeable to the practice in other Ecclesiastical Courts.

The jurisdiction here described was not originally independent; for no academical decision appears to have been *final*. An Appeal always lay from the judgement of the University by their Delegates to the Bishop of the diocese, till the University was exempted from his authority, and their jurisdiction made *final* by Royal Charters, confirmed by Act of Parliament.

In the reign of *Henry III.* attempts were made to carry Appeals *directly* from the Chancellor to the Bishop, and so to pass over the Appeal to the

University, which ought to have been an intermediate step. But *Hugh de Balsam*, Bishop of *Ely* (the founder of *Peter-House*), by a rescript, dated Dec. 1264, entirely frustrated all such attempts.

Hitherto, the Appeals to the University had been from *causes of correction and censure*. The University was not as yet possessed of jurisdiction in civil causes. Scholars were first allowed to implead the burgesses and other laics of the town of *Cambridge*, in all kinds of personal actions, before the Chancellor of the University, *anno* 33 *Ed.* I. From that time, the University began to acquire a civil jurisdiction, which, by degrees, was enlarged and established by grants from the Crown in succeeding reigns. And now, in consequence of this jurisdictions, Appeals were extended from criminal to civil causes. Accordingly, in a rescript of *Simon de Montacute*, Bishop of *Ely*, which bears date *16 cal. April, anno* 1341, there is express mention of Appeals to the University in causes of *both* kinds. For the design of this *rescript* is to commission the University to determine *finally* in all *civil* causes, without a further Appeal to his Court; and to prevent frivolous and vexatious Appeals from the University to him in *criminal* causes, by laying the Appellant under the obligation of an oath.

This addition of *civil* power did by no means abrogate or lessen the *spiritual*. We find, in the reign of *Hen.* VI. that all sorts of ecclesiastical authority were adjudged to belong to the University, by the Prior of *Barnwell*, the Pope's delegate; and it was then made appear, that all these branches of power had both been claimed and exercised time out of mind. It is certain, the *probate of wills* hath at all times belonged, and still belongs, to the University. The power of *excommunication* was exercised as late as the reign of *Hen.* VIII. and the power of *absolution* is exercised at this day. This ceremony is constantly performed on the concluding day of each term. And here, to observe it by the way, gentle Reader, a goodly and reverend spectacle it is, to behold the spiritual Head of our University spreading his paternal hands, like another Pope, over his erring and misguided flock, who, in all humility, receive his ghostly absolution on their knees.

It is true, the new objects of litigation, introduced by the royal charters, occasioned an alteration in the *Law* of the University. For the ecclesiastical laws did not suffice for the decision of controversies about civil rights,

particularly contracts between scholars and townsmen, and breaches of the peace. From the time, therefore, that these new causes came before the Chancellor, to the reign of *Edward VI.* his Court was directed, as our Spiritual Courts are now, by a mixed kind of law, made up of canon and civil law^[103]. Yet this must not be understood without restriction. For the University, like other corporations, had all along a power of making *local Statutes*; and not unfrequently particular *usages* acquired the force of Statutes, from long continuance.

But whatever changes were made, either by express Statute, or in consequence of a more extended jurisdiction, the practice of appealing from the Chancellor to the University still continued; only, as was observed, with this difference, that it now was allowed in civil, as before it had been in criminal causes.

The right of appeal which then subsisted received a fresh confirmation from the Statutes made by the University itself. In these Statutes the right is not only referred to and presupposed, but directions are given in regard to the manner of exercising it^[104]; which directions, till cancelled by succeeding Statutes, established the right as effectually as if it had been originally introduced by Statute. The times when many of these Statutes were made cannot be fixed; but it is certain they were collected and transcribed into the Proctors' books between the year 1490 and 1500.

In the reign of *Edward VI.* a body of new Statutes was given in a Visitation under an ecclesiastical commission; which enjoined, among other things, that the jurisdiction of the University should be directed by the *Civil Law*; that is, as every one understands, a mixture of the Civil and Canon Law; or what *Oughten* calls *Jus Ecclesiastico-Civile*; the same which prevails in all Ecclesiastical Courts to this day. And, in the first year of Queen *Elizabeth*, Statutes were again given to the University in a Visitation under a like commission; which were almost an exact transcript of those before given in the reign of *Edward VI.* The right of appealing from the Chancellor to the University received no alteration from these Statutes. For there is no change in either of them by which such Appeals are forbidden or even restrained. Accordingly, the practice appears to have continued to the time when Queen *Elizabeth* gave her *second* body of Statutes (under the broad seal indeed,

but not by Visitors under ecclesiastical commission), which was in the year 1570. What alterations have been made by these, or by the practice of later times, remains to be considered.

It is plain from several passages in Queen *Elizabeth's* new Statutes, that many of the ancient Statutes and customs of the University were designed to be continued; and in Stat. 50 we have a direction given, by which we may understand what Statutes and customs were to be preserved, and what not. Those only she declares to be taken away, *quæ Scripturis Sacris, institutis nostris, istis Statutis adversari videbuntur*; of which number the practice of appealing from the Chancellor to the University was not one.

There is, besides, the less reason to imagine this practice was abolished, because, in Stat. 42, the Queen requires all causes to be heard and determined *secundum jus civile*; and in her Charter to the University, confirmed by act of Parliament, *secundum leges et consuetudines suas, ante tunc usitatas*, which, as appears, were agreeable to the *Civil Law*. This law allows Appeals in cases of correction and censure; and therefore it is *certain* that Appeals were allowed by Queen *Elizabeth*.

Indeed, nothing but a clear and express prohibition could make us imagine, that the right of appealing, a right of particular importance, was designed to be either wholly abolished, or restrained only to civil causes. And such prohibition, had it been the Queen's intention to forbid Appeals in any case, might the rather have been expected, as, in the 48th Stat. where several directions are given concerning Appeals, *one* ancient usage of the University^[105] in relation to them is expressly forbidden: *nec secunda provocatio omnino admittatur*. Yet she gives not the least hint of restraining Appeals to any particular sorts of causes; which surely were an unaccountable omission in this place, had she actually intended to lay them under any such restriction. And, indeed, it is evident from a *MS.* of unquestioned authority, that neither the Body of the University, nor the Heads themselves (some of them supposed to have been concerned in compiling the Statutes), had the least imagination of such restraint. What I mean is, a *MS.* in *C. C. C. Library*, containing *some Complaints of several of the Body of the University, in the year 1572, against Queen Elizabeth's second edition of Statutes, and the Answers of the Heads, &c.* One of their

complaints is *the frustrating* Appellations, by transferring the power of nominating Delegates from the *Proctors*, in whose hands it was before lodged, to the *Caput*; and by encreasing *the forfeit of Appeals*, from a very inconsiderable sum to 20s. with an addition of 2s. to be paid to the Proctor; an expence which, as was then urged by the Body, would prevent *poor scholars injured from the benefit of appealing, having not so much money*. What, now, is the answer of the Heads to this complaint? Why, that, *for the stay of the quietness of the University*, it was necessary to lay Appeals under these restrictions. Not a syllable is said against the right of appeal itself in any case; though the complainants had expressly set forth the importance of having Appeals unincumbered by these limitations, for the *redress of wrongs in general*. Nay, the wrongs they apprehended are even specified; such as punishments *of a regent in the regent-house, for modestly asking a question; or of a disputer, for modestly disputing*; which, if we are to call them *causes* at all, are surely *causes of correction*.

Nay, so far are these Statutes from *prohibiting* Appeals, that they have actually given the strongest sanction to this practice, by admitting the right in very general terms, and prescribing rules for the exercise of it. *Stat. 48*.

The subsequent practice till of late years cannot now be known, either from the neglect or corruption of the University *Registers*, who have not taken care to record the proceedings before Courts of Delegates. Only a few loose papers have been accidentally preserved, from which it appears that Appeals were allowed in *civil* causes, and there is no reason to imagine they were discontinued in causes of *correction*, as no distinction was made by the Statutes on trials between civil and criminal causes.

But if it were true in fact, that no Appeals had been heard between 1570 and 1725, in causes of correction and censure, yet this would not affect the right, any more than the want of Appeals from a censure of a *peculiar* sort would render that single kind of censure unappealable. For, a right extending to various particulars will not surely be lessened from want of opportunity or inclination to exercise it in *every one* of them. And such disuse would be the less strange in the instance before us, because the discipline of the University hath been chiefly supported by censures inflicted in particular Colleges. Little of this business is left to the Vice-

chancellor; and they who know the University, and wish well to it, will not, perhaps, desire to see more of it in his hands.

If the supposed disuse of Appeals in criminal causes shall yet be thought to have abolished the *right*, the opinion now to be produced will at once remove such suspicion; even though it should not be insisted, as it may, that this pretended prescription itself is already destroyed, by *three* instances of Appeals in *causes of correction*, the first of them in the year 1725.

But, before I proceed any further, I would beg leave to make one *general* observation on what hath been now advanced. It is this: A great Civilian had expressly affirmed, “*that Appeals are always admitted in those Courts where the civil and ecclesiastical Laws are in force, where penance, suspension, deprivation, or any censure is inflicted as the punishment of a fault*^[106].”

To all which the writer of *the Inquiry* gives his entire assent: *The observation*, says he, *is undoubtedly just*. Now the capable and impartial reader is left to judge, whether it be not most evident, from the *facts* here offered to his consideration, that the jurisdiction of the University is, in the properest sense of the word, *Ecclesiastical*; and further, whether the *Civil* and *Ecclesiastical Laws* be not *of force* in the University Court. The dispute then is brought to a short issue. *Appeals are*, by the full consent Of the Inquirer himself, *to be admitted*.

I come now to the OPINION itself; of which I will only say, further, that it was not given by the great person hastily or negligently, but with all the care and deliberation which so important a matter deserved: as is clear, not only from his diligence in calling for and inspecting the *Commissary’s Patent*, which, he clearly saw, was of moment to the determination, but from the time he took to consider it. For the *Queries* appear to have been put some time before *Christmas*; and this Opinion bears date the 18th of *March* following.

Qu. I. “Whether Appeals to Delegates by the Statute *de causis forensibus* are restrained to *civil causes*, in which two parties are litigant?”

Ans. The Statute *de causis forensibus* is penned in such general terms, that I think the Appeal to Delegates thereby allowed cannot be restrained to civil causes only, wherein two parties are litigant, but doth extend to causes of correction and censure; the rather because the Appeal from the Commissary to the Vice-chancellor is given in the same clause, and in the same manner, with the Appeal from the Vice-chancellor to Delegates; and the words of the Commissary's Patent extend as well to causes of correction and censure as to civil causes. Now there can be no doubt but that an Appeal lies from the Commissary to the Vice-chancellor in all cases. The entry in Mr. *Tabor's* Register imports that, even in causes of correction, an Appeal lies from the sentence of the Vice-chancellor, when he doth not act jointly with the major part of the Heads of houses.

Qu. II. "Whether by the Statute *de Cancellarii officio*, which binds the Vice-chancellor to proceed *secundum jus civile*, an Appeal to Delegates can now lie in a criminal cause against a prescription of 200 years to the contrary, excepting only the case of *Campbell, anno 1725?*"

Answ. There can be no prescription in this case, because the question depends on Statutes, given within such a space of time, as the Law calls, *time of memory*.

Qu. III. "In case the Delegates should receive an Appeal, from the Vice-chancellor's court in a cause of this kind, and cite the Vice-chancellor to appear before them, what the Vice-chancellor should do? Whether appear before them, and appeal from the sentence of the Delegates to his Majesty in council; or not appear, but apply immediately to his Majesty by petition; praying a prohibition, to stop the proceedings of the Delegates?"

Answ. Supposing that there is a right of appealing to Delegates, from the sentence of the Vice-chancellor, in a cause of correction or censure, no authority can be interposed to stay the Delegates from proceeding. But if the Delegates should not have a jurisdiction, his Majesty in council cannot grant a prohibition to them: and if upon an incident of this kind, the Vice-chancellor should think fit to bring the point to a

judicial determination; the only proper method, is by applying to some of the courts at *Westminster*, for a prohibition to the Delegates proceeding.

18 March 1730.

The reader sees, by this determination, that the question turns entirely upon this point; whether, supposing there had been no Appeals in cases of discipline from the year 1570 to 1725, as is asserted, but without proof, the intermission of the exercise of this right for so long a space, could amount to a legal abolition of it. To which the great Lawyer, whose Opinion has been recited, replies expressly, NO. If any should then ask, what evidence there is of such a *right* subsisting at that time? Besides the Statutes themselves, insisted on in the Opinion, I can now refer him to the brief hints which compose the preceding account of the jurisdiction of the University; and which the reader may be assured, are advanced on the best grounds. Much more might, indeed, have been said; for what I have thought fit to deliver at present on the subject, is but a small part of that evidence, which can and will be produced, if it be found expedient to do it. In the mean while, I may well excuse myself from this trouble. For to talk further on these matters to a person, who appears so wholly ignorant of the History of the University, as the *Inquirer*, were a vain waste of time; and to take the pains of confuting particular objections, founded on that ignorance, a still vainer. Only I will condescend to put him in mind of one essential defect in his argument which runs through his whole pamphlet. It is, that he all along goes on the supposition, that the *express* authority of Statute, is required to make good the claim to Appeals. And he therefore very idly lays out his whole strength, in attempting to prove, that no such express authority is to be found, either in the *old* or *new* Statutes. I own, I could not but smile, at first, to observe the *Inquirer* addressing himself, with so much importance, to this task. But, when afterwards I came to consider, the labour and difficulty, with which he was forced to make his way, for this wise purpose, through the *discouraging* δυσνόητα (for so I presently saw, he found them to be) of the *old Statutes*, I could not, upon second thoughts, but pity his unnecessary sufferings about them; and was even tempted in my own mind, to blame the waggery of *the Fellow of a College*, whose request had drawn him into all this trouble, and who, to divert himself with him, had plainly

put him on so wrong a scent. The truth is, I could not think this usage fair in his *good friend*, to request him to draw out his sentiments, on such a point; especially, as he tells us, his time was so *precious*, and that he had so little of it to spare, amidst *the variety of his necessary avocations*^[107]. It had, surely, been more kind to inform him at once, as I shall have the goodness to do, that no body, who understood the matter in debate, ever pretended to found the right of Appeal on *express Statute*; it being well known, that the *right* stands entirely on the nature of our *jurisdiction*; in consequence of which, there has been a continued immemorial practice of appealing in the University; supposed indeed, and admitted in both the *old* and *new* Statutes, and authorized by the prescription of various rules, for the exercise of it; but neither expressly commanded, nor prohibited in either.

And now, having done this act of charity towards the *Inquirer*, which may prevent his future pains, in puzzling and perplexing himself with the study of the old Statutes; I shall have reason to expect, in return, his good leave to expostulate with him pretty freely on the use, he proceeds to make of this unhappy blunder. For, plumed with the vain conceit of the University's resting their claim on the sole express authority of Statute, he goes on, to insult so considerable a body of men, in the most opprobrious manner; as guilty of the most absurd and irreverent behaviour, as well towards our illustrious Chancellor himself, as the Vice-Chancellor, and his brethren, the Heads of Colleges. What I mean, is in relation to the *Grace*, which the assertors of the right of appeal thought fit to propose, in order to refer the decision of this point to the arbitration of the Senate. He harangues, for several pages, on what he calls, the irregularity and indecency of this proceeding; and affects besides, to cavil at the substance of what was proposed in it. But, good Sir, where was the *irregularity* of the Senate's presuming to confirm, by their own authority, a *right*, essential to their constitution, authorized by immemorial prescription; and which no single Statute, they act under, in any degree contradicts? Or, where was the *indecency* of opposing the exercise of that power in the Vice-Chancellor, which is inconsistent with the very nature of our jurisdiction; for which, he can plead the sanction of *no* Statute; and of which he was never rightfully possessed?

As to the *Grace* itself, the substance of what it proposed, was to this effect: “That the right of appeal, from the sentence of the Vice-Chancellor to the University in all cases, should be confirmed to every member of the *University*; but that this *right*, with regard to persons in *statu pupillari*, should be exercised only by the tutor of each person, interposing in his name.” This, it seems, gives great offence to the *Inquirer*; who, in his tender concern for the authority of the supreme magistrate, is perfectly shocked, to think of the consequences of such a right being acknowledged; and is prophet enough to foresee, that it would bring the lowest disgrace upon his office, by *warranting the arraignment of him*, as he puts it, *before Delegates, upon no very important occasions*^[108]. But his fears are as groundless, as the insinuation, which he labours to convey under them, is impudent and unjust. For, though an appeal be claimed *ab omni gravamine utcunque illato* (which sure is nothing but reasonable, as the Statutes make no distinction, and the practice, as well as *Law* of the University, equally authorizes Appeals in every case) yet, why should he throw himself into this unseasonable panic, when all *frivolous and vexatious Appeals* are expressly provided against, by a considerable pecuniary caution, and when the Delegates themselves are, in effect, of the supreme magistrate’s own appointment^[109]? Would the members of the Senate, does he think, appeal from any judicial sentence, though ever so just and statutable, *on no very important occasion*, when a certain expence is necessarily incurred, and when there could not be the least hopes of redress? Or, would any tutor can he imagine, who has a character to maintain, and who is not less concerned to support good order and discipline, than the supreme magistrate himself, interpose his claim of Appeal for his pupil, without, at least, some fair and reasonable grounds?

But the insinuation, as I observed, is still more impudent, than his apprehensions are groundless. For what he would covertly signify under this impertinent sollicitude for the honour of the supreme magistrate, is, that the Delegates, who are the representatives of the collective body of the University, are unworthy to take cognizance in any case of the acts of their *officer*^[110]: Nay, that the members of the Senate itself are a company of factious, disorderly, licentious boys; who are impatient of any authority themselves, and would be sure to concur in all cases to countenance the irregularities of one another, or of the youth of the place; by setting them

loose from all restraint, which the Statutes and discipline of the University have provided against them. There is something so outrageously insolent in this abuse of the body of the University; a body consisting of *three or four hundred persons*; the youngest of which is of the degree of *Master of Arts*; almost all of them *clergymen*; and the greater part of *equal age*, and it may therefore be presumed of *equal prudence*, as many of the Heads themselves; that I should be cautious of charging it upon him, if he had not expressed himself in terms too clear to be mistaken. For he has the assurance to advance in so many words, that “*if the person who apprehends himself to be aggrieved*, may happen to be a member of the Senate, and, *as such*, may possibly *bear with indignation the thought of having any part of his conduct judicially animadverted upon*; if it be further considered, that his *particular friends and acquaintance* may possibly think the same in his case, and that *all the advocates for, and the warm assertors of independency* will be sure to think so in every case, I do and must say, &c.” And, again, in the words of the very provident Mr. *Tabor*, a little doting registry of the University, a century or two ago; whose mumpings this writer has the confidence to oppose, to the united sense of the University, at this day: “What dangerous cure does that state hazard, when for the sullen distemperature of one active member, the ruling head must bleed, that suffereth enough otherwise; and all the discontented parts of the body must sit in judgment on it; nay when *Sense* must disapprove or disallow the *acts of Reason*? If this Appeal be suffered and countenanced to pass current, farewell the power of Chancellor and Vice-chancellor; *my young masters of the regent house* will and must judge, examine, and rule all; yea, *their* censures or judgments must stand or be disallowed at their will and pleasure. Good Sir! by all means labour to smother this *Hydra*; it will have more heads than we shall overcome, and breed a greater mischief than we are aware, in these times of liberty and discontent^[111].”

Such are the sentiments of this forward Inquirer of the Senate of the University of *Cambridge*: sentiments, which must needs create in the breast of any man of sense, who is a mere stranger to us, the strongest resentment; and for his public declaration of which, were the author known and considerable enough, he would judge him to deserve the severest censure, the University has it in its power to inflict. But what must those think, who have an opportunity of knowing the *characters* of the men, whom he thus

vilely traduces? Almost all of them fellows of colleges, many of them tutors, whose sobriety and good behaviour have recommended them to places of trust and profit in their respective colleges: Men, who are under the obligation of oaths, to maintain and promote statutable discipline, and regularity; who are trained in the habit of restraining and correcting academical disorders of all kinds; and whose situations and interests require them to be as watchful to support just authority and good order, at least, as the Heads of Colleges, or the officers of the University themselves. And the censure is the more grievous at this time of day, when, by the confession of the partizans of the Heads themselves^[112], extorted by the very evidence of fact and truth, there never was a time in which the elder part of the University were more sober, temperate, and regular; when fewer excesses of any kind were chargeable on the fellows of colleges; or, indeed, when they were more prudent and exemplary, in their behaviour, in all respects. But the charge is not only unjust, but has a direct tendency to discredit and destroy that reasonable authority in the University, which this prater, if he means any thing by his talk, would seem ambitious to support. For how is the great affair of education and good government in this place to be carried on, but by means of those very persons, whom he would represent in so ignominious a light? For, certainly, how much soever the University may owe to the Heads of Colleges, in their capacity of *legislators*, yet, for the *execution* of those laws which it seemeth good to their wisdoms to enact, they must still depend on the concurrence, I had almost said, on the sole authority of their *inferiors*. And how shall such authority be kept up, when they are thus upbraided, as abettors of every act of licence; and represented to the younger part of the University, as patronizers of that ungoverned independent spirit, which it is their office to restrain? Nor can I think so ill of the policy of these great lawgivers, as to believe that they will chuse to concur with this officious *Inquirer*, in representing them in such a light. For what will become of that balmy ease and quiet, in which these sovereign guides of youth so delight to wrap themselves, if the care of government must, after all, devolve on their shoulders; when a course of injurious calumnies shall have disabled their subordinate ministers from taking their place, and bearing, as at present they most commonly do, the full weight of it?

But to return to the *Grace* itself, from which this reviler's treatment of the whole body of the University has a little diverted me. He labours much, as I observed, to impress on the reader's mind the opinion of the frightful consequences with which a right of Appeal in all cases would be attended; and to give a sanction to these fears, he alledges the authority of *the learned gentlemen of the long robe*, who, it seems, have pointed out the absurdity of such a practice, and the pernicious effects of it^[113]. But what is all this tragical declamation to the purpose? Where is the sense, as I before asked, in supposing the University Senate would concur in every attempt of its idle and disorderly members to get themselves relieved from a deserved and statutable censure? Or, how should those *learned gentlemen*, whose robe he still hangs upon, be better able to judge of the expediency of this practice than the Senate of the University itself? Indeed he thinks the absurdity of this right of calling the supreme officer of the University to account for his judicial determinations the more glaring, in as much as, even in private colleges, *no act of discipline of the Head*, he fancies, *was ever liable to be reversed by any of the subordinate members*: nay, he is persuaded that his good friend, the Fellow of a College, for whose instruction all this is designed, *were he even authorized to new model the Statutes of his own College, would not chuse to vest in his brethren the Fellows such a power of controuling the acts of the Master*^[114]. What the Colleges are which are here glanced at, and which leave the Master full power to exercise every act of discipline without controul, the *Inquirer* himself best knows. For my part, I have always understood that *acts of censure* in all private societies, such acts I mean as are of consequence to the reputation and interests of their members, are not left to the caprice of the Master, but are passed by the joint authority and concurrence of the Society itself; unless, perhaps, I am to except one *little* College, in which, it is said, the Master claims to himself this sovereign and uncontrollable authority. But, then, this is no fair precedent. For the members of the College have nothing to apprehend from a licentious and wanton abuse of *such power*; as well on account of the known candour, equity, and moderation of the worthy president of that society, as for that a few exertions of it would leave him no subjects to preside over.

But, whatever may be the case of this *one* foundation, the despotic form is not, I believe, statutable in any other. Nay, the authority of the fellows to

controul the acts of their Head in some Colleges, I have been told, goes so far, that they are even impowered, in case of an *utter inability* (such as may arise from extreme folly, dotage, or the like) *to govern prudently*, to remove him forthwith from his place. And surely this must be deemed a wise and sober institution; at least, were I *authorized to new model the Statutes of any College which wanted it, it is such an one as I should certainly chuse to vest in it.*

But there is one circumstance in the *Grace* which, it seems, provokes his more *especial dislike*. And, unluckily, it is one which any other, who considered the tenor of it, would be likely enough more especially to approve; as shewing the singular moderation and good temper of the persons who proposed the *Grace*, and as studiously contrived to prevent all imaginable abuses of it. It is, that *the right of undergraduates to appeal should be exercised no otherwise than by the interposition of their tutors*^[115]. A provision of great prudence; and which the proposers of the *Grace*, in their concern to support authority and just government, purposely made to obviate the only abuses that could be possibly apprehended from it. For, if the wanton exercise of the *right to appeal* were to be feared from any quarter, it certainly must be from the inferior members; whose youth and inexperience might make them forward to appeal from any censure, however reasonable, and of which, therefore, the *tutor* of the person censured, who is under all the ties of interest and duty to act discreetly and warily, is left to judge. Yet this provision, wise and moderate as it is, *appears to the Inquirer extremely strange; because, by means of such a limitation, a tutor might prevent his pupil from appealing in any case, though the supreme Magistrate of the University would be empowered to prevent it in none.* As if the judge who passed the sentence, and was therefore concerned to support it, were as fit to determine, whether the party aggrieved should have the liberty to appeal from it, as an indifferent person who had no concern at all in it. Nay, the tutor, as was observed, would be obliged, by a regard to his own authority and character, and (I would add, but that the *Inquirer* is pleased to make no account of that *obligation*^[116]) by the *religion of an oath*, to proceed with all imaginable caution in advising him to such a step.

In every view, then, this objection to the *Grace* must appear very unaccountable. And the rather, when the reader understands that this clause was, with the greater readiness and pleasure, inserted into it, as this Vice-chancellor himself, whose goodness and candour require no encomiums of mine, had intimated, and even declared, that a provision of this kind was all the restriction upon *the liberty of appealing* which he wished to see made to it. For this excellent person was so much convinced of the propriety and expediency of this claim in general, that he very frankly professed his approbation of it, and only wanted to secure his authority, where indeed the only danger lay, from a *torrent of Appeals, which, as he apprehended, might pour in upon him from the younger sort*. So that, I think, we shall hear no more of this objection; and I am even not without the fond hopes, that, after this information, the *Inquirer* himself, whatever *displeasure* he might conceive at this part of the *Grace* before, will now grow into good humour with it.

After all, one cannot but suspect, that the *Inquirer* must have some better reason for his strong antipathy to this *Grace* than any that has yet appeared. The violent heat it puts him into, whenever he touches upon it, demonstrates, there must still be something at the bottom of this matter, which is the object of just offence. In looking narrowly for it, I found it at last, half smothered under a very shrewd and indirect insinuation, which I shall bring to light, after having presented the reader with his own words:

“I see not how a Grace of this kind could be offered, consistently with the Resolution said to have been taken at one of your first meetings, to assert the right of Appeal in such a manner as was warranted by the Statutes of the University: Nor am I less able to reconcile it with those professions of deference and respect, which at the same time were thought proper to be made for our great and illustrious Chancellor. No person would receive a greater pleasure than myself from seeing all the members of the University, however divided in other points, agreed in entertaining the highest sentiments of regard and veneration for him; but I confess, that this is a pleasure I am not very likely to have; till one set of men shall be pleased to give clearer and less questionable testimonies of this, than by opposing every useful regulation he recommended, and endeavouring to lessen and curtail an authority,

which is only vested in the Vice-chancellor as his representative and locum-tenens^[117].”

Here, then, we have all the venom of his heart injected into one malignant paragraph; which, under the gilding of a compliment, is to do its office without offence. And yet, it is plain enough what he would insinuate. It is neither more nor less than that the advocates for this right of Appeal are an unquiet, factious set of persons, bent on opposing all measures that tend to promote the good of the University; and, to say all in one word, listed in a vile cabal to dishonour, revile, and abuse their Chancellor himself. The gentlemen against whom all this is levelled must, I am persuaded, hold such senseless and licentious calumnies in such contempt, that I should not merit their thanks for attempting seriously to confute them. And yet I cannot help saying for them, that the *Resolution* hinted at in this place was drawn up with so respectful a regard to the authority of the Statues, and to the honour and dignity of our great Chancellor, as, one should think, might stop the mouth of Malice itself. Yet all this can be overlooked by our candid Inquirer. And on what pretence? Why, because some of those persons, who came to such a *Resolution*, had different sentiments, it seems, of the expediency of the late regulations from this writer; and because this claim of Appeals tends to lessen the authority of the Vice-chancellor. For this he modestly calls *opposing the Chancellor, and curtailing his power*.

Well, then, the crime is now out; and, to say the truth, if it be a crime, the University is deeply involved in it. For, when the late *regulations* were first proposed to the consideration of the Senate, a considerable majority were clearly of the same opinion as these culprits: and, with regard to the present claim, the University may be almost said to be *unanimous* in supporting it. But what in the mean time must be this scribbler's sentiments of that most noble and illustrious person, for whose honour he here professes himself concerned; and of whom, it seems, he can think so unworthily, as to believe, that a liberty in judging concerning the expediency of some academical laws, which he had the goodness to propose to them, should give offence to one who has no other aim than to serve the University in a manner the most agreeable to their best judgments; and which, I am satisfied, they used the more freely, on a full persuasion that such liberty could not be taken as an instance of disrespect to him. This I should not doubt to call, of itself, a

sufficient confutation of the idle calumny. But it comes with the worst grace imaginable from a declared enemy to *the right of Appeals*; who must know, if he be at all acquainted with what passed at that time, that the principal reason, which induced the University to oppose the *regulations*, was the just apprehension they were under, of an encroachment on this *very right*; not indeed from the Chancellor, who had no such intention, nor even any knowledge of it, but from certain forward directors in that affair, who gave the *clearest and least questionable* proofs of their designing to make the *new laws* the instruments of their own tyranny in this respect. So that, if any offence *was* given by the University on that occasion, the blame of it should fall elsewhere, and not on those on whom it is here so invidiously cast; persons, who on every occasion have testified the sincerest honour for their Chancellor, who venerate him as the protector and patron of the University, and would humbly co-operate with him to the attainment of those good ends, which it is his sole endeavour to promote.

But what follows, if possible, is still worse. A *second charge* against the University is, that they are *endeavouring to lessen and curtail an authority, which is only vested in the Vice-chancellor, as his representative and locum tenens*. What the collective body would return to this accusation, I pretend not to say; I have no commission to answer in their name. But, for myself, and those whose thoughts I have the opportunity of knowing on this matter, I answer boldly thus: That we are not in the least apprehensive of giving offence to this great person, who is more solicitous for the maintenance of the just rights of the University than any other member of it, by any respectful and moderate endeavours to assert our own reasonable privileges; that we are well assured, he approves, and is ready to countenance, all such honest endeavours; and that, lastly and *chiefly*, we are *therefore* earnest in our endeavours to lessen an authority (if that must be called *lessening* which is but preventing its being usurped), because it *is* vested in, and must be constantly exercised *by his representative*. For, whatever liberties he may presume to take with the assertors of this claim, I will venture to assure him, that, were unappealable power itself to be exercised only by our Chancellor, who is too high in rank, and too noble in nature, to be under any temptations of abusing it, though we might still think the authority unreasonable and dangerous in itself, we should esteem ourselves in perfect security under him, and could safely trust the administration of it to his

care. But, as the person who by our Constitution is vested with it, is and must be a very imperfect *representative* of the Chancellor, in this as well as other respects, we hope to be forgiven by every equitable judge, if we are not forward to *compliment* ourselves out of our privileges; and have little inclination to lodge our liberties in less worthy hands.

After all, one would be glad to know a little more explicitly of this writer, since he professes himself so little satisfied with the conduct of the University, what those *clearer and less questionable testimonies* of their regard for the Chancellor are which he so loudly calls for, and the want of which, it seems, hath made his life so distasteful and uneasy to him. And, I think, I durst almost take upon me to guess at them. No doubt, they are such as these: “That the University Senate would be pleased to make no distinction in any case between the supreme Magistrate and his representative, nay, and his representative’s *representatives*”—“That they would courteously give that honour to his *locum tenens* or *locum tenentes*, without perhaps one single merit to justify such a claim, which the illustrious rank and dignity of their Chancellor himself, his eminent virtues, and services to the University, all conspire to challenge and demand from them.”—In a word, “that the University would offer themselves as willing instruments to carry into execution every paltry project, every low and selfish design, which little men in office are apt to form for themselves; and all this under the notion of its being a tribute of respect to the supreme Magistrate, and an instance of their veneration for him.”

Such as these, I can readily believe, are the *testimonies* of respect the *Inquirer* wishes to see paid to the Chancellor, and which, no doubt, would administer that sincere pleasure, which at present he divines (and, I trust, truly) *he is not very likely to have*. But does he think the Chancellor is to be abused by this thin pretence of respect? that true greatness is to be taken by this mere outside of an officious and false compliment? On the other hand, I dare be confident that nothing is more disgusting to him than such sycophancy; and that he is so far from allowing this conduct in the *Inquirer*, that he even disdains to have his cause and dignity so defended. “For, though (to use my Lord *Bacon*’s words on a like occasion) I observe in his book many glosses, whereby the man would insinuate himself into his favour, yet I find it to be ordinary, that many pressing and fawning persons

do misconjecture of the humour of men in authority; and many times seek to gratify them with that which they most dislike.”

But the virulence of these malignant calumnies hath held me on a very unnecessary argument too long: I return again to the *Inquirer*, to whom I have but one word or two more to say, and shall then take my final leave of him.

You have talked, Sir, very importantly of the pernicious consequences of a right of Appeal in the University. The reasons on which you would ground these so anxious fears have been examined, and exposed, as they deserve. But, granting that some slight, nay, that some considerable inconveniencies might arise from it; were this any good argument, think you, against the subsistence of such a right? What would become of all the liberties which just government leaves us, nay, of the blessings and privileges which indulgent nature bestows upon us, if the accidental and occasional abuse of them were thought a reason sufficient to extort them out of our hands? Should you not have considered that a *right of Appeal* is one of the most important and valuable rights which mankind enjoy in society, and which, indeed, is almost essential to the very being of it? And would you have this sacred claim, *patronam illam et vindicem libertatis*, as a great ancient calls it, rudely and inhumanly wrested from us, on the frivolous pretence of some possible or even probable abuse? Had you been as conversant in the civil law as an *Inquirer* into such a question should have been, you might have found cause to entertain very different opinions of it. For the great masters in that science were as well aware as you can be, that such a right was liable to some abuse; but which of them ever thought this consideration of force enough to decry or abolish it? On the other hand, they *acknowledge the inconvenience*, yet assert and vindicate the *use*. Give me leave to refer you to one passage (you will find *L. 1. D. De Appell.*), very express to this purpose. “*Appellandi usus quam sit frequens quamque NECESSARIUS, nemo est qui nesciat: quippe cum iniquitatem judicantium vel imperitiam re corrigit; licet nonnunquam bene latas sententias in pejus reformet, neque enim utique melius pronuntiat, qui novissimus sententiam laturus est.*” What will you say, now, to this? That *Ulpian*, who affirmed it, was a factious, turbulent boy? one of those whom you disgrace under the name of the *warm, assertors of independency*, and *who bear with indignation the*

thought of having any part of their conduct judicially animadverted upon? I presume to think you would hardly venture on this assertion. Nay, I please myself with hoping, that, when you have well considered this so sage and venerable sentence of an ancient Lawyer, you will even be disposed to abate of your vehemence in declaiming against such as go on *his* principles at this day.

Seriously, Sir, it is a bad cause you have engaged in; and, in mere kindness to you, I would wish you to relinquish it with all speed. The claim itself of *Appeals*, as I have had the honour to shew you, is of long and ancient date; indeed as *ancient* as the Constitution of the *English* government itself. Of what consequence you may chance to be in your political capacity, it is impossible for me to say; if you are of any, and should proceed in these *Inquiries*, I should go near to apprehend that the *House of Commons* itself might take umbrage at them; for the rise of that great part of our Constitution is not usually, I think, carried higher than the point from which the right of Appeal hath here been deduced. Or, do you think you may safely make free with the Constitution of an University, though it were dangerous meddling with that of the State itself? This may be true, indeed; but where is your generosity in the mean time? Why should the thoughts of impunity encourage you to such an attack on the rights and privileges of a body of men, who, though unable to punish such offences against themselves as they deserve, have yet been generally secured from all outrage, by the very regard and reverence which the public hath ever paid to them? In a word (for I would not hold you longer from your *necessary avocations*), it may be worth your *inquiry*, when you shall think fit to sally forth on another adventure, what the Learned of *Great Britain* have done, that they should have their liberties written and inveighed against in so outrageous a manner; and, amidst the securest enjoyment of every civil right, under the justest and most equal Government in the world, what peculiar circumstances of offence have so inflamed the guilt of the scholars of this land, that they, of *all* his Majesty's good subjects, should deserve to be the only slaves.

FINIS.

ON THE
DELICACY
OF
FRIENDSHIP

FIRST PRINTED IN 1755.

ON THE
DELICACY
OF
FRIENDSHIP.
A SEVENTH DISSERTATION.
ADDRESSED
TO THE AUTHOR OF THE SIXTH.

Si bene te novi, metues, liberrime Lolli,
Scurrantis speciem præbere, professus Amicum.
HOR.

Nunc te *marmoreum* pro tempore fecimus: at tu,
Si fœtura gregem suppleverit, AUREUS esto.
VIRG.

AN ADDRESS TO THE REV. DR. JORTIN.

REV. SIR,

AS great an admirer as I must profess myself of your writings, I little expected that any of them would give me the pleasure that I have just now received from the last of your SIX DISSERTATIONS ON DIFFERENT SUBJECTS.

The other FIVE have doubtless their distinct merits. But in this, methinks, I see an assemblage, a very constellation, as it were, of all your virtues, all that can recommend the scholar or endear the friend. This last, give me leave to say, is so unusual a part of a learned mind's character, and appears with so peculiar a lustre in this discourse, that the public will not be displeased to have it set before them in full view, and recommended to general imitation, with a frankness, which though it may somewhat disgust your own delicacy, seems but very necessary on such an occasion and in such times.

I leave it to others therefore to celebrate the happiness of your invention, the urbanity of your wit, the regularity of your plan, the address with which you conceal the point you aim at in this Dissertation, and yet the pains you take in seeming obliquely to make your way to it. These and many other beauties which your long study of the ancients hath enabled you to bring into modern composition, have been generally taken notice of in your other writings, and will find encomiasts enough among the common herd of your readers. The honour I propose to do you by this address is of another kind; and as it lies a little remote from vulgar apprehension, I shall have some merit with you for displaying it as it deserves.

To come to a point then, next to the total *want* of FRIENDSHIP which one has too much reason to observe and lament in the great scholars of every age, nothing hath at any time disgusted me so much as the gross indelicacy with

which they are usually seen to conduct themselves in their *expression* of this virtue.

I have by me a large collection of the civil things which these lettered friends have been pleased to say of one another, and it would amaze you to see with what an energy and force of language they are delivered. One thing I thought very remarkable, that the greater the parts and the more unquestioned the learning and abilities of the encomiast, just so much the stronger, that is to say, according to the usual acceptation, just so much the more *friendly* are his encomiums.

I have a great example in my eye. A man, for instance, hath a bosom FRIEND, whom he takes for a person of the purest and most benevolent virtue, presently he sets him down for such, and publisheth him to all the world.—Or he hath an intimacy with an eminent POET: and no regard to decency restrains him from calling him a great genius, as Horace, you know, did his friend Virgil, almost to his face.—Or, he is loved and honoured by a great LAWYER or two; and then be sure all the fine things that have been said of your CICEROS, your SCÆVOLAS on your HYDES, are squandered away upon them.—Or, he hath perchance the honour of being well with a great CHURCHMAN, much famed for his political and religious services; down he goes at once for a lover of his country, and the scourge of infidels and freethinkers, with as little reserve as if he had a JEROM or a father PAUL to celebrate.—Or, once or twice in his life it hath been his fortune to be distinguished by great MINISTERS. Such occasions are rare. And therefore a little gratitude, we will say, is allowable. But can any thing be said for abominable formal *dedications*?—Or, lastly, he thinks he sees some sparks of virtue even in his ordinary acquaintance, and these, as fast as he observes them he gathers up, and sticks, on the first occasion, in some or other of his immortal volumes.

O Doctor Jortin! if you did but see half the extravagancies I have collected of this sort in the single instance of one man, you would stand aghast at this degree of corruption in the learned world, and would begin to apprehend something of your great merit in this seasonable endeavour to put a stop to its progress.

And what above all grieves me is that this is no *novel* invention; for then it might well have ranked with the other arguments of degeneracy so justly chargeable on the present times; but the all-accomplished ancients themselves have, to own the truth, set the example.

I took notice just now of the INGENIUM INGENS of Horace. The other poets of that time abound in these fulsome encomiums. But I am even shocked to think that such men as CICERO and PLINY, men so perfect, as they were, in the commerce of the world, and from their rank and station, so practised in all the decencies of conversation, were far gone in the folly. And yet there are, in truth, more instances of this weakness in their writings than in those of any modern I can readily call to mind.

Something I know hath been said in excuse of this *illiberal manner*, from the VIEWS and CHARACTERS and NECESSITIES of those that use it. And my unfeigned regard for the professors of learning makes me willing that any thing they have to offer for themselves should be fairly heard.

They say then, and with some appearance of truth, that as all the benefit they propose to themselves by their labours is for the most part nothing more than a little *fame* (which whether good or bad, as the poet observes,

———begins and ends
In the small circle of our foes or friends.)

they think it hard to be denied this slender recompence, which each expects in his turn, and should therefore be not unwilling to pay to others.

They, further, alledge, that as they are generally *plain men*, much given to speak their mind, and quite unpractised in the arts of that chaste reserve and delicate self-denial, to which some few of their order have happily habituated themselves, they hope to be forgiven so natural an infirmity, to which the circumstances of their situation and character fatally expose them.

But, lastly, they say, this practice is in a manner forced upon them by the *malignity of the times*. Let a learned man deserve ever so well of the public, none but those who are known to be of his acquaintance think themselves at all concerned to take notice of his services. Especially this is observed to be the constant humour of our countrymen, who rarely speak well of any but their friends, as our polite neighbours rarely speak ill of any but their enemies. Now this malevolent disposition of the learned makes it necessary, they pretend, that such of them as are connected by any bond of friendship should be indulged the greater liberty of commending one another. Unless you will utterly exclude all intercourse of praise and panegyric from human society, which they humbly conceive may be attended with some few inconveniencies. To strengthen this last observation they even add, that the public is usually more shy in bestowing its praises on writers of eminent and superior merit than on others. As well knowing, I suppose, that posterity will make them ample amends for any mortification they may meet with at present; and that in the mean time they are more than sufficiently honoured by the constant railings and invectives of the dunces. Lastly, they observe, that in the more frivolous and easy kinds of learning, such for instance as are conversant about the collation of MSS, the rectification of POINTS, and the correction of LETTERS, the general and approved custom is for all professors of this class, whether friends or enemies, to cry up each other as much as they please, and that it is even reckoned a piece of incivility not to preface a citation from ever so insignificant a dealer in verbal criticism with some superlative appellation. And why, say they, should these nibblers of old books, "*These word-catchers that live on syllables,*" be indulged in this amplitude of expression to one another, when they who furnish the materials on which the spawn of these vermin are to feed in after-ages, are denied the little satisfaction of a more sizeable, as well as a more deserved praise?

I have not been afraid, you see, to set the arguments of these unhappy advocates for themselves in as strong a light as they will well bear, because I can easily trust your sagacity to find out a full and decisive answer to them.

In the *first* place, you will refer these idolaters of FAME, for their better information, to that curious discourse on this subject, which makes the

fourth in the present collection. Next you will tell them that you by no means intend to deprive them of their just praise, but that they must not set up for judges in their own case, and presume to think how much of it they have reason to look for from their friends. You will further signify to them that the truest office of friendship is to be sparing of commendation, lest it awaken the envy of a malicious world; that there is a kind of fascination in praise which wise men have been justly suspicious of in all ages; and that a grain or two from those who are not used to be prodigal of this incense, is an offering of no small value. But chiefly and lastly, you will give them to understand that true honour is seated not in the mouths but in hearts of men; and that, for any thing they know, one may be forced to entertain the highest possible esteem of their virtues, though, for their sakes, and for other wise reasons, one has that virtuous command of one's tongue and pen as not to acquaint them with it.

Then, as to the *plainness* and *openness of mind* which is said to make a part in the composition of a man of letters, you will tell them that this is the very foible you most lament, and most wish them to correct: that it exposes them to much censure and many other inconveniencies; that this frankness of disposition makes them bestow their praises on those whom the world has no such esteem for, or whom it would rather see left in obscurity and oblivion; that they often disgust their betters by this proceeding, who have their reasons for desiring that a cloud may remain on the characters of certain obnoxious and dangerous writers; that by such warm and unmanaged commendations they become partners, as it were, of their ill deserts; that they even make themselves answerable for their future conduct; which is a matter of so very nice a consideration, that the great master of life, though he had not the virtue always to act up to his own maxim, delivers it for a precept of special use in the commerce of the world,

QUALEM COMMENDES ETIAM ATQUE ETIAM ADSPICE.

For it signifies nothing in the case before us, whether the recommendation be to a patron or the public.

For all these reasons you will assure them that this ill habit of speaking their mind on all occasions, just as nature and blind friendship dictate, is that

which more than any thing else exposes them to the contempt of knowing and considerate men.

Lastly, with regard to that other frivolous plea taken from the *malignity of mankind* and even those of their own family and profession, you will convince them that this is totally a mistake, that the world is ready enough to take notice of superior eminence in letters, that it is even apt to grow extravagant in its admiration, and that this humour of the public is itself a reason for that reserve with which their friends, if they truly merit that name, ought to conduct themselves towards them: that this splendour of reputation, which is so generally the consequence of distinguished learning, requires to be allayed and softened by the discrete management of those who wish them well, lest it not only grow offensive to weak eyes, but dazzle their own with too fond an imagination of their own importance, and so relax the ardour of their pursuits, or betray them into some unseemly ostentation of their just merits. You will farther suggest, that great achievements in letters are sufficiently recompenced by the silent complacency of self-esteem and of a good conscience; while lesser services demand to be brought out and magnified to public eye, for the due encouragement and consolation of those who would otherwise have but small reason to be satisfied with themselves. You might even observe, that silence itself is often a full acknowledgment of superior desert, especially when personal obligations, as well as other reasons, might provoke them to break through it. In such cases it is to be understood, that, if a friend be sparing of his good word, it is in violence to his inclination, and that nothing but the tender apprehension of pushing an acknowledged merit too far, withholds him from giving a public testimony to it. But, in conclusion, you will not omit to set them right with regard to one material mistake in this matter; that whereas they complain of the superior estimation in which the professors of verbal criticism are held amongst us, whom with a strange malignity they affect to represent as the very lowest retainers to science, you, and all true scholars, on the other hand, maintain that the *study* of words is the most useful and creditable of all others; and that this genuine class of learned men have reason to pride themselves in their objected, but truly glorious character of VERBAL CRITICS.

And now, Sir, having seen how little can be said in justification of that offensive custom which the learned have somehow taken up, of directly applauding one another, I come to the more immediate purpose of this address, which was to shew how singularly happy you have been in avoiding this great vice, and to take occasion from the example you have now set us to recommend the contrary virtue to the imitation of others.

I am sensible there are some difficulties to be encountered at setting out. A generous mind will probably feel some reluctance, at first, to the scheme of suppressing his natural feelings, and of withholding from his friend that just tribute of praise which many others perhaps are but too willing should be withheld from him. But all scruples of this sort will be got over when the full merit of your example hath been considered; I mean, when the inducements you had to give into the common weakness on this occasion come to be fairly drawn out; by which it will be clearly seen that you have the glory of setting a precedent of the most heroic magnanimity and self-denial, and that nothing can possibly be urged in the *case* of any other, which you have not triumphantly gotten the better of in your own.

I observe it to your honour, Sir, you have ventured on the same ground in this famous Dissertation, which hath been trodden by the most noted, at least, of our present writers. But this is not enough. It will be of moment to consider a little more particularly the *character* of the person whom you chuse to follow, or rather nobly emulate, in this route. And lest you should think I have any design to lessen the merit of your conduct towards him by giving it in my cool way, take it from one of those *warm* friends who never balk their humour in this sort of commendations. Upon asking him what he thought of the learned person's character, and telling him the use I might perhaps make of his opinion in this address to you, he began in a very solemn way.

“The author of the D. L.” says he, “is a writer whose genius and learning have so far subdued envy itself (though it never rose fiercer against any man, or in more various and grotesque shapes), that every man of sense now esteems him the ornament, and every good man the blessing, of these times.”

Hold, said I, my good friend, I did not mean to put your eloquence to the stretch for this panegyric on his *intellectual* endowments, which I am very ready to take upon trust, and, to say the truth, have never heard violently run down by any but very prejudiced or very dull men. His *moral* qualities are those I am most concerned for.

“His *moral*,” resumed he hastily, “shine forth as strongly from all his *writings* as the other, and are those which I have ever revered most. Of these, his love of letters and of virtue, his veneration of great and good men, his delicacy of honour in not assuming to himself, or depressing, the merit of others, his readiness to give their due to all men of real desert whose principles he opposes, even to the fastidious, scoffing Lord SHAFTESBURY and the licentious BAYLE, but above all, his zeal for religion and for truth, these are qualities which, as often as I look into his volumes, attract my admiration and esteem. Nor is this enumeration, though it be far from complete, made at random. I could illustrate each of these virtues by various instances, taken from his works, were it not that the person you mean to address is more conversant in them, and more ready, I may presume, to do him justice on any fitting occasion than myself. The liberty indeed he takes of dissenting from many great names is considerable, as well as of speaking his free thoughts of the writers for whom he hath no esteem. But the *one* he doth with that respect and deference, and the *other* with that reason and justice, and *both* with that ingenuous openness and candour, the characteristics of a truly great mind, that they, whom he opposes, cannot be angry, and they whom he censures are not misused. I mention this the rather on account of the clamour which has so frequently been raised against the freedom and severity of his pen. But there is no mystery in the case. No dead writer is so bad but he has some advocates, and no living one so contemptible but he has some friends. And the misfortune is, that, while the present generation is too much prejudiced to do him right, posterity, to whom the appeal of course lies, are not likely to have it in their power to re-judge the cause: the names and writings, he most undervalues, being such as are hastening, it seems, to that oblivion which is prepared for such things.

“These,” continued he, “are some of the obvious qualities of the WRITER; and for the personal virtues of the MAN—But here I may well refer you to

Dr. JORTIN himself, who will take a pleasure to assure you, that his private character is not less respectable than his public; or, rather, if the one demands our veneration, that the other must secure our love. And, yet, why rest the credit of ONE, when ALL of his acquaintance agree in this, that he is the easiest in his conversation, the frankest and most communicative, the readiest to do all good offices, in short the friendliest and most generous of men.”

Thus far our zealous friend. And, though I know how much you agree with him in your sentiments, I dare say you cannot but smile at so egregious a specimen of the high *complimentary manner*. But, though one is not to expect an encomiast of this class will be very sensible of any defects in the person he celebrates, yet it cannot be disowned that this magnified man hath his foibles as well as another. I will be so fair as to enumerate some of them.

As he is conscious of *intending* well, and even greatly, in his learned labours, he is rather disposed to think himself injured by malicious slanders and gross misrepresentations. And then, as he hath abundantly too much wit, especially for a great divine, he is apt to say such things as, though dull men do not well comprehend, they see reason enough to take offence at. Besides, he doth not sufficiently consult his ease or his interest by the observance of those forms and practices which are in use amongst the prudent part of his own order. This, no doubt, begets a reasonable disgust. And even his friends, I observe, can hardly restrain their censure of so great a singularity. “He is so much in his study, they say, that he hardly allows himself time to make his appearance at a levee. Not considering that *illud unum ad laudem cum labore directum iter qui probaverunt prope jam soli in SCHOLIS sunt relictum*.” These infirmities, it must be owned, are very notorious in him; to which it might be added, that he is very indiscreet, sometimes, in the topics and turn of his conversation. His zeal for his FRIEND is so immoderate, that he takes fire even at the most distant reflection he hears cast upon him. And I doubt no consideration could withhold him from contradicting any man, let his quality and station be what it would, that should hazard a joke or an argument, in his company, against RELIGION.

I thought it but just to take notice of these weaknesses; and there may, perhaps, be some others, which I do not now recollect. Yet, on the whole, I will not deny that he may fairly pass for an able, a friendly, and even amiable man.

This person then, such as he is, such, at least, as the zealots represent and you esteem him, you have the pleasure to call your FRIEND. Report says, too, that he has more than a common right to this *title*: that he has won it by many real services done to yourself. How doth the consciousness of all this fire you! and what pains do I see you take to restrain that impatient gratitude, which would relieve itself by breaking forth in the praises of such a friend!

And yet—in spite of all these incitements from *esteem*, from *friendship*, and from *gratitude*, which might prompt you to some extravagance of commendation, such is the command you have of yourself, and so nicely do you understand what belongs to this intercourse of learned friends, that, in the instance before us, you do not, I think, appear to have exceeded the modest proportion even of a temperate and chaste praise.

I assure you, Sir, I am so charmed with the beauty of this conduct, that, though it may give your modesty some pain, I cannot help uniting the several parts of it, and presenting the entire image to you in one piece.

I meddle not with the argument of your elaborate dissertation. It is enough that your readers know it to be the same with that of another famous one in the D. L. They will know, then, that, among the various parts of that work, none was so likely as this to extort your applause. For it is universally, I suppose, agreed that, for a point in classical criticism, there is not the man living who hath a keener relish for it than yourself. And the general opinion is, that your honoured friend hath a sort of talent for this kind of writing. Some persons, I know, have talked at a strange rate. One or two I once met with were for setting him much above the modern, and on a level, at least, with the best of the old, critics. But this was going too far, as may appear to any that hath but attentively read and understood what the judicious Mr. UPTON and the learned Mr. EDWARDS have, in their various books and pamphlets, well and solidly, and with great delight to many discerning persons, written on this subject. Yet still I must needs think him

considerably above MINELLIUS and FARNABY, and almost equal to old SERVIUS himself, except that, perhaps, one doth not find in him the singular *ingenuity*^[118] you admire in the last of these critics.

But be this as it will, it seems pretty well agreed, that the learned person, though so great a divine, is a very competent judge, and no mean proficient in classical criticism. There are many specimens of his talents in this way dispersed through the large and miscellaneous work of the D. L. But the greatest effort of his genius, they say, is seen in the explanation of the Sixth Book of the *Æneïs*. And, with all its defects, I can easily perceive you were so struck with it, that it was with the utmost reluctance you found yourself obliged, by the regard which every honest critic owes to truth, and by the superior delicacy of your purpose, to censure and expose it.

Another man, I can easily imagine, would have said to himself before he had entered on this task, “This fine commentary, which sets the most finished part of the *Æneïs*, and indeed the whole poem, in so new and so advantageous a light, though not an essential in it, is yet a considerable ornament of a justly admired work. The author, too, is my particular friend; a man, the farthest of all others from any disposition to lessen the reputation of those he loves. The subject hath been well nigh exhausted by him; and the remarks I have to offer on his scheme are not, in truth, of that consequence as to make it a point of duty for me to lay aside the usual regards of friendship on their account: and, though HE hath greatness of mind enough not to resent this liberty, his impatient and ill-judging friends will be likely to take offence at it. The public itself, as little biassed as it seems to be in his favour, may be even scandalized at an attempt of this nature, to which no important interest of religion or learning seem to oblige me.”

After this manner, I say, would a common man have been apt to reason with himself. But you, Sir, understand the *rights* of literary freedom, and the *offices* of sacred friendship, at another rate. The *one* authorize us to deliver our sentiments on any point of literature without reserve. And the *other* will not suffer you to dishonour the man you love, or require you to sully the purity of your own virtue, by a vicious and vulgar complaisance.

Or, to give the account of the whole matter in your own memorable words:

The Sixth Book of the *Ænëis*, you observe, though the most finished part of the twelve, is certainly obscure. “Here then is a field open for criticism, and all of us, who attempt to explain and illustrate Virgil, have reason to HOPE that we may make some *discoveries*, and to FEAR that we may fall into some *mistakes*; and this should induce us to conjecture with *freedom*, to propose with *diffidence*, and to dissent with *civility*. Ἀγαθὴ δ’ ἔρις ἥδε βροτοῖσι, quoth old Hesiod^[119].”

Which shall I most admire, the dignity, the candour, or the prudence, that shine forth in this curious paragraph, which stands as a sort of preface to the refutation, as no doubt you designed it, of your friend’s work? “*You have reason to hope that, after the unsuccessful efforts of the author of the D. L., you may make some discoveries.*” In this declaration some may esteem you too sanguine. But I see nothing in it but a confidence very becoming a man of your talent at a *discovery*, and of your importance in the literary world. You add, indeed, as it were to temper this boldness, that “*you have reason to fear too that you may fall into some mistakes.*” This was rather too modest; only it would serve, at the same time, to intimate to your friend what he had to expect from the following detection of his errors. But you lead us to the consequence of these principles. “*They should induce us, you say*” TO CONJECTURE WITH FREEDOM.” Doubtless. And the dignity of your character is seen in taking it. For, shall the authority or friendship of any man stand in the way of my conjectures?

——scilicet, ut non
Sit mihi prima fides; et verè quod placet, ut non
Acriter elatrem!

—“TO PROPOSE WITH DIFFIDENCE.” Certainly very *prudent*, especially for one sort of *free-conjecturers*; and, by the way, no bad hint to the person you glance at, whose vice it is thought to be, above that of most other writers, never to trouble himself with composing a book on any question, of whose truth he is not previously and firmly convinced——“AND TO DISSENT WITH CIVILITY.” A *candid* insinuation, which amounts to this, “That, when a writer hath done his best to shew his learning or his wit, the man at whose expence it is, especially if he be a friend, is, in consideration of such services, not to take it amiss.”

I have been the freer to open the meaning of this introductory paragraph, because it lets us into the spirit with which you mean to carry yourself in this learned contention. For a *contention* it is to be, and to good purpose too, if old Hesiod be any authority. Ἀγαθὴ δ’ ἔρις ἥδε βροτοῖσι, quoth old Hesiod. Though to make the application quite pat the maxim should have run thus, Ἀγαθὴ δ’ ἔρις ἥδε φιλοῖσι, which I do not find in old Hesiod.

However the reason of the thing extends to both. And as *friends* after all are but *men*, and sometimes none of the best neither, what need for standing on this distinction?

Yet still the question returns, “Why so cool in the entrance of this friendly debate? Where had been the hurt of a little amicable parlying before daggers-drawing? If a man, in the true spirit of ancient chivalry, will needs break a lance with his friend, he might give him good words at least and shake hands with him before the onset. Something of this sort might have been expected, were it only to save the reputation of *dissenting with civility*.”

Now in answer to this question, which comes indeed to the point, and which I hear asked in all companies, I reply with much confidence, *first*, that the very foundation of it is laid in certain high fantastic notions about the duties

of friendship, and in that vicious habit of civility that hath so long been prevalent among learned friends; both which props and pillars of the cause I may presume with great modesty to have entirely overturned.

But *secondly* and chiefly I say that the whole is an arrant misrepresentation; for that you have indeed proceeded in this affair, with all that civility and even friendliness that could in reason be expected from you: I mean so far as the sobriety and *Retenuë*, as the French term it (it is plain the virtue hath not been very common amongst us from our having no name to call it by) of a true critical friendship will allow.

Now there are several ways by which a writer's civility to his friend may appear without giving into the formal way of *address*: just as there are several ways of expressing his devotion to his patron, without observing the ordinary forms of *dedication*; of which, to note it by the way, the latest and best instances I have met with, are, "A certain thing prefatory to a learned work, entitled, *The Elements of Civil Law*," and "Those curious two little paragraphs prefixed to *The Six Dissertations on different Subjects*."

You see the delicacy of the learned is improving in our days in more respects than one. And take my word for it, you have contributed your share to this good work. For as you began, so you conclude your volume with a master stroke of address, which will deserve the acknowledgment and imitation of all your brethren, as I now proceed distinctly and with great exactness of method to unfold.

THE FIRST way of distinguishing a learned friend, without incurring the guilt of downright compliment, is by *writing on the same subject with him*. This is an obvious method of paying one's court to a great writer. For it is in effect telling him that the public attention is raised to the argument he hath been debating; and that his credit hath even brought it into such vogue that any prate on the same subject is sure of a favourable reception. This I can readily suppose to have been your first motive for engaging in this controversy. And the practice is very frequent. So when a certain edition of SHAKESPEAR appeared, though it had been but the amusement of the learned editor, every body went to work, in good earnest, on the great poet, and the public was presently over-run with editions and criticisms and illustrations of him. Thus too it fared with the several subjects treated in the D. L. Few

were competent judges of the main argument, or disposed to give it a candid interpretation. But every smatterer had something to say to this or that occasional disquisition. Thus SYKES, and STEBBING grew immortal, and, as the poet says truly, *in their own despite*. And what but some faint glimmering of this *bright reversion*, which we will charitably hope may be still kept in reserve for them, could put it into the heads of such men as WORTHINGTON, H. G. C.^[120] and PETERS, to turn critics and commentators on the book of JOB?

SECONDLY, Though I acknowledge the full merit of this way of treating a learned friend, I am rather more taken with another, which is that *of writing against him*. For this demonstrates the esteem one hath of the author's work, not only as it may seem to imply a little generous rivalry or indeed envy, from which infirmity a truly learned spirit is seldom quite free, but as it shews the answerer thought it worth *writing against*; which, let me assure you, is no vulgar compliment; as many living writers can testify, who to this hour are sadly lamenting that their ill fortune hath never permitted them to rise to this distinction. Now, in this view of the matter, I must take leave to think that you have done a very substantial honour to the author of the famous *Discourse on the sixth book of Virgil*, in levelling so long and so elaborate a disputation against him. And HE, of all other men, ought to be of my mind, who to my certain knowledge hath never done thus much for one in a hundred of those learned persons whose principal end in commencing writers against him was to provoke him to this civility.

But then, THIRDLY, this compliment of *writing against* a great author may be conveyed with that address, that he shall not appear, I mean to any but the more sagacious and discerning, to be *written against* at all. This curious feat of *leger-de-main* is performed by *glancing at his arguments without so much as naming the person or referring to him*. This I account the most delicate and flattering of all the arts of literary address, as it expresseth all the respect, I have taken notice of under the preceding article, heightened with a certain awe and fear of offence, which to a liberal mind, I should think, must be perfectly irresistible. It is with much pleasure I observe many examples of this kind in your truly candid dissertation, where without the least reference, or under the slight cover of—*some friends of Virgil say*^[121]—*some commentators have thought*^[122]—*Virgil's friends suppose*^[123]—and

the like, you have dexterously and happily slid in a censure of some of your friend's principal reasonings. But, to be impartial, though you manage this matter with admirable grace, the secret is in many hands. And whatever be the cause, hath been more frequently employed in the case of the author of the D. L. than any other. I could mention, at least, a dozen famous writers, who, like the flatterers of Augustus, don't chuse to look him full in the face, but artfully intimate their reverence of him by indirect glances. If I single out one of these from all the rest it is only to gratify the admirers of a certain eminent PROFESSOR^[124] who, as an Oxford friend writes me word, hath many delightful instances of this sort in his very edifying discourses on the HEBREW POETRY.

FOURTHLY, Another contrivance of near affinity to this, is, when you oppose his principles indeed, *but let his arguments quite alone*. Of this management a wary reader will discover many traces in your obliging discourse. And can any thing be more generous than to ease a man of the shame of seeing his own reasonings confuted, or even produced when the writer's purpose requires him to pay no regard to them? Such tenderness, I think, though it is pretended to by others, can, of right, belong only to the true friend. But your kindness knows no bounds. For,

FIFTHLY, Though you find yourself sometimes obliged to produce and confute his reasonings, *you take care to furnish him with better of your own*. The delicacy of this conduct lies in the good opinion, which is insinuated of the writer's conclusion, and in the readiness which you shew to support it even in spite of himself. There is a choice instance in that part of your discourse, where agreeing with your friend that the punishments of *Tartarus* are properly *eternal*, you reject his reason for that conclusion, but supply him with many others in its stead.

“This alone will not prove the eternity of punishments for, &c.—BUT if to this you add the Platonic doctrine, that very wicked spirits were never released from *Tartarus*, AND the silence of *Virgil* as to any dismissal from that jail, AND the censure of the *Epicureans*, who objected to religious systems the eternity of punishments,

Æternas quoniam pœnas in morte timendum;

AND the general doctrine of the mythologists, AND the opinion of SERVIUS, that VIRGIL was to be taken in this sense, we may conclude that the punishments in his Tartarus were probably eternal^[125].”

Never let men talk after this of the niggardliness of your friendship, when, though you take from him with one hand, you restore him five-fold with the other.

After such an overflow of goodness, nothing I can now advance will seem incredible. I take upon me to affirm therefore,

SIXTHLY, That it is a mere calumny to say that you have contented yourself, though you very well might, with mere *negative* encomiums. You can venture on occasion to *quote from your friend in form*, and, as it should seem, with some *apparent approbation*. An instance is now before me. You cite what the author of the D. L. says of “*the transformation of the ships into sea deities*, by which, says he, VIRGIL would insinuate, I suppose, the great advantage of cultivating a naval power, such as extended commerce and the dominion of the ocean: which in poetical language is becoming *deities of the sea*.”

To which you add, “In *favour* of this opinion it may be further observed, that AUGUSTUS owed his empire in a great measure to his naval victories^[126].”

Now can any thing be civiler than this, or more expressive of that amiable turn of mind, which disposes a man to help forward a lame argument of his friend, and give it the needful support of his authority? For it hath been delivered as a maxim by the nice observers of decorum, that wherever you would compliment another on his opinion, you should always endeavour to add something of your own that may insinuate at least some little defect in it. This management takes of the appearance of *flattery*, a vice which the Latin writers, alluding to this frequency of unqualified assent, have properly enough expressed by the word ASSENTATIO. But catch you tripping in this

way if one can. It is plain you went on this just principle in the instance before us, which otherwise, let me tell you, I should have taken for something like an attempt towards downright adulation. As here qualified, I set it down for another instance of just compliment, more direct indeed than the other *five*, yet still with that graceful obliquity which they who know the world, expect in this sort of commerce. And I may further observe, that you are not singular in the use of this mode of celebration. Many even of the enemies of this author have obligingly enough employed it when they wanted to confirm their own notions by his, or rather to shew their parts in first catching a hint from him, and then, as they believe, improving upon it —Still I have greater things in view. For,

SEVENTHLY, You not only with the highest address insinuate a compliment in the way of citation, but you once or twice *express it in full form*, and with all the circumstance of panegyric approbation. Having mentioned the case of the infants in Virgil's purgatory, which hath so much perplexed his learned commentators, you rise at once into the following encomium. "It is an *ingenious* conjecture proposed in the D. L. that the poet might design to discountenance the cursed practice of exposing and murdering infants."

This was very liberal, and I began to think you had forgotten yourself a little in so explicit a declaration. But the next paragraph relieved me. "It might be added, that Virgil had perhaps *also* in view to please Augustus, who was desirous of encouraging matrimony and the education of children, and extremely intent upon repeopling Italy which had been exhausted by the civil wars^[127]." It is plain you have still in your eye that sage rule which the men of manners lay down, of *qualifying* your civilities. So that I let this pass without farther observation. Only I take leave to warn you against the too frequent use of this artifice, which but barely satisfies for calling your friend's notion "*an ingenious conjecture*."

Not but are there others who see this contrivance in another light, and treat it as an art of *damning with faint praise*; a censure which one of the zealot friends presumes to cast, with much injustice and little knowledge of the world, on the very leader and pride of our party. Whereas I deliver it for a most certain truth, that the fainter and feebler our praise of any man is, just so much the better will it be received by all companies, even by the

generality of those who call themselves his best friends. And so apprehensive indeed am I of this nice humour in mankind, that I am not sure if the very slight things I am forced to say of yourself, though merely to carry on the purpose of this address, will not by certain persons, inwardly at least, be ill taken. And with this needful apology for myself I proceed to celebrate,

EIGHTHLY, The last and highest instance of your civilities to your admired friend, which yet I hope to vindicate from any reasonable suspicion of flattery; I presumed to say in the foregoing article that you had *once or twice* hazarded even a direct compliment on the person whose system you oppose. I expressed myself with accuracy. There is *one other* place in your dissertation, where you make this sacrifice to friendship or to custom. The passage is even wrought up into a resemblance of that unqualified adulation, which I condemn so much, and from which, in general, your writings are perfectly free. I could almost wish for your credit to suppress this one obnoxious paragraph. But it runs thus,

“That the subterraneous adventures of Æneas were intended by Virgil to represent the *initiation* of his hero, is an *elegant* conjecture, which hath been laid before the public, and set forth to the best advantage by a *learned friend*^[128].”

I confess to you I did not know at first sight what to do with the two high-flown epithets, *elegant* and *learned*, which stand so near together in one sentence. Such accumulated praises had well-nigh upset my system. And I began with much solicitude to consider how I should be able to reconcile this escape of your pen with your general practice. But taking a little time to look about me, I presently spied a way of extricating both of us from this difficulty. For hang it, thought I, if this notion of the hero's adventures in the infernal regions be *elegant*, it is but a conjecture; and so poor a matter as this were hardly worth pursuing, as the author of the D. L. hath done, through almost a fourth part of a very sizeable volume.

And then as to the term *elegant*, to be sure it hath a good sound; but more than a *third* part of this choice volume of yours, I observed, is employed in making appear that the conjecture, whatever it be, hath not the least feature of *truth* in it. And *elegance*, altogether devoid of truth, was, I concluded, a

very pitiful thing, and indeed no very intelligible encomium. Well, but let there be as little truth as you will, in this conjecture, still it *hath been set forth to the best advantage*, and to crown all *by a learned friend*. Here a swarm of fresh difficulties attacked me. *Sed nil desperandum te duce*. For why talk of *advantage*, when the conjecture after all would not bear the handling? It was but mighty little (your friendship would not let you do more) which you had brought against it. And the conjecture I saw, was shrunk to nothing, and is never likely to rise again into any shape or substance. So that when you added *by a learned friend*, I could not for my life, help laughing. Surely, thought I, the reverend person tends on this occasion to be pleasant.—Indeed you often are so with a very good grace, but I happened not to expect it just at this moment.—For what *learning* worth speaking of could there be in the support of a notion, which was so easily overturned without any?

You may be sure I mean no reflection in these words. Nobody questions your erudition. But it was not your fortune or your choice to make a shew of it in this discourse. The propriety of the epithet *learned*, then, did not evidently and immediately appear.

However, as I knew there was in truth no small quantity of learning in the piece referred to, and that the author of the D. L. whatever BATE, and PETERS, and JACKSON, may say or insinuate, is unquestionably, and to a very competent degree, learned, I began to take the matter a little more seriously. And, upon looking attentively at the words a second time, I thought a very natural account might be given of them upon other principles. For, as to the substantive *friend*, why might not that for once be put in for your own sake as well as his? The advantages of friendship are reciprocal. And though it be very clear to other people which is the gainer by this intercourse, who knows but Dr. JORTIN, in his great modesty, might suppose the odds to lie on his own side?

And then for *learned*, which had embarrassed me so much, I bethought myself at last there was not much in that, this attribute having been long prostituted on every man who pretends, in any degree, to the profession of letters.

So that, on the whole, though I must still reckon this for an instance, amongst others, of that due measure of respect with which your politeness teaches you to treat your friends, yet I see no reason for charging it with any excess of civility.

And now, Sir, having been at all this pains to justify you from the two contrary censures of having done *too little* and *too much*, let us see how the account stands. Malice itself, I think, must confess that you have not been lavish of your encomiums. You have even dispensed them with a reserve, which, though I admire extremely, will almost expose you to the imputation of *parsimony*. And yet, on the other hand, when we compute the number and estimate the value of your applauses, we shalt see cause to correct this censure. For, from the EIGHT articles I have so carefully set down, and considered, it appears at length that you have done all due honour to your friend, and in ways the most adapted to do him honour. That is to say, *You have adopted his subject—You have written against him—You have glanced at him—You have spared his arguments—You have lent him some of your own—You have quoted him—You have called his conjecture ingenious—Nay elegant—And you have called himself learned*, and, what is more, *your friend*.

And if all this will not satisfy him, or rather his friends (for I hope, and partly believe, he himself thinks nothing of this whole matter), I know not for my part what will. I am sure (and that should be your satisfaction, as it is mine) that you have gone as far as was consistent with the *delicacy* of friendship (which may reasonably imply in it a little jealousy), and with the virtuous consciousness of that importance which writers of your class ought to be of to themselves. And I hope never to see the day when you shall be induced by any considerations to compliment any man breathing at the expence of these two virtues.

And here, on a view of this whole matter, let me profess the pleasure I take in observing that you (and I have remarked it in some others), who have so constantly those soft words of *candour*, *goodness*, and *charity* in your mouth, and whose soul, one would think, was ready to melt itself into all the weaknesses of this character, should yet have force enough not to relent at the warmest influences of *friendship*. Men may see by this instance that

charity is not that unmanly enfeebling virtue which some would represent it, when, though ready on fit occasions to resolve and open itself to a *general* candour, it shuts up the heart close and compact, and impregnable to any *particular* and personal attachment.

I take much delight in this pleasing contemplation. Yet, as our best virtues, when pushed to a certain degree, are on the very point of becoming vices, you are not to wonder that every one hath not the discernment or the justice to do you right. And to see, in truth, the malignity of human nature, and the necessity there was for you to inculcate in your *third* Discourse, *The duty of judging candidly and favourably of others*, I will not conceal from you, at parting, what hath been suggested to me by many persons to whom I communicated the design of this address. “They said,” besides other things which I have occasionally obviated in the course of this letter, “that the excellent person whom you have allowed yourself to treat with so much indignity and disrespect (I need not take notice that I use the very terms of the objectors), in this poor and disingenuous criticism upon him, had set you an example of a very different sort, which you ought in common equity, and even decency, to have followed.” They observe that his own pen never expatiates more freely, and with more pleasure, than when it finds or takes an occasion to celebrate the virtues of some deserving friend. They own the natural warmth and benevolence of his temper is even liable to some excess on these inviting occasions. And for an instance they referred me to a paragraph in the notes on *Julian*, which, though I know you do not forget, I shall here set down as it stands in the last edition. He had just been touching a piece of ecclesiastical history. “But this,” says he, “I leave with Julian’s adventures to my learned friend Mr. JORTIN, who, I hope, will soon oblige the public with his curious Dissertations on Ecclesiastical Antiquity, composed like his *Life*, not in the spirit of *controversy*, nor, what is worse, of *party*, but of *truth* and *candour*^[129].”

Here, said they insultingly, is a specimen of that truly liberal spirit with which one learned friend should exert himself when he would do honour to another. Will all the volumes which the profound ecclesiastical remarker hath published, or ever will publish, do him half the credit with posterity as this single stroke, by which his name and virtues are here adorned and ushered into the acquaintance of the public? And will you still pretend to

vindicate him from the scorn which every honest man must have for him, after seeing how unworthily he requites this service by his famous SIXTH DISSERTATION in this new volume?

This, and a great deal more to the same purpose, was said by them in their tragical way. I need not hint to you, after the clear exposition I have given of my own sentiments, how little weight their rhetoric had on me, and how easily I turned aside this impotent, though invenomed, invective from falling on your fame and memory. For the *compliment* they affect to magnify so much, let every candid reader judge of it for himself. But, as much had been said in this debate concerning FRIENDSHIP, and the persons with whom it was most proper to contract it, I found myself something struck with the concluding observation of one of these rhetorical declaimers. As it was delivered in a language you love, and is, besides, a passage not much blown upon by the dealers in such scraps, I have thought it might, perhaps, afford you some amusement. He did not say where he found it, and you would not like it the better if he had, but, as I remember, it was delivered in these words: Ἐμοὶ πρὸς φιλοσόφους ἐστὶ φιλία· πρὸς μὲν τοι ΣΟΦΙΣΤΑΣ, ἢ ΓΡΑΜΜΑΤΙΣΤΑΣ, ἢ τοιοῦτο γένος ἕτερον ΑΝΘΡΩΠΩΝ ΚΑΚΟΔΑΙΜΟΝΩΝ, οὔτε ΝΥΝ ΕΣΤΙ ΦΙΛΙΑ ΜΗΤΕ ΥΣΤΕΡΟΝ ΠΟΤΕ ΓΕΝΟΙΤΟ.

*Lincoln's-Inn,
Nov. 25, 1755.*

A
LETTER
TO
THE REV. DR. LELAND.

FIRST PRINTED IN 1764.

A
LETTER

TO THE
REV. DR. THOMAS LELAND,
FELLOW OF TRINITY COLLEGE, DUBLIN:

IN WHICH
HIS LATE DISSERTATION
ON THE PRINCIPLES OF HUMAN ELOQUENCE
IS CRITICISED;

AND
THE BISHOP OF GLOUCESTER'S
Idea of the Nature and Character of an inspired Language, as delivered in
his Lordship's *Doctrine of Grace*,

IS VINDICATED
From ALL the Objections of the learned Author of the DISSERTATION.

A LETTER TO THE REV. DR. LELAND.

REV. SIR,

I HAVE read your DISSERTATION *on the principles of human Eloquence*, and shall very readily, I dare say, be indulged in the liberty, I am going to take, of giving you my free thoughts upon it. I shall do it, with all the regard that is due from one scholar to another; and even with all the civility which may be required ONE, who hath his reasons for addressing you, in this public manner, without a name.

You entitle your work *A Dissertation on the principles of Eloquence*: but the real subject of it, is an *Opinion*, or *Paradox*, as you chuse to term it, delivered by the Bishop of *Gloucester* in his late discourse *on Grace*. This opinion, indeed, concerns, or rather, in your ideas, subverts, *the very principles* of Eloquence, which your office, it seems, in a learned society obliged you to maintain: so that you cannot be blamed for giving some attention to the ingenious Prelate's paradox, which so incommodiously came in your way. Only the more intelligent of your hearers might possibly think it strange that, in a set of rhetorical lectures, addressed to them, the *Controversial* part should so much take the lead of the *Didactic*: or rather, that the *Didactic* part should stand quite still, while the *Controversial* keeps pacing it, with much alacrity, from one end of your Dissertation to the other.

Yet neither, on second thoughts, can you be blamed for this conduct, which one way or other might serve to the instruction of your young auditory; if not in *the principles of Rhetoric*, yet in a better thing, *the principles of Logic*. It might, further, serve to another purpose, not unworthy the regard of a rhetoric lecturer. The subject of Eloquence has been so exhausted in the fine writings of antiquity, and, what is worse, has been so hackneyed in modern compilations from them, that your discourse wanted to be enlivened by the poignant controversial air, you have given to it, and to be made important, by bringing an illustrious character into the scene.

All this I am ready to say in your vindication, if your conduct may be thought to require any. Having, therefore, nothing to object to the *general design*, or *mode* of your dissertation, I shall confine myself entirely to the MATTER of it, after acquainting the reader, in few words, with the occasion and subject Of this debate.

The Bishop of *Gloucester*, in late theological treatise on *the doctrine of Grace*, which required him to speak fully to the subject of *inspiration*, found it necessary to obviate an objection to what he conceived to be the right notion of *inspired scripture*, which had been supported by some ingenious men, and very lately by Dr. MIDDLETON. The objection is delivered by the learned Doctor, in these words.

“If we allow the gift [of inspired languages] to be lasting, we must conclude that some at least of the books of scripture were in this inspired Greek. But we should naturally expect to find an inspired language to be such as is worthy of God; that is, pure, clear, noble and affecting, even beyond the force of common speech; since nothing can come from God but what is perfect in its kind. In short, the purity of PLATO, and the eloquence of CICERO. Now, if we try the apostolic language by this rule, we shall be so far from ascribing it to God, that we shall scarcely think it worthy of man, that is, of the liberal and polite; it being utterly rude and barbarous, and abounding with every fault that can possibly deform a language. And though some writers, prompted by a false zeal, have attempted to defend the purity of the Scripture-Greek, their labour has been idly employed^[130].” Thus far the learned DOCTOR.

‘These triumphant observations,’ says the Bishop, ‘are founded on two propositions, both of which he takes for granted, and yet neither of them is true:

‘The one, That an inspired language must needs be a language of perfect eloquence;

‘The other, That eloquence is something congenial and essential to human speech^[131].’

The BISHOP then undertakes to shew the falshood of these two propositions. YOU, Sir, contend for the truth of the *latter*: and controvert the principles on which the Bishop would confute the *former*. That the reader may be enabled to judge for himself between you, I shall quote his Lordship's own words, paragraph by paragraph, so far as any thing said by him is controverted by you; and shall then endeavour, with all care, to pick up the loose ends of your argument, as I find them any where *come up* in the several chapters of your Dissertation; intermixing, as I go along, such reflexions of my own, as the occasion may suggest.

‘With regard to the FIRST proposition (resumes the Bishop) I will be bold to affirm, that were the STYLE of the New Testament exactly such as his [Dr. MIDDLETON’S] very exaggerated account of it would persuade us to believe, namely that it is *utterly rude and barbarous, and abounding with every fault that can possibly deform a language*, this is so far from proving such language not divinely inspired, that it is one certain mark of this original^[132].’

By the manner, in which the learned Bishop introduces this *affirmation*, one sees that he foresaw very clearly it would be esteemed a *bold* one. Nay, in another place^[133], he even takes to himself the shame, with which some readers, he well knew, would be forward enough to cover him, and in one word confesses his general notion of eloquence to be a PARADOX: *which yet, says he, like so many others, I have had the odd fortune to advance, will be seen to be only another name, for TRUTH*. After this concession, it had been more generous in you to have omitted some invidious passages; such as that where you say, *the Bishop in his reply to this objection* [of Dr. MIDDLETON] *seems to have displayed that BOLD OPPOSITION TO THE GENERAL OPINIONS OF MANKIND, by which his learned labours are distinguished*; Intr. p. ii. And again in p. vii. where you speak of his principles as *paradoxical*, and implying AN HARDY OPPOSITION TO THE GENERAL SENSE OF MANKIND.

But let the *boldness* of the Bishop's principles be what it will, there is small hurt done, provided they turn out, what he seems persuaded they will, only *truths*. Let us attend his Lordship, then, in the proof of his FIRST Paradox.

‘I will not pretend, says he, to point out which books of the N. T. were, or were not, composed by those who had the Greek tongue thus miraculously

infused into them; but this I will venture to say, that the style of a writer so inspired, who had not (as these writers had not) afterwards cultivated his knowledge of the language on the principles of Grecian eloquence, would be precisely such as we find it in the books of the New Testament.

‘For, if this only be allowed, which no one, I think, will contest with me, that a strange language acquired by illiterate men, in the ordinary way, would be full of the idioms of their native tongue, just as the Scripture-Greek is observed to be full of Syriasms, and Hebraisms; how can it be pretended, by those who reflect upon the nature of language, that a strange tongue divinely infused into illiterate men, like that at the day of Pentecost, could have any other properties and conditions^[134]?’

Here, the features of this bold paradox begin to soften a little. We are something reconciled to it, 1. by being told, what the *rudeness and barbarity* is, which is affirmed to be *one certain mark* of an inspired language, namely, *its being full of the idioms of the native tongue* of the inspired writer: And 2. by being told, that these idioms are equally to be expected whether the new language be infused by divine inspiration, or acquired by illiterate men in the ordinary way. In the *latter* case, it is presumed, and surely with reason enough (because experience uniformly attests the fact), that a strange language, so learnt, would abound in the native idioms of the learner: All that remains is to shew, that the event would be the same, in the *former*. The Bishop then applies himself, in order, to this task.

‘Let us weigh these cases impartially. Every language consists of two distinct parts; the single terms, and the phrases and idioms. The first, as far as concerns appellatives especially, is of mere arbitrary imposition, though on artificial principles common to all men: The second arises insensibly, but constantly, from the manners, customs, and tempers of those to whom the language is vernacular; and so becomes, though much less arbitrary (as what the Grammarians call *congruity* is more concerned in this part than in the other), yet various and different as the several tribes and nations of mankind. The first therefore is unrelated to every thing but to the genius of language in general; the second hath an intimate connexion with the

fashions, notions, and opinions of that people only, to whom the language is native.

‘Let us consider then the constant way which illiterate men take to acquire the knowledge of a foreign tongue. Do they not make it their principal, and, at first, their only study, to treasure up in their memory the signification of the terms? Hence, when they come to talk or write in the speech thus acquired, their language is found to be full of their own native idioms. And thus it will continue, till by long use of the strange tongue, and especially by long acquaintance with the owners of it, they have imbibed the particular genius of the language.

‘Suppose then this foreign tongue, instead of being thus gradually introduced into the minds of these illiterate men, was instantaneously infused into them; the operation (though not the very mode of operating) being the same, must not the effect be the same, let the cause be never so different? Without question. The divine impression must be made either by fixing the terms or single words only and their signification in the memory; as for instance, Greek terms corresponding to the Syriac or Hebrew; or else, together with that simple impression, another must be made, to enrich the mind with all the ideas which go towards the composing the phrases and idioms of the language so inspired: But this latter impression seems to require, or rather indeed implies, a previous one, of the tempers, fashions, and opinions of the people to whom the language is native, upon the minds of them to whom the language is thus imparted; because the phrase and idiom arises from, and is dependent on, those manners: and therefore the force of expression can be understood only in proportion to the knowledge of the manners: and understood they were to be; the Recipients of this spiritual gift being not organical canals, but rational Dispensers. So that this would be a waste of miracles without a sufficient cause; the Syriac or Hebrew idiom, to which the Disciples were enabled of themselves to adapt the words of the Greek, or any other language, abundantly serving every useful purpose, all which centered in giving CLEAR INTELLIGENCE. We conclude, therefore, that what was thus inspired was the TERMS, together with that grammatic congruity, which is dependant thereon. In a word, to suppose such kind of inspired knowledge of *strange tongues* as includes all the native peculiarities, which, if you will, you may call their *elegancies*;

(for the more a language is coloured by the character and manners of the native users, the more elegant it is esteemed) to suppose this, is, as I have said, an ignorant fancy, and repugnant to reason and experience.

‘Now, from what has been observed, it follows, that if the style of the N. T. were indeed derived from a language divinely infused as on the day of Pentecost, it must be just such, with regard to its style, as, in fact, we find it to be; that is to say, Greek words very frequently delivered in Syriac and Hebrew idiom.

‘The conclusion from the whole is this, that *nominal* or *local* barbarity of style (for that this attribute, when applied to style, is no more than nominal or local, will be clearly shewn under our next head) is so far from being an objection to its miraculous acquisition, that it is one mark of such extraordinary original^[135].’

I have given this long quotation together, that the reader may comprehend at one view the drift and coherence of the Bishop’s argument: which is so clearly explained that what force it hath, can receive no addition from any comment of mine upon it.

It is true, this force appears to you no mighty matter—“We are told, you say, that, in order to convey clear intelligence to a foreigner, nothing more is necessary, than to use the *words* of his language adapted to the *idiom* of our own. But shall we always find correspondent words in his language^[136]?”

Shall we always find correspondent words?—Not always, *perfectly* correspondent. Where does the Bishop say, we shall? Or, how was it to his purpose to say it? He does indeed speak of *such a correspondence of terms*, and chiefly of *such an adaption of the terms of one language to the idiom of another*, as shall abundantly serve to give *clear intelligence*. And this is all he had occasion to say.

Well, but an exact correspondence of terms is material. To what? To give *clear intelligence*? But if this be true, no clear intelligence can possibly be given in any translation from one language into another; for, in all translations whatever, it is necessary to render some words by others, that

are not perfectly correspondent. You will scarcely deny that our English translation of the Gospels conveys, in general, *clear intelligence* to the English reader, though many terms are used in it, and were of necessity to be used, that do not perfectly and adequately correspond to the Greek terms, employed by the sacred writers. Without doubt it was your purpose to convey *clear intelligence* to your English reader in the elegant translations, they say, you have made of DEMOSTHENES: and yet doubtless you will acknowledge that many words of the Athenian orator are not perfectly correspondent to those employed by you in your version of them.

What follows from this? Why, either that all translations must be exploded and set aside as insufficient to give clear intelligence, or that we must accept them, with all their unavoidable imperfections, as, in general, sufficiently representative of the sense of their originals, though in some particulars that sense be inadequately conveyed to us.

But how then, you will say, shall we gain a clear and perfect intelligence of such particulars? Why in the way, which common sense suggests; by inquiring, if we are able, what the precise meaning is of those terms of the original language, to which the translated terms are thus imperfectly correspondent. And if this be an inconvenience, 'tis an inconvenience necessarily attending every translation in the world, in which a writer would express the mixed modes denoted by the words of any other. For supposing the Greek tongue, infused by divine inspiration into the sacred writers, to have been that of PLATO or DEMOSTHENES himself, you will hardly pretend that it could have furnished them with Greek terms perfectly expressive of such compound ideas as certain Syriac or Hebrew terms expressed, and of which their subject obliged them to give, as far as the nature of the case would permit, *clear intelligence*. So that I cannot for my life comprehend the drift of that short question, *Shall we always find correspondent terms in a foreign language?* or, the pertinence of your learned comment on the text of CICERO's letter to SERVIUS.

I am sensible indeed, that, if the *terms* only of the new language were divinely infused, *these*, whether perfectly correspondent or not, would be insufficient of themselves to give clear intelligence. But the Bishop supposes more than this to be infused; for, *what was inspired, he tells us,*

was the terms, TOGETHER with that grammatic congruity which is dependent thereon. Now this knowledge of the *grammatic congruity* of any tongue, superadded to a knowledge of its terms, would methinks enable a writer to express himself in it, for the most part, *intelligibly*.

I confess, the Bishop speaks—of *fixing the terms or single words ONLY, and their signification, in the memory*—But then he does not mean to exclude the *grammatic congruity* in the use of them, which, as we have seen, he expressly requires in the very same paragraph, but merely to expose the notion of the *phrases and idioms* being required, too. His Lordship speaks of the *terms, or single words ONLY*, in opposition to *phrases and idioms*: you seem to speak of *terms, or single words ONLY*, in opposition to *systematic congruity*.

I say, you *seem* so to speak: for, otherwise, I know not what to make of all you say concerning the insufficiency of the *terms only* of any language to give intelligence. And yet, in what follows, you *seem* to do justice to the Bishop, and to admit that, besides the terms, a *grammatic congruity in the use of them* was divinely inspired. For you go on to observe, “That the real purport of almost every sentence, in every language, is not to be learned from the signification of detached words, *and their grammatical congruity*, even where their signification may be expressed by correspondent words in another language^[137].”

And here, Sir, your learning expatiates through several pages: the purpose of all which is to shew, that, if the *terms* of one language, though *congruously used*, be strictly adapted to the *idiom* of another, still they would give no intelligence, or at least a very obscure one; as you endeavour to prove by a *decent* instance taken from your countryman, SWIFT, in his dotages; and another, given by yourself in a literal version of a long passage of a sacred writer. It is true, in this last instance, you do not confine yourself to the strict observance of *grammatic congruity*. If you had done this, it would have appeared, from your own instance, that *intelligence* might have been given, and with tolerable *clearness* too, even in a literal version.

But be it allowed, that, if the terms of one language, even though a congruous construction be observed, be constantly and strictly adapted to the *idioms* of another, the expression will still, many times, be very dark

and obscure: how is this *obscurity* to be prevented? Take what language you will for the conveyance instruction, it will be necessary for the reader or hearer to gain a competent knowledge of its idioms and phraseology, before he can receive the full benefit of it. So that, unless there had been a language in the world, native to all nations, and in the strictest sense of the word *universal*, I see not how inspiration itself could remedy this inconvenience. Suppose, as I said before, that the inspired language in which the Apostles wrote had been the purest Greek, still its *idiomatic phraseology* had been as strange and obscure to all such to whom that language was not native, as the Syriac or Hebrew idioms, by which the Apostolic Greek is now supposed to be so much darkened.

I conclude upon the whole, that nothing you have said overturns, or so much as affects, the learned Prelate's notion of divine inspiration, *as conveying only the terms and single words of one language, corresponding to those of another, together with that grammatic congruity in the use of them which is dependant thereon*. This *first and grand principle*, as you call it, of the Bishop's new theory, is such, you say, *as no critic or grammarian can admit*^[138]. On the contrary, I must presume to think, because I have now shewn, that no critic or grammarian, who deserves the name, can reasonably object to this *principle*, as it allows all that is necessary to be supposed of an inspired language, its sufficiency to give clear intelligence: so *clear*, that, had the idioms of the new language been inspired too, it could not, in the general view of Providence, who intended this intelligence for the use of all people and languages, have been clearer.

But your unfavourable sentiment of the Bishop's principle arises from your misconception of the *circumstances, abilities, and qualifications* of the Apostles, when they addressed themselves to the work of their ministry, and especially to the work of composing books for the instruction of the faithful in this originally inspired language.

When the Greek language was first infused, it would, no doubt, be full of their native phrases, or rather it would be wholly and entirely adapted to the Hebrew or Syriac idioms. This would render their expression somewhat dark and obscure to their Grecian hearers. But then it would be intelligible enough to those to whom they first and principally addressed themselves,

the *Hellenistic Jews*, who, though they understood Greek best, were generally no strangers to the Hebrew idiom.

Further still, though this Hebrew-Greek language was all that was originally infused into the Apostles, nothing hinders but that they might, in the ordinary way, improve themselves in the Greek tongue, and superadd to their inspired knowledge whatever they could acquire, besides, by their conversation with the native Greeks, and the study of their language. For, though it can hardly be imagined, as the Bishop says, *that the inspired writers had cultivated their knowledge of the language on the principles of the Grecian eloquence*^[139], that is, had formed and perfected their style by an anxious and critical attention to the rules and practice of the Greek rhetors, yet we need not conclude that they wholly neglected to improve themselves in the knowledge and use of this new language. So that, by the time they turned themselves to the Gentiles, and still more by the time they applied themselves to pen the books of the N. T. they might be tolerable masters even of the peculiar phraseology of the Greek tongue, and might be able to adapt it, in good measure, to the Greek idioms.

All this, I say, is very *supposeable*; because their turning to the Gentiles was not till near TEN years after the descent of the Holy Ghost upon the Apostles and the date of their earliest writings, penned for the edification of the Church, was not till near TWENTY years after that period: In all which time, they had full leisure and opportunity to acquire a competent knowledge of the native idiomatic Greek, abundantly sufficient to answer all ends of clearness and instruction.

But I go further, and say, It is not only very *supposeable*, and perfectly consistent with all the Bishop has advanced on the subject of inspiration, that the sacred writers *might* thus improve themselves, but it is, likewise, very *clear* and *certain* that they DID. How else are we to account for that difference of style observable in the sacred writers, whose expression is more or less coloured by their native Hebrew idioms, according as their acquaintance with the Greek tongue was more or less perfect? There were still, no doubt, very many of their own native idioms interspersed in their most improved Greek: As must ever be the case of writers who compose in a foreign tongue, whether acquired in the ordinary way, or supernaturally

infused into them: But these barbarisms, as they are called, I mean these Syriasms or Hebraisms, are not so constant and perpetual as to prevent their writings from giving *clear intelligence*. In short, the style of the inspired writers is JUST that which we should naturally expect it to be, on this supposition of its being somewhat improved by use and exercise, and which the learned Bishop *accurately* (and in perfect *consistency* with his main principle, *of the terms only being inspired, with the congruous use of them*) defines it to be, “Greek words VERY FREQUENTLY *delivered in Syriac and Hebrew idiom*^[140].”

Thus, in every view, the Bishop’s *grand* principle may be safely admitted. All that we *need* suppose, and therefore all that is *reasonable* to be supposed, is, *That the terms of the Greek language, and a grammatical congruity in the use of them*, was miraculously infused: The rest would be competently and sufficiently obtained by the application of ordinary means, without a miracle.

After saying so little, or rather after saying indeed *nothing*, that affects the Bishop’s principle, I cannot but think it is with an ill grace you turn yourself to cavil at the *following incidental observation* of his Lordship, which yet will be found as true and as just as any other he has made on this subject.

To those who might expect *that, besides the simple impression of the Greek terms only, and their signification* on the minds of the inspired linguists, *another should have been made to enrich the mind with all the ideas which go towards the composing the phrases and idioms of the language so inspired* (all which had been necessary, if the inspired language had been intended for a perfect model of Grecian eloquence), the Bishop replies —‘This latter impression seems to require, or rather indeed implies, a previous one of the tempers, fashions, and opinions, of the people to whom the language is native, upon the minds of them to whom the language is thus imparted; because the phrase and idiom arises from, and is dependent on those manners^[141].’ But such an impression as this, he goes on to shew, was not to be expected.

It is clear from this passage, that the Bishop is speaking of *an impression* necessary to be made on the minds of the Apostles, if the inspired language had been so complete as to extend to all its native phrases and idioms. If the

Apostles were instantly to possess the inspired Greek in this perfection, it is necessary to suppose that this *last* impression must, as well as that of the terms, be made upon them. Can any thing, be more certain and undeniable than this *affirmation*? Yet, in p. 86. of your book, you have this strange passage.

After having shewn, as you suppose, that the Bishop's grand principle, of the inspiration of the TERMS only, stands on a very insecure foundation, "Perhaps," you say, "it is no less HAZARDOUS to affirm, that a knowledge of the idiom or phraseology of any language, *always* implies a previous knowledge of the customs and manners of those to whom it is vernacular."

You intended, no doubt, in your censure of this hazardous position, to oppose something which the Bishop had affirmed. Be pleased now to cast your eye on the passage you criticize, and tell me where the Bishop asserts, *that a KNOWLEDGE of the idiom or phraseology of any language ALWAYS implies a previous knowledge of the customs and manners of those to whom it is vernacular*. What the Bishop asserts is, *That an IMPRESSION of the phrases and idioms of an inspired language implies a previous IMPRESSION of the tempers, fashions, and opinions of the people to whom the language is native, upon the minds of them to who the language is THUS imparted*: that is, if a knowledge of the idioms had been *impressed*, a knowledge of the customs and manners from which those idioms arise, and without a knowledge of which they could not be understood (as they were to be, by the recipients of this spiritual gift), must have been *impressed* likewise. No, you say: a *knowledge* of the idiom of a language does not *always* imply a previous *knowledge* of the manners. Who says, it does? We may come to *know* the idioms of languages, without a *divine impression*: and without such impression, for any thing appears to the contrary, the Bishop might suppose the sacred writers came by their knowledge, so far as they possessed it, of the Greek idioms. But the *impression* of such idioms could only come from another and *previous impression* of the customs and manners: because in this case, without a previous impression of the *customs and manners*, the *idioms* themselves, when impressed, could not have been understood, nor consequently put to use, by the persons on whom this impression was made. They had no time to recur to Lexicons, Grammars, and Commentaries to know the meaning of the impressed idioms. How then

were they, on the instant, to know their meaning at all, but by a *previous impression* of the manners, from which they arose, and which would put them into a capacity of understanding these impressed idioms?

In a word, the Bishop is speaking of SUPERNATURAL IMPRESSION: you, of NATURAL KNOWLEDGE. No wonder, then, your reasoning and your learning, in the concluding pages of this chapter, should look entirely *beside* the matter in hand, or, at best, should look so *askew* on the Bishop's *hazardous* position. It is certain, you are far enough out of all danger of encountering it, when you entrench yourself, at length, behind this distant and secure conclusion—"that the knowledge of idiom is so far from requiring, or implying a previous one of tempers, manners, &c. that the very CONVERSE of this seems to be the safer principle; and that tempers and manners are not to be learned, without some degree of previous acquaintance with the peculiarities of a language^[142]:" a proposition, which though exceptionable enough, as you put it, and even suggesting some pleasant ideas, I am in no humour, at present, to contest with you.

This, SIR, IS THE WHOLE of what I find advanced by you, that hath any shew or appearance of being intended as a Confutation of the argument by which the Bishop supports his FIRST PARADOX; in opposition to Dr. MIDDLETON'S opinion, *That an inspired language must needs be a language of perfect eloquence*. The Bishop has told us in very accurate terms what he conceives the character of an inspired language must needs be: and I have at least shewn, that the character he gives of it may be a just one, notwithstanding any thing you have objected to it in your learned Dissertation.

I now proceed to the Bishop's SECOND PARADOX; which opposes Dr. MIDDLETON'S *second Proposition, That eloquence is something congenial and essential to human speech, and inherent in the constitution of things*.

'This supposes, says the Bishop, 'that there is some certain ARCHETYPE in nature, to which that quality refers, and on which it is formed and modelled. And, indeed, admitting this to be the case, one should be apt enough to conclude, that when the Author of nature condescended to inspire one of these plastic performances of human art, he would make it by the exactest pattern of the *Archetype*.

‘But the proposition is fanciful and false. Eloquence is not congenial or essential to human speech, nor is there any Archetype in nature to which that quality refers. It is accidental and arbitrary, and depends on custom and fashion: it is a mode of human communication which changes with the changing climates of the Earth; and is as various and unstable as the genius, temper, and manners of its diversified inhabitants. For what is PURITY but the use of such terms, with their multiplied combinations, as the interest, the complexion, or the caprice of a writer or speaker of authority hath preferred to its equals? What is ELEGANCE but such a turn of idiom as a fashionable fancy hath brought into repute? And what is SUBLIMITY but the application of such images, as arbitrary or casual connexions, rather than their own native grandeur, have dignified and ennobled? Now ELOQUENCE is a compound of these three qualities of speech, and consequently must be as nominal and unsubstantial as its constituent parts. So that, that mode of composition, which is a model of *perfect eloquence* to one nation or people, must appear extravagant or mean to another. And thus in fact it was. Indian and Asiatic eloquence were esteemed hyperbolic, unnatural, abrupt and puerile to the more phlegmatic inhabitants of *Rome* and *Athens*. And the Western eloquence, in its turn, appeared nerveless and effeminate, frigid or insipid, to the hardy and inflamed imaginations of the East. Nay, what is more, each species, even of the most approved genus, changed its nature with the change of clime and language; and the same expression, which, in one place, had the utmost *simplicity*, had, in another, the utmost *sublime*^[143].’

The Bishop then proceeds to illustrate this last observation by a famous instance, taken from the first chapter of *Genesis*, and then recapitulates and enforces his general argument in the following manner.

‘Apply all this to the books of the N. T. an authorized collection, professedly designed for the rule and direction of mankind. Now such a rule demanded that it should be inspired of God. But inspired writing, the objectors say, implies the most *perfect eloquence*. What human model then was the Holy Ghost to follow? And a human model, of arbitrary construction, it must needs be, because there was no other: Or, if there were another, it would never suit the purpose, which was to make an impression on the minds and affections; and this impression, such an eloquence only as

that which had gained the popular ear, could effect. Should therefore the *Eastern* eloquence be employed? But this would be too inflated and gigantic for the *West*. Should it be the *Western*? But this would be too cold and torpid for the *East*. Or, suppose the *generic* eloquence of the more polished nations was to be preferred, which *species* of it was to be employed? The rich exuberance of the Asiatic Greeks, or the dry conciseness of the Spartans? The pure and poignant ease and flowing sweetness of the Attic modulation, or the strength and grave severity of the Roman tone? Or should all give way to that African torrent, which arose from the fermented mixture of the dregs of *Greece* and *Italy*, and soon after overflowed the Church with theological conceits in a sparkling luxuriancy of thought, and a sombrous rankness of expression? Thus various were the species's! all as much decried by a different genus, and each as much disliked by a different species, as the eloquence of the remotest East and West, by one another^[144].'

Thus far the learned Bishop, *with the spirit and energy*, as you well observe, *of an ancient orator*^[145]; and, let me add, with a justness and force of reasoning, which would have done honour to the best ancient Philosopher. But here we separate again. You maintain, with Dr. MIDDLETON, *that eloquence is something congenial and essential to human speech*: While I, convinced by the Bishop's reasoning in these paragraphs, maintain that it assuredly is not.

The subject, indeed, affords great scope to your rhetorical faculties; and the cause, you maintain, being that, as you conceive, of the antient orators, and even of eloquence itself, you suffer your enthusiasm to bear you away, without controul; and, as is the natural effect of enthusiasm, with so little method and precision of argument, that a cool examiner of your work hardly knows how to follow you, or where to take aim at you, in your aery and uncertain flight. However, I shall do my best to reduce your Rhetoric to Reason; I mean, to represent the substance of what you seem to intend by way of argument against the Bishop's principle, leaving your eloquence to make what impression on the gentle reader it may.

And, FIRST, in opposition, as you suppose, to the Bishop's tenet, "*That eloquence is NOT something congenial and essential to human speech*," you

apply yourself to shew, through several chapters, that tropes, metaphors, allegories, and universally what are called by Rhetoricians *figures of speech*, are natural and necessary expressions of the passions, and have their birth in the very reason and constitution of things. To make out this important point is the sole drift of your I, II, III, and IVth Chapters; in which you seem to me to be contending for that which nobody denies, and to be disputing without an opponent. At least, you can hardly believe that the Bishop of *Gloucester* is to be told, that metaphors, allegories, and similitudes are the offspring of nature and necessity, HE, who has, *with the utmost justness and elegance of reasoning*, as you well observe^[146], explained this very point, himself, in the DIVINE LEGATION.

What then are we to conclude from these elaborate chapters? Why, that by some unlucky mistake or other, let us call it only by the softer name, of *inattention*, you have entirely misrepresented the scope and purpose of all the Bishop has said on the subject of eloquence. And that this is no hasty or groundless charge, but the very truth of the case, will clearly be seen from a brief examination of the Bishop's theory, compared with your reasonings upon it.

The position, *that eloquence is something congenial and essential to human speech*, supposes, says the Bishop, *that there is some certain Archetype in nature, to which that quality refers, and on which it is to be formed and modelled*.

The Bishop, you see, requires an *Archetype* to be pointed out to him of that consummate eloquence, which is said to be *congenial and essential to human speech*. The demand is surely reasonable; and not difficult to be complied with, if such an Archetype do, in fact, subsist. But do you know of any such? Do you refer him to any such? Do you specify that *composition*? or do you so much as delineate that *sort* of composition, which will pass upon all men under the idea of an Archetype? Nothing of all this. Permit us then to attend to the Bishop's reasoning, by which he undertakes to prove that no such Archetype does or can exist.

'The proposition [that asserts, there is such an Archetype] is fanciful and false. Eloquence is not congenial or essential to human speech, nor is there any Archetype in nature to which that quality refers. It is accidental and

arbitrary, and depends on custom and fashion: It is a mode of human communication which changes with the changing climates of the earth; and is as various and unstable as the genius, temper, and manners of its diversified inhabitants^[147].'

The Bishop asserts *there is no Archetype*, because eloquence is a variable thing, depending on custom and fashion; is nothing absolute in itself; but relative to the fancies and prejudices of men, and changeable, as the different climes they inhabit. This *general* reason seems convincing: it appeals to fact, to experience, to the evidence of sense. But the learned Prelate goes further. He analyzes the complex idea of eloquence: he examines the qualities of speech, of which it is made up; and he shews that they are nominal and unsubstantial. Hence it follows, again, That there is no Archetype in nature of perfect eloquence; its very constituent parts, as they are deemed, having no substance or reality in them.

But why should the Bishop condescend to this analysis, when his *general argument* seemed decisive of the question? For a good reason. When the Bishop asked for an ARCHETYPE, though you are shy of producing any, he well knew that the masters of Eloquence, those I mean who are accounted such in these parts of the world, had pretended to give one. He knew the authority of these masters of human speech with the sort of men, he had to deal with: he therefore takes the Archetype, they have given, and shews, upon their own ideas of eloquence, it is a mere phantom.

It is not to be supposed that the Bishop, in touching incidentally the question of Eloquence in a theological treatise, should follow the Greek and Latin rhetors through all the niceties and distinctions of their Art, or should amuse himself or us with a minute detail of all the particulars which go to the making up of this mighty compound, their ARCHETYPAL IDEA of human eloquence. If he had been so pleased, and had had no better business on his hands, it is likely he could have told us *news*, as you have done, out of ARISTOTLE, LONGINUS, and CICERO. But his manner is to say no more on a subject, than the occasion makes necessary; which, in the present case, was no more than to acquaint his reader, in very general terms, with the constituent parts of eloquence; which he resolves into these three, PURITY, ELEGANCE, and SUBLIMITY.

But this you call a most illogical division of Eloquence; for that the Bishop hath not only enumerated the constituent parts imperfectly; but, of the three qualities which he hath exhibited, the first is included in the second, and the third is not necessarily and universally a part of eloquence^[148].

The enumeration, you say, is imperfect. Yet Purity, I think, denotes whatever comes under the idea of PROPRIETY, that is, of approved custom, as well as grammatical use, in any language: Elegance, expresses all those embellishments of composition, which are the effect of ART: and I know no fitter term than Sublimity, to stand for those qualities of eloquence, which are derived from the efforts of Genius, or NATURAL PARTS. Now what else can be required to complete the idea of Eloquence, and what defect of logic can there be in comprehending the various properties of human speech under these three generic names? The division is surely so natural and so intelligible, that few readers, I believe, will be disposed to object with you, *that the first of the three qualities is included in the second, and that the third is not necessarily and universally a part of eloquence.*

But let the Bishop's enumeration be ever so *logical*, you further quarrel with his *idea* of these three constituent parts of eloquence, and his reasoning upon them.

‘What; says his Lordship, is PURITY but the use of such terms with their multiplied combinations, as the interest, the complexion, or the caprice of a writer or speaker of authority hath preferred to its equals?’

This idea of purity in language you think strange; and yet in the very chapter in which you set yourself to contemplate and to reprobate this *strange idea*, you cannot help resolving *purity*, into *usage and custom*, that is, with QUINTILIAN, into *consensum (eruditorum)*; which surely is but saying in other words with the Bishop, that it consists *in the use of such terms, with their multiplied combinations, as the interest, the complexion, or the caprice of a writer or speaker of Authority hath preferred to its equals*—for *equals* they undoubtedly were, till that usage or custom took place. When this *consent of the learned* is once established, every writer or speaker, who pretends to *purity* of expression, must doubtless conform to it: but previously to such consent, *purity* is a thing arbitrary enough to justify

the Bishop's conclusion, that this quality *is not congenial and essential to human speech*.

Next, the Bishop asks, 'What is ELEGANCE but such a turn of idiom as a fashionable fancy hath brought into repute?'

Here, again, you grow very nice in your inquiries into the idea of *fancy*, the idea of *fashion*, and I know not what of that sort. In a word, you go on *defining*, and *distinguishing* to the end of the chapter, in a way that without doubt would be very edifying to your young scholars in *Trinity College*, but, as levelled against the Bishop, is certainly unseasonable and out of place. For define *elegance* that you will, it finally resolves into something that *is not of the essence of human speech*, but factitious and arbitrary; as depending much on the taste, the fancy, the caprice (call it what you please) of such writers or speakers, as have obtained the popular vogue for this species of eloquence, and so had the fortune to bring the turn of idiom and expression, which they preferred and cultivated, into general repute.

'Lastly,' the Bishop asks, 'What is SUBLIMITY but the application of such images, as arbitrary or casual connexions, rather than their own native grandeur, have dignified and ennobled?'

To this question you reply by asking another, *Whether sublimity doth necessarily consist in the application of images?* But, *first*, if what is called Sublimity, *generally* consists in the application of images, it is abundantly sufficient to the Bishop's purpose: *Next*, I presume to say, that the sublime of eloquence, or the impression which a genius makes upon us by his expression, consists necessarily and universally in the application of *images*, that is, of bright and vivid ideas, which is the true, that is, the received sense of the word, *images*, (however rhetoricians may have distinguished different kinds of them, and expressed them by different names) in all rhetorical and critical works. *Lastly*, I maintain that these bright and vivid ideas are rendered *interesting* to the reader or hearer from the influence of ASSOCIATION, rather than *of their own native dignity and grandeur*: of which I could give so many instances, that, for this reason, I will only give your own, which you lay so much stress upon, of *the famous oath, by the souls of those who fought at Marathon and Plataea*^[149]: where the peculiar ideas of *interest*, *glory*, and *veneration*, associated to the *image*

or idea of the battle of *Marathon* and *Plataea*, gave a sublime and energy to this oath of DEMOSTHENES, *by the souls of those that fought there*, in the conceptions of his countrymen, which no other people could have felt from it, and of which you, Sir, with all your admiration of it, have certainly a very faint conception at this time.

I should here have dispatched this article of *Sublimity*, but that you will expect me to take some notice of your objection to what the Bishop observes, ‘That this species of eloquence changed its nature, with the change of clime and language; and that the same expression, which in one place had the utmost *simplicity*, had, in another, the utmost *sublime*^[150].’ An observation, which he illustrates and confirms by the various fortune of the famous passage in *Genesis*, *God said, Let there be light, and there was light; so sublime*, in the apprehension of LONGINUS and BOILEAU, and so *simple*, in that of HUETIUS and LE CLERC.

To this pertinent illustration, most ingeniously explained and enforced by the learned Prelate, you reply with much ease, “That this might well be, and even in the same place,” and then proceed to *inform* him of I know not what union between *simplicity* and *sublimity*; though you *civilly* add, “That it is a point known to every SMATTERER in criticism, that these two qualities are so far from being inconsistent with each other, that they are frequently united by a natural and inseparable union^[151].”

“Simplicity and *sublimity* may be found together.” I think the proposition false, in your sense of it, at least. But be it true, that these qualities in expression may be found together. What then? The question is of a passage, where these qualities, in the apprehension of great critics, are found separately; the one side maintaining that it is merely *simple*, the other, that it is merely *sublime*. *Simplicity* is, here, plainly opposed to *sublimity*, and implies the absence of it: BOILEAU, after LONGINUS, affirming that the expression *is*, and his adversaries affirming that it is *not*, *sublime*. Can any thing shew more clearly, that the *sublime* of eloquent expression depends on *casual associations*, and not on the nature of things?

But the Bishop goes further and tells us, what the *associations* were that occasioned these different judgments of the passage in question. The ideas suggested in it were *familiar*, to the sacred writer: they were *new* and

admirable, to the Pagan Critic. Hence the expression would be of the greatest *simplicity* in MOSES, though it would be naturally esteemed by LONGINUS, infinitely *sublime*.

Here you cavil a little about the Effect of *familiarity*: but, as conscious of the weakness of this part of your answer, *Not to insist*, you say, *upon this, How comes it then that BOILEAU and many other Christian readers, to whom the ideas of creation were as familiar as to MOSES himself, were yet affected by the sublime of this passage?* You ask, How this comes to pass? How? Why in the way, in which so many other strange things come to pass, by *the influence of authority*. LONGINUS had said, the expression of this passage was *sublime*. And when he had said this, the wonder is to find two men, such as HUETIUS and LE CLERC, who durst, after that, honestly declare their own feelings, and profess that, to them, the expression was *not* sublime.

But more on this head of *Authority* presently.

You see, Sir, I pass over these chapters *on the qualities of Eloquence*, though they make so large a part of your *Dissertation*, very rapidly: and I do it, not to escape from any force I apprehend there to be in your argument or observations, but because I am persuaded that every man, who knows what language is, and how it is formed, is so convinced that those qualities of it by which it comes to be denominated *pure*, and *elegant*, and *interesting*, are the effects of *custom*, *fashion*, and *association*, that he would not thank me for employing many words on so plain a point. Only, as you conclude this part of your work with *an appeal*, which you think sufficiently *warranted, against the most positive decisions of fashion, custom, or prejudice, to certain general and established principles of rational criticism*, subversive, as you think, of the Bishop's whole theory, I shall be bold to tell you, as I just now promised, what my opinion is, *of these established rules of RATIONAL CRITICISM*: by which you will understand how little I conceive the Bishop's system to be affected by this confident appeal to *such principles*.

I hold then, that what you solemnly call *the established principles of rational criticism* are only such principles as criticism hath seen good to establish *on the practice of the Greek and Roman speakers and writers*; the European eloquence being ultimately the mere product and result of such

practice; and European criticism being no further *rational* than as it accords to it. This is the way, in which ancient and modern critics have gone to work in forming their systems: and their systems deserve to be called *rational*, because they deliver such rules as experience has found most conducive to attain the ends of eloquence in these parts of the world. Had you attended to this obvious consideration, it is impossible you should have alarmed yourself so much, as you seem to have done, at the Bishop's bold Paradox, as if it threatened the downfall of Eloquence itself: which, you now see, stands exactly as it did, and is just as secure in all its established rights and privileges on the Bishop's system of *there being no Archetype of Eloquence in nature*, as upon your's, *that there is one*. The rules of criticism are just the same on either supposition, and will continue the same so long as we take the Greek and Roman writers for our masters and models; nay, so long as the influence of their authority, now confirmed and strengthened by the practice of ages, and struck deep into the European notions and manners, shall subsist.

You need, therefore, be in no pain for the interests of Eloquence, which are so dear to you; nor for the dignity of your *Rhetorical office* in the University of *Dublin*; which is surely of importance enough, if you teach your *young hearers* how to become eloquent in that scene where their employment of it is likely to fall; without pretending to engage them in certain chimerical projects how they may attain an essential universal eloquence, or such as will pass for eloquence in all ages and countries of the world.

You see, Sir, if this opinion of mine be a truth, that it overturns at once the whole structure of your book. We, no doubt, who have been lectured in Greek and Roman eloquence, think it preferable to any other; and we think so, because it conforms to certain rules which our criticism has established, without considering that those rules are only established on the successful practice of European writers and speakers, and are therefore no rules at all in such times and places where a different, perhaps a contrary, practice is followed with the same success. Let a Spartan, an Asiatic, an African, a Chinese system of rhetoric be given: Each of these shall differ from other, yet each shall be best and most *rational*, as relative to the people for whom it is formed. Nay, to see how groundless all your fancies of a *rational*

essential eloquence are, do but reflect that even the European eloquence, though founded on the same general principles, is yet different in different places in many respects. I could tell you of a country, and that at no great distance, where that which is thought supremely *elegant* passes in another country, not less conversant in the *established principles of rational criticism*, for FINICAL; while what, in this country, is accepted under the idea of *sublimity*, is derided, in that other, as no better than BOMBAST.

What follows, now, from this appeal to *experience*, against your appeal to the *established rules of criticism*? Plainly this: That all the rhetors of antiquity put together are no authority against what the Bishop of Gloucester asserts concerning the nature of eloquence; since THEY only tell us (and we will take their word for it) what will *please or affect* under *certain* circumstances, while the BISHOP only questions whether the same rules, under ALL circumstances, will enable a writer or speaker to *please and affect*. Strange! that you should not see the inconsequence of your own reasoning. The Bishop says, The rules of eloquence are for the most part, local and arbitrary: No, you say, The rules are not local and arbitrary, FOR they were held reasonable ones at *Athens* and *Rome*. Your very answer shews that they were local and arbitrary. You see, then, why I make so slight on this occasion of all your multiplied citations from the ancient writers, which, how respectable soever, are no decisive authority, indeed no authority at all, in the present case.

Hitherto, the Bishop had been considering eloquence ONLY SO FAR as it is founded in arbitrary principles and local prejudices. For, though his expression had been general, he knew very well that his thesis admitted some limitation; having directly affirmed of *the various modes of eloquence*, not that they were altogether and in all respects, but MOSTLY, *fantastical* (p. 67), which, though you are pleased to charge it upon him as an *inconsistency*^[152], the reader sees is only a necessary qualification of his general thesis, such as might be expected in so exact a writer as the learned Bishop. He now then attends to this limitation, and considers what effect it would have on his main theory.

‘It will be said, *Are there not some more substantial principles of eloquence, common to all the various species that have obtained in the*

world?—Without doubt, there are.—Why then should not these have been employed, to do credit to the Apostolic inspiration? For good reasons: respecting both the speaker and the hearers. For, what *is* eloquence but a persuasive turn given to the elocution to supply that inward, that conscious persuasion of the speaker, so necessary to gain a fair hearing? But the first preachers of the Gospel did not need a succedaneum to that inward conscious persuasion. And what is the *end* of eloquence, even when it extends no further than to those more general principles, but to stifle reason and inflame the passions? But the propagation of Christian truths indispensably requires the aid of reason, and requires no other human aid^[153].

Here, again, you are quite scandalized at the Bishop's paradoxical assertions concerning the *nature* and *end* of eloquence; and you differ as widely from him now he argues on the supposition of there being *some more substantial principles of eloquence*, as you did before, when he contended that *most* of those we call principles were arbitrary and capricious things. You even go so far as to insult him with a string of questions, addressed *ad hominem*: for, having quoted some passages from his book, truly eloquent and rhetorical, you think you have him at advantage, and can now confute him out of his own mouth.

“Can any thing,” you ask, “be more brilliant, more enlivened, more truly rhetorical, than these passages? What then are we to think of the writer and his intentions? Is he really sincere in his reasoning? or are these eloquent forms of speech so many marks of falshood? Were they assumed as a *succedaneum to conscious persuasion*? And is the end and design of them to *stifle reason and inflame the passions*^[154]?”

To blunt the edge of these sharp and pressing interrogatories, give me leave to observe that the main question agitated by the Bishop is, whether divine inspiration can be reasonably expected to extend so far as to infuse a perfect model of eloquence, and to over-rule the inspired Apostles in such sort, as that all they write or speak should be according to the rules of the most consummate rhetoric. He resolves this question in the *negative*: *first*, by shewing that there is no such thing as what would be deemed a perfect model of eloquence subsisting in nature; a great part of what is called

eloquence in all nations being arbitrary and chimerical; and, *secondly*, by shewing that even those principles, which may be justly thought more substantial, were, for certain reasons, not deserving the solicitous and overruling care of a divine inspirer. His reasons are these: *First*, that eloquence, when most genuine, *is but a persuasive turn given to the elocution to supply that inward, that conscious persuasion of the speaker, so necessary to gain a fair hearing, and which the first preachers of the Gospel had already*, by the influence and impression of the holy Spirit upon their minds: And, *next*, *that the end of eloquence, even when it extends no further than to those more general principles, is but to stifle reason and inflame the passions; an end of a suspicious sort, and which the propagation of Christian truths, the proper business of the sacred writers or speakers, did not require.*

You see these *reasons*, in whatever defective, are both of them founded in *one common* principle, which the Bishop every where goes upon, and the best philosophy warrants, That, when the Deity interposes in human affairs, he interposes no further than is *necessary* to the end in view, and leaves every thing else to the intervention and operation of second causes. The Apostles wanted NO succedaneum to an inward conscious persuasion, which the observance of the general principles of eloquence supplies; they were not, therefore, supernaturally instructed in them. They wanted NO assistance from a power that tends *to stifle reason and inflame the passions*: it was not, therefore, miraculously imparted to them. Every thing here is rational, and closely argued. What was not necessary was not done. Not a word about the inconvenience and inutility, in all cases, of recurring to the rules and practice of a chaste eloquence: not a word to shew that, where eloquence is employed, there is nothing but fraud and *falsehood*, no inward persuasion, no consciousness of truth: not a word to insinuate that either you or the Bishop should be restrained from being as eloquent on occasion as you might have it in your power to be, or might think fit: nay, not a word against the Apostles themselves having recourse to the aids of human eloquence, if they had access to them, and found them expedient; only these aids were not REQUIRED, that is, were not to be claimed or expected from divine inspiration.

Thus stands the Bishop's reasoning, perfectly clear and just. The only room for debate is, whether his ideas of the *nature* and *end* of eloquence be just,

too. *Eloquence*, he says, *is but a persuasive turn given to the elocution, to supply that inward, that conscious persuasion of the speaker, so necessary to gain a fair hearing.* The general affirmation you do not, indeed cannot, reject or controvert; for, the great master of eloquence himself confirms it in express words—*Tum optimè dicit orator, cum VIDETUR vera dicere.* QUINCTIL. l. iv. c. 2. And, again, *Semper ita dicat, TANQUAM de causâ optimè sentiat.* l. v. c. 13; that is, an inward conscious persuasion is to be supplied by the speaker's art. The Bishop's idea then of the *nature* of eloquence is, as far as I can see, the very same idea which QUINCTILIAN had of it. Both agree, that eloquence is *such a turn of the elocution as supplies that inward conscious persuasion so necessary to the speaker's success.* The Bishop adds, that this *supply* the inspired writers did not want. But you will say, perhaps, that merely human writers may have this *inward conscious persuasion*, as well as the inspired. What then? if human writers can do without this succedaneum, which human eloquence supplies to inward persuasion, who obliges them to have recourse to it? Yes, but they cannot do so *well* without it. Who then forbids them to have recourse to it? For, neither are the inspired writers barred of this privilege: only, as being simply UNNECESSARY, it was not præternaturally supplied. Your perplexity on this subject arises from not distinguishing between what is *absolutely necessary*, and what is *sometimes expedient*: Divine inspiration provides only for the *first*; the *latter* consideration belongs to human prudence.

But it would be, further, a mistake to say, *that merely human writers have their inward conscious persuasion as well as the divine.* They may have it, indeed, from the conclusions of their own reason, but have they it in the same degree of strength and vivacity, have they the same *full assurance of faith*, as those who have truth immediately impressed upon them by the hand of God? I suppose, not.

But the Bishop's idea of the *END* of eloquence revolts you as much as his idea of its *nature*. What, says he, *is the END of eloquence, even when it extends no further than to those more general principles, but to stifle reason and inflame the passions?* And what other end, I pray you, can it have? You will say, To adorn, recommend, and enforce truth. It may be so, sometimes: this, we will say, is its more legitimate end. But even this end is not accomplished but by *stifling reason and inflaming the passions*: that is,

eloquence prevents reason from adverting *simply* to the truth of things, and to the force of evidence; and it does this by agitating and disturbing the natural and calm state of the mind with rhetorical *diminutions or amplifications*. VIS oratoris OMNIS, says QUINCTILIAN, in AUGENDO MINUENDOQUE consistit. [l. viii. c. 3. sub fin.] Now what is this but *stifling reason*? But it goes further: it *inflames the passions*, the ultimate end it has in view from *stifling reason*, or putting it off its guard. And for this, again, we have the authority of QUINCTILIAN, *affectibus perturbandus et ab intentione auferendus orator. Non enim solum oratoris est docere, sed plus eloquentia CIRCA MOVENDUM valet*. l. iv. c. 5. Or, would you see a passage from the great master of rhetoric, where his *idea* of this double end of eloquence is given, at once; it follows in these words—*Ubi ANIMIS iudicium VIS afferenda est, et AB IPSA VERI CONTEMPLATIONE abducenda mens, IBI PROPRIUM ORATORIS OPUS EST*. l. vi. c. 2. That is, where the *passions are to be inflamed, and reason stifled, there is the proper use and employment of the rhetorical art*. So exactly has the Bishop traced the footsteps of the great master, when he gave us his idea of the END of eloquence!

Well, but this *end*, you say, is IMMORAL. So much the worse for your system; for such is the undoubted end of eloquence, even by the confession of its greatest patrons and advocates themselves. But what? Is this end immoral in all cases? And have you never then heard, *that the passions*, as wicked things as they are, *may be set on the side of truth*? In short, Eloquence, like Ridicule, which is, indeed, no mean part of it, may be either well or ill employed; and though it cannot be truly said that the end of either is simply *immoral*, yet it cannot be denied that what these *modes of address* propose to themselves in ALL cases is, *to stifle reason and inflame the passions*.

The Bishop's idea, then, of the end of eloquence, I presume, is fairly and fully justified. But your complaint now is, that the Bishop does not himself abide by this idea. For you find a contradiction between what his Lordship says here—*that the END of eloquence, even when it extends no further than to those more general principles, is but to style reason and inflame the passions*, and what he says elsewhere—*that the PRINCIPAL end of eloquence, AS IT IS EMPLOYED IN HUMAN AFFAIRS, is to mislead reason and to cajole the fancy and affections*^[155]. But these propositions are perfectly consistent; nor was the *latter* introduced so much as for the purpose of *qualifying and*

palliating any thing that might be deemed offensive in the *former*. For though eloquence, chastely employed, goes no further than to *stifle reason and inflame the passions* (and the chastest eloquence, if it deserves the name, goes thus far), yet *the principal end of eloquence, as it is employed in human affairs*, is to *mislead* reason, which is something more than *stifling* it; and to *cajole*, which is much worse than to *inflame*, the passions. Reason may be STIFLED, and the passions INFLAMED, when the speaker's purpose is to inculcate *right and truth*: Reason is only in danger of being MISLED, and the fancy and affections of being CAJOLED, when wrong and error are enforced by him. So very inaccurate was your conception of the Bishop's expression! which I should not have explained so minutely, but to shew you that, when you undertook to expose such a writer, as the Bishop, you should have studied his expression with more care, and should have understood the force of words at another rate, than you seem to have done in this instance.

Still you will ask, if the *end* be so legitimate, why should not the inspired writers be trusted with this powerful engine of human eloquence? The Bishop gives several reasons: It is a *suspicious instrument*, p. 57. It was an *improper* instrument for heaven-directed men, whose strength was not to be derived from *the wisdom of men*, but from *the power of God*, p. 59. But the direct and immediate answer is contained, as I observed, in these words—*The propagation of Christian truths indispensably requires the aid of reason, and requires no other aid*. 1. Christianity, which is a *reasonable service*, was of necessity to be propagated by force of reason; in the Bishop's better expression, IT INDISPENSABLY REQUIRED THE AID OF REASON; but *Reason*, he tells us in the next words, *can never be fairly and vigorously exerted but in that favourable interval which precedes the appeal to the passions*. 2. The Propagation of Christianity, which indispensably required the aid of reason, REQUIRED NO OTHER HUMAN AID: that is, no other human means were simply REQUISITE or NECESSARY. God, therefore, was pleased to leave his inspired servants to the prudential use and exercise of their own natural or acquired talents; but would not supernaturally endow them with this *unnecessary* power of eloquent words. The inspired writers, even the most learned and, by nature, the most eloquent of them, made a very sparing use of such talents, *proudly sacrificing them*, as the Bishop nobly and eloquently says, *to the glory of the everlasting Gospel*. But as the *end* was not, so neither was the *use* of eloquence, simply immoral or evil in

itself. They were considerations of *propriety*, *prudence*, and *piety*, which restrained the Apostles generally, but not always, in the use of eloquence; which was less *decent* in their case, and which they could very well do without. When the same considerations prompt other men, under other circumstances, to affect the way of eloquence, it may safely, and even commendably, for any thing the Bishop has said on this subject as it concerns divine inspiration, be employed.

Admitting then the Bishop's ideas both of the *nature* and *end* of eloquence, the *want* of this character in the sacred writings is only vindicated, not *the thing itself* interdicted or disgraced.

The conclusion from the whole of what the Bishop has advanced on this argument, follows in these words:

‘What, therefore, do our ideas of fit and right tell us is required in the *style* of an universal law? Certainly no more than this—To employ those aids which are common to *all* language as such; and to reject what is peculiar to *each*, as they are casually circumstanced. And what are these aids but CLEARNESS and PRECISION? By these, the mind and sentiments of the Composer are intelligibly conveyed to the reader. These qualities are essential to language, as it is distinguished from jargon: they are eternally the same, and independent on custom or fashion. To give a language *clearness* was the office of Philosophy; to give it *precision* was the office of Grammar. Definition performs the first service by a resolution of the ideas which make up the terms: Syntaxis performs the second by a combination of the several parts of speech into a systematic congruity: these are the very things in language which are least positive, as being conducted on the principles of metaphysics and logic. Whereas, all besides, from the very power of the elements, and signification of the terms, to the tropes and figures of composition, are arbitrary; and, what is more, as these are a deviation from those principles of metaphysics and logic, they are frequently vicious. This, the great master quoted above [QUINCTILIAN] freely confesseth, where speaking of that ornamented speech, which he calls σχήματα λέξεως, he makes the following confession and apology—*esset enim omne schema VITIUM, si non peteretur, sed accideret. Verum auctoritate, vetustate, consuetudine, plerumque defenditur, sæpe etiam*

RATIONE QUADAM. Ideoque cum sit a simplici rectoque loquendi genere deflexa, *virtus* est, si habet PROBABILE ALIQUID quod sequatur^[156].’

There is no part of your book in which you exult more than in the confutation of this obnoxious paragraph. It is to be hoped, you do it on good grounds—but let us see what those grounds are.

The Bishop, in the paragraph you criticize in your vth Chapter, had said *that tropes and figures of composition*, under certain circumstances, there expressed, are frequently *vicious*. You make a difficulty of understanding this term, and doubt whether his Lordship means *vice* in a *critical*, or *moral* sense. I take upon me to answer roundly for the Bishop, that he meant *vice* in the *critical* sense: for he pronounces such tropes and figures *vicious*, ONLY *as they are a deviation from the principles of* METAPHYSICS AND LOGIC; and therefore I presume he could not mean *vice* in the other sense, which is *a deviation from the principles of* ETHICS. All you say on this subject, then, might have been well spared.

This incidental question, or doubt of your’s, being cleared up, let us now attend to the *more substantial grounds* you go upon, in your censure of the learned Bishop.

He had been speaking of *clearness and precision, as the things in language, which are least positive. Whereas, all besides, from the very power of the elements and signification of the terms, to the tropes and figures of composition, are arbitrary; and, what is more, as these are a deviation from the principles of metaphysics and logic, are frequently vicious.*

In the first place, you say, *it were to be wished that his Lordship had pleased to express himself with a little more precision*—Want of precision is not, I think, a fault with which the Bishop’s writings are commonly charged; and I wish it may not appear in this instance, as it did lately in another, that your misapprehension of his argument arises from the very *precision* of his expression. But in what does this supposed *want of precision* consist? Why, in not qualifying this sentence, passed on *the tropes and figures of Composition*, which, from the general terms, in which it is delivered, falls indiscriminately upon ALL writers and speakers; for that “ALL men, who have ever written and spoken, have *frequently* used this

mode of elocution, which is said to be *frequently* vicious^[157].” Well, but from the word, *frequently*, which you make yourself so pleasant with, it appears that the Bishop *had* qualified *this bold and dangerous position*.— Yes, but this makes the position *still more bold*. Indeed! The Bishop is then singularly unhappy, to have his position, *first*, declared bold for want of being qualified, and, *then*, bolder still, for being so. But your reason follows.

“What makes this position still more hardy is, that, however the conclusion seems confined and restrained by the addition of that qualifying word [frequently], yet the premises are general and unlimited. It is asserted without any restriction, that figurative composition is a deviation from the principles of metaphysics and logic. If then it be vicious *as it is*, i. e. *because* [quatenus] it is such a deviation, it must be not only *frequently* but *always* vicious; a very severe censure denounced against almost every speaker, and every writer, both sacred and prophane, that ever appeared in the world^[158].”

Here your criticism grows very logical; and, notwithstanding the confidence I owned myself to have in the *precision* of the Bishop’s style, I begin to be in pain how I shall disengage him from so exact and philosophical an objector. Yet, as the occasion calls upon me, I shall try what may be done. *As these* [tropes and figures of composition] *are a deviation from the principles of metaphysics and logic, they are frequently* VICIOUS. Since the *Attribute* of this proposition is so peculiarly offensive to you, your first care, methinks, should have been to gain precise and exact ideas of the *subject*; without which it is not possible to judge, whether what is affirmed of it be exceptionable, or no.

By *tropes and figures of composition*, you seem to understand *metaphors, allegories, similitudes*, and whatever else is vulgarly known under the name of *figures of speech*. For in p. 27, you speak of *Allegories, Metaphors and OTHER tropes and figures, which, you say, are no more than comparisons and similitudes expressed in another form*: And your concern, throughout this whole chapter, is for the vindication of *such tropes and figures* from the supposed charge of their being *a deviation from the principles of metaphysics and logic*. But now, on the other hand, I dare be confident that

the Bishop meant these terms, not in this *specific*, but in their *generic* sense, as expressing any kind of change, deflexion, or deviation from the plain and common forms of language. I say, I am *confident* of this, 1. because the precise sense of the words is such as I represent it to be; and I have observed, though, it seems, you have not, that the Bishop is of all others the most *precise* in his expression. 2. Because QUINCTILIAN authorizes this use of those terms, who tells us that—*per tropos verti formas non verborum modo, sed et sensuum, et compositionis*, l. viii. c. 6. And as to *figuram*, he defines it to be (as the word itself, he says, imports) *conformatio quædam orationis, remota à communi et primum se offerente ratione*, l. ix. c. 1. words, large enough to take in every possible change and alteration of common language. So that *all manners and forms* of language, different from the common ones, may, according to QUINCTILIAN, be fitly denominated *tropes and figures of composition*. 3. I conclude this to be the Bishop's meaning, because the *specific sense* of these words was not sufficient to his purpose, which was to speak of ALL kinds of tropical and figured speech. Now though *allegories, metaphors and other tropes and figures, which are no more than comparisons and similitudes, expressed in another form*, belong indeed to the *genus* of figured language, they are by no means the whole of it, as so great a master of rhetoric, as yourself, very well knows. 4. I conclude this, from the *peculiar mode* of his expression: if the Bishop had said simply *tropes and figures of speech*, I might perhaps (if nothing else had hindered) have taken him to mean, as you seem to have done, only *metaphors, allegories, and other tropes and figures, expressing, in another form, comparisons and similitudes*, which, in vulgar use, come under the name of *tropes and figures of speech*: But when he departs from that common form of expression, and puts it, *tropes and figures of COMPOSITION*, I infer that so exact a writer, as the Bishop, had his reasons for this change, and that he intended by it to express *more than tropes and figures of speech* usually convey, indeed ALL that can any way relate to the tropical and figurative use of words in *literary composition*.

It is now seen what the SUBJECT of this bold proposition is: namely, *tropical or figured language, in general*. This figured language, as it is a deviation from the principles of metaphysics and logic, is frequently *vicious*; i. e. is an acknowledged vice or fault in composition, as such. We now then see the force of the PREDICATE.

Well; but if this figured language “be vicious *as it is, i. e. because, quatenus*, it is such a deviation, it must not only be *frequently*, but *always* vicious.” The premises are general and unlimited: so must, likewise, be the conclusion. What sense, then, is there in the word, *frequently*? or what room, for that qualification?

See, what it is to be a great proficient in logic, before one has well learnt one’s Grammar! As, i. e. *because, quatenus*, say you. How exactly and critically the English language may be studied in *Dublin*, I pretend not to say: But we in *England* understand the particle *as*, not only in the sense of *because, quatenus*, but also, and, I think, more frequently, in the sense of *in proportion as, according as*, or, if you will needs have a Latin term to explain an English term, *prout, perinde ac*. So that the proposition stands thus: *These tropes and figures, ACCORDING AS they are a deviation from the principles of metaphysics and logic, are frequently vicious*. The premises, you now see, are qualified, as well as the conclusion. Figured language, WHEN it deviates from the principles of metaphysics and logic, is—what? *always* vicious? But the Bishop did not say, that figured language is *always* a deviation from those principles. He only says, *when* it so deviates, it is vicious. It is implied in the expression that figured language at least *sometimes* deviates from those principles, and the Bishop, as appears, is of opinion that it *frequently* deviates: He therefore says, consistently with his premises, and with his usual accuracy, It is *frequently* vicious.

In short, the Bishop’s argument, about which you make so much noise, if drawn out in mood and figure, would, I suppose, stand thus—“Tropical and figured language, WHEN it deviates from the principles of metaphysics and logic, is vicious—Tropical and figured language FREQUENTLY deviates from those principles—Therefore tropical and figured language is FREQUENTLY vicious.” And where is the defect of sense or logic, I want to know, in this argumentation? But you impatiently ask, *Are metaphors, allegories, and comparisons* then included in this *figured language*, which is pronounced *vicious*? To this question I can only reply, That I know not whether *metaphors, allegories, and comparisons*, are, in the Bishop’s opinion, *deviations* from the principles of metaphysics and logic; for I cannot find that he says any thing, in *particular*, of this kind of tropes and figures. But if you, or any one for you, will shew clearly, that *metaphors, allegories, and*

comparisons are such *deviations*, the Bishop, for any thing I know, might affirm, and might be justified in affirming, that they were in themselves *vicious*. But be not too much alarmed for your favourites, if he should: They would certainly keep their ground, though convicted of such *vice*; at least unless the Rhetoricians of our time should be so dull as not to be able to find out what QUINCTILIAN calls *probabile aliquid*, some probable pretext to justify or excuse them.

But, instead of troubling ourselves to guess what the Bishop *might* say on a subject on which he has said nothing, it is to better purpose to attend to what he *has* said, on the subject in question. The Bishop *has* said, *That tropical and figured language is frequently vicious*. You ask when? He replies, *When it deviates from the principles of metaphysics and logic*. But in what particular instances does this appear? He tells you this too. He gives you instances enough, to justify his affirmation, that tropical and figured language is *frequently* vicious; for he exemplifies his affirmation in ONE WHOLE class of such figured speech, as deviates from the principles of metaphysics and logic, and is therefore vicious, namely, *in the class of verbal figures*. ‘This, [*i. e.* the truth of the affirmation, That figured language, according as it is found to be a deviation from the principles of metaphysics and logic, is frequently vicious] the great master, QUINCTILIAN, freely confesseth, where, speaking of that ornamented speech, which he calls σχήματα λέξεως, he makes the following confession and apology—*esset enim omne schema vitium, si non peteretur, sed accideret. Verum auctoritate, vetustate, consuetudine, plerumque defenditur, sæpe etiam RATIONE QUADAM. Ideoque cum sit à simplici rectoque loquendi genere deflexa, virtus est, si habet PROBABLE ALIQUID quod sequatur*^[159].’

The difficulty, I trust, now begins to clear up. Figured language, is frequently vicious. Of this we have an instance given in one entire species of figured or ornamented speech, namely σχήματα λέξεως, or *verbal figures*. Can any thing be clearer and plainer? Yet, because you had taken it into your head that by *tropes and figures of composition* the Bishop understood, nay could only understand, *metaphors, allegories, and comparisons*, you dreamt of nothing, here, but the same fine things. And though QUINCTILIAN lay before the Bishop, when he quoted these words, though the Bishop’s own express words shew the contrary, for he speaks not

of tropes and figures in general, much less of such tropes and figures as you speak of, but solely of *that ornamented speech*, called σχήματα λέξεως, you will needs have him quote QUINCTILIAN in this place as speaking of *Rhetorical figures*. But let us attend to QUINCTILIAN's words. *Esset omne schema vitium, si non peterentur, sed acciderent*. What! Shall we think the Bishop could mean to affirm of *rhetorical figures*, that they would *always be vicious*, if they *were not sought for, but occurred of themselves*? For that, I think, is the translation of—*si non peterentur, sed acciderent*. Surely one way, and that the chief, in which *rhetorical figures, metaphors, allegories, and comparisons*, become vicious, is, when they *ARE sought for, sollicitously hunted after, and affectedly brought in*. The very contrary happens with regard to these verbal figures: they are vicious, when they *are NOT sought for and purposely affected*. I conclude then, that his Lordship, who surely does not want common sense, and, I think, understands Latin, did not, and could not intend to exemplify his observation in the case of *rhetorical figures*.

Still you are something puzzled and perplexed by the Bishop's observation. Admitting him to mean, as his author does, *verbal figures*, how can these be considered *as a deviation from the principles of metaphysics and logic*? How? Why, has not the Bishop told us, or, if he had not, is it not certain in itself, that *to give a language clearness is the office of philosophy; and that Definition, a part of Logic, performs that service by a resolution of the ideas, which make up the terms*? But these verbal figures are often a deviation from, nay a willful defiance of, *all logical definition*. Witness the very instance you and QUINCTILIAN give us, in VIRGIL's *timidi damæ*. Logic defines *Damæ* to be the *females* of that species of animals called *Deer*. The figurative VIRGIL confounds this distinction by using this term for the *males*, as well as females. But, universally, *Grammar* itself, whose peculiar office is to *give precision to language*, is a part of logic: the Bishop says, *its rules are conducted on the principles of Logic*. But *verbal figures*, even when they do not offend against the strictness of definition, are universally violations, in some degree or other, of *Grammar*, i. e. of *Logic*. Yet these violations of *Logical Grammar*, QUINCTILIAN tells us, may be allowed, *si habent probabile aliquid quod sequantur*; that is, for some fantastical reason or other, by which the masters of Rhetoric are pleased to recommend them to us.

And now, Sir, let me ask, what becomes of your fine comment on QUINCTILIAN's chapter concerning *verbal figures*, and, particularly, of your nice distinction between these, and *rhetorical figures*, which the Bishop, no doubt, wanted to be informed of? The issue of your exploits in Logic and Criticism is now seen to be this, That you have grossly misrepresented the Bishop; and needlessly, at least, explained QUINCTILIAN. *First*, you make the Bishop talk of *rhetorical figures* ONLY, in the *specific* sense of these terms, when his Lordship was all the while speaking of *figured language, in general*. *Next*, you make him deliver a bold position concerning rhetorical figures, as being *frequently* vicious, because *always* deviations from the principles of metaphysics and logic; when all he maintains, is, That figured language is FREQUENTLY vicious, according as it deviates from those principles; and, in particular, that *that* part of figured speech, called grammatical or verbal figures, is ALWAYS vicious.

To conclude, if you had shewn any compunction, or even common respect in exposing what you took to be the Bishop's absurdities on this subject, I should have made a conscience of laying you open on this head of *Rhetorical and Grammatical figures*. As it is, your unmerciful triumph over the poor Bishop makes it allowable for me to lay your dealing with him before the reader in all its nakedness; and, after what has been said, I cannot do it better than by letting him see how the Bishop's argumentation is represented by you, as drawn out in your own words, and that in full mood and figure.

"I should by no means," say you, "willingly misrepresent the argument of my Lord Bishop; but upon repeated examination of the passage here quoted, I must state it thus:

"Quintilian declares, that what are called grammatical figures are really no more than faulty violations of grammatical rules, unless when purposely introduced upon some reasonable or plausible grounds."

Therefore,

"He confesses that tropes and figures of composition, as they are a deviation from the principles of metaphysics and logic, are frequently vicious."

You add, “If this be a fair representation, it were to be wished that the learned author *had so far condescended to men of confined abilities*, as to explain the connexion between these two propositions^[160].”

As the *learned author*, I guess, may be better employed than in this unnecessary task, which you *wish* to impose upon him, I have taken upon me to discharge that office, with less able hands; and, yet, have *explained the connexion between these two propositions* in such sort, that, if I mistake not, we shall never hear more from you, of any inconsistency between them.

I have NOW, Sir, gone through the several particulars of your Dissertation, and have shewn, I think, clearly and invincibly, that all your objections to the Bishop’s paradoxical sentiments on the subject of Eloquence are mistaken and wholly groundless.

The TWO propositions his Lordship took upon him to confute, 1. *That an inspired language must needs be a language of perfect eloquence*; and, 2. *That eloquence is something congenial and essential to human speech, and inherent in the constitution of things*: These two propositions, I say, are so thoroughly confuted by the Bishop, that not one word of all you say in any degree affects his reasoning, or supports those two propositions against the force of it. I am even candid enough to believe that, on further thoughts, you will not yourself be displeased with this ill success of your attack on the learned Prelate’s *principles*; which are manifestly calculated for the service of religion and the honour of inspired scripture. For, though you attempt to shew us in your two last chapters, how the honour of inspired scripture may be saved on *other principles*, yet allow me to say that, for certain reasons, I much question the validity of those principles; at least, that the persons, most concerned in this controversy, will by no means subscribe to them. If there be an Archetype of eloquence in nature, ‘one should be apt enough, as the Bishop says, to conclude, that when the Author of nature condescended to inspire one of these plastic performances of human art, he would make it by the exactest pattern of the Archetype^[161].’ Or, whatever you and I and the Bishop might conclude, assure yourself that the objectors to inspired scripture will infallibly draw that conclusion. And, when they do so, and fortify themselves, besides, with the authority of so

great a master of eloquence, as yourself, it will be in vain, I doubt, to oppose to them your ingenious harangues and encomiums on the eloquent composition of the sacred scriptures. Nay, it would give you, no doubt, some pain to find that, though they should accept your authority for the truth of their favourite principle of there being *an Archetype in nature of perfect eloquence*, they would yet reject your *harangues and encomiums* with that disdain which is so natural to them. The honour of sacred scripture will then hang on a question of *Taste*: and unluckily the objectors are of such authority in that respect, that there is no appeal from their decisions of it.

The contemplation of these *inconveniencies*, together with the *love of truth*, determined me to hazard this address to you. I will not deny, besides, that the mere *justice* due to a great character, whom I found somewhat freely, not to say injuriously treated by you, was also, *one* motive with me. If I add still *another*, it is such as I need not disown, and which you, of all men, will be the last to object to, I mean a motive of *Charity* towards yourself.

I am much a stranger to your person, and, what it may perhaps be scarce decent for me to profess to you, even to your writings. All I know of YOURSELF, is, what your book tells me, that you are distinguished by an honourable place and office in the University of *Dublin*: and what I have heard of your WRITINGS, makes me think favourably of a private scholar, who, they say, employs himself in such works of learning and taste, as are proper to instill a reverence into young minds for the best models of ancient eloquence. While you are thus creditably stationed, and thus usefully employed, I could not but feel some concern for the hurt you were likely to do yourself by engaging in so warm and so unnecessary an opposition to a *writer*, as you characterize him, *of distinguished eminence*^[162]. Time was, when even with us on this side the water, the novelty of this writer's positions, and the envy, which ever attends superior merit, disposed some warm persons to open, and prosecute with many hard words, the unpopular cry against him, of his being a bold and PARADOXICAL writer. But reflexion and experience have quieted this alarm. Men of sense and judgment now consider his Paradoxes as very harmless, nay as very sober and certain truths; and even vie with each other in their zeal of building upon them, as the surest basis, on which a just and rational vindication of our common

religion can be raised. This is the present state of things with us, and especially, they say, in the Universities of this kingdom.

It was, therefore, not without some surprize, and, as I said, with much real concern, that I found a gentleman of learning and education revive, at such a juncture, that stale and worn-out topic, and disgrace himself by propagating this clamour, of I know not what *paradoxical boldness*, now long out of date, in the much-approved writings of this great Prelate. Nor was the dishonour to yourself, the only circumstance to be lamented. You were striving, with all your might, to infuse prejudices into the minds of many ingenious and virtuous young men; whom you would surely be sorry to mislead; and who would owe you little thanks for prepossessing them with unfavourable sentiments of such a man and writer, as the Bishop of *Gloucester*, they will find, is generally esteemed to be.

These, then, were the considerations, which induced me to employ an hour or two of leisure in giving your book a free examination. I have done it in as few words as possible, and in a *manner* which no reasonable and candid man, I persuade myself, will disapprove. I know what apologies may be requisite to the learned Bishop for a stranger's engaging in this officious task. But to you, Sir, I make none: It is enough if any benefits to yourself or others may be derived from it.

I am, with respect, &c.

FINIS.

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FOOTNOTES:

[1](#) Prov. xvi. 7.

[2](#) Isaiah, xxvi. 9.

[3](#) Rev. ii. 4, 5.

[4](#) Eph. i. 7.

[5](#) John i. 1.

[6](#) Col. i. 17.

[7](#) Rev. i. 17. xxii. 13.

[8](#) Heb. i. 8.

[9](#) Micah v. 2.

[10](#) Rev. i. 8.

[11](#) John xvii. 5.

[12](#) Ps. iii. 2.

[13](#) Eph. iii. 9, 10, 11.

[14](#) Eph. iii. 18, 19.

[15](#) Acts x. 18.

[16](#) Eph. iii. 21.

[17](#) 1. Pet. i. 12.

[18](#) Eph. i. 10.

[19](#) Rev. xiv. 6.

[20](#) Gal. i. 6.

[21](#) Rom. x. 18.

[22](#) Col. xi. 10.

[23](#) Matth. xxviii. 19.

[24](#) 2 Cor. i. 12.

[25](#) 2 Cor. xii. 9.

[26](#) 1 Cor. vii. 21-24.

[27](#) John xv. 16.

[28](#) 1 Tim. iv. 16.

[29](#) Phil. i. 10, 11.

[30](#) Archbishop's Injunctions, S. xi.

[31](#) Canon LXXV.

[32](#) Phil. i. 9-11.

[33](#) Rom. xii. 16.

[34](#) Erasmi in Evang. Joannis Paraphrasis, cap. i.

[35](#) 1 Cor. ii. 14.

[36](#) 1 Cor. ii. 14.

[37](#) 2 Tim. iv. 2.

[38](#) Lord Bacon, A. L. B. i. p. 417.

[39](#) *Fiduciam* orator præ se ferat, semperque ità dicat tanquàm de causâ optimè sentiat. Quint. l. v. c. 13, p. 422.

[40](#) Matth. vii. 29.

[41](#) Matth. xv. 6.

[42](#) “In omnibus quæ dicit tanta auctoritas inest, ut dissentire pudeat; nec advocati studium, sed testis aut judicis afferat fidem.” Said of Cicero by Quintilian. The Roman orator acquired this praise by consummate art and genius. The plainest Christian homilist, who does his duty in *speaking as the oracles of God*, attains it with ease, and deserves it much better. Such is the pre-eminence of what the Apostle calls *the foolishness of preaching*!

[43](#) Tanta in oratione auctoritas, ut *probationis* locum obtineat. Quintil. p. 422.

[44](#) Bishop Stillingfleet, Sermon IV.

[45](#) *Afficiamur*, antequam afficere conemur. Quint. p. 461. *moveamur* ipsi. Ib.

[46](#) If I mention the names of the Bishops BEVERIDGE and BLACKALL, it is not in exclusion of many others, but because I suspect they are less known to the younger clergy than they deserve to be.

[47](#) Matth. xxviii. 20.

[48](#) “Parentes et Pædagogi pueros olim cum primum per ætatem sapere, et intelligere cœpissent, primis Christianæ religionis rudimentis diligenter instituebant, ut pietatem unà penè cum lacte nutricis imbiberent, et à primis statim cunis, virtutis incunabilis ad vitam illam beatam alerentur. Quem etiam ad

usum breves libri, quos *Catechismos* nostri appellant, conscribebantur.”

Noelli Catechismus de Baptismo.

[49](#) 2 Cor. xiii. 14.

[50](#) W. Weston, B. D. Fellow of St. John’s College, Cambridge; and vicar of Campden, Gloucestershire. Camb. 1746.

[51](#) Pref. p. ii.

[52](#) Pref. p. ii.

[53](#) Ded. p. iv.—“The best compliment I can make your Lordship on the occasion is the true one, *that I have a good opinion of the present performance myself,*” &c.

[54](#) Pref. p. iii.

[55](#) Pref. p. iii.

[56](#) Pref. p. ii.

[57](#) The following passages brought to confirm this *fact* are so well known, that, if there was not something uncommonly strong, and subversive of the writer’s objection in the very turn of expression, I should scarce think myself at liberty to transcribe them.—Visa est mihi res digna consultatione, maximè propter perielitantium *numerum*. Multi enim *omnis ætatis, omnis ordinis*, utriusque sexûs etiam vocantur in periculum et vocabuntur. Neque enim civitates tantum, sed vicos etiam atque *agros* superstitionis istius contagio pervagata—*propè jam desolata templa,*—*sacra solemnia diu intermissa.*—Plin.

[58](#) Hesterni sumus, et *vestra omnia implevimus, urbes, insulas, castella, municipia, conciliabula, castra ipsa, tribus, decurias, palatium, senatum, forum;* sola vobis relinquimus templa. Tertull. Apol. c. 37. And before speaking of the heathens,

Obessam vociferantur civitatem, in agris, in castellis, in insulis Christianos, omnem sexum, ætatem, conditionem & dignitatem transgredi ad hoc nomen quasi detrimento mærent. c. i. See also Arnobius, contr. Gentes, insisting on the same fact.—Vel hæc saltem fidem vobis faciunt argumenta credendi, quod jam per omnes terras in tam brevi tempore et parvo immensi nominis hujus sacramenta diffusa sunt? &c. L. ii. sub fin.

[59](#) Pref. p. iii.

[60](#) Chap. iii. p. 38.

[61](#) Speaking of I know not what *sour and dogmatical* divines, “I am not sure (says he) that I shall escape *their anathema*; since it is their custom generally to be displeased with every thing that does not fall in with their *fixed and settled sentiments*; and every defence of religion that is *out of their way* wants another to support it.” Pref. p. viii. And again: “With some, I suppose, the *novelty* of this matter will be for ever a bar to its reception.” P. 370.

[62](#) The reader sees I complaisantly allow the writer’s representation of the cases both of *Pilate and Gallio*; though much might, with good reason, be objected to each of them. For, 1. If I should lay any stress on the *acts of Pilate*, which, he owns, if admitted, would overturn the whole use of his evidence, I should but follow in this the best authorities, and those too supported by such reasonings as the Inquirer would find it difficult to confute. And, 2. As to Gallio’s case, however inattentive he might be to the fame of Paul’s miracles, the passage alledged is certainly insufficient to prove it. Acts, chap. xviii. 17. For, indeed, the Inquirer did not so much as apprehend the purpose of the sacred writer in that whole narration; which manifestly was not to signify to us Gallio’s inattention to the Apostle’s miracles, but his candour, and prudent conduct in refusing to interfere in religious matters, and in chusing rather to overlook an act of violence done in his presence (which, though strictly speaking illegal, he might probably think not altogether

undeserved of the malicious intolerating Jew), than gratify the complainant's passion in punishing either Paul or his heathen advocates. For this is the sense of those words, *He cared for none of these things*; which the writer ought to have seen is so far from proving Gallio's disregard of miracles, that, had he been Paul's convert, the very same thing had been observed of him.

[63](#) Aristeas.—The writers referred to in the margin are *Strabo*, *Maximus Tyrius*, *Pliny*, and *Herodotus*. Of these, the three first mention Aristeas *occasionally* only; and yet Strabo calls him ἀνὴρ γῶνς εἰ τις ἄλλος; and *Max. Tyrius* and *Pliny*, though they explode miracles, yet plainly enough declare the common creed to run in his favour. *Max. Tyrius* in particular, after having given us his opinion of his miracles, together with his reasons for pretending to them, adds, *And Aristeas gained more credit by this pretension to wonders and supernatural communications, than Xenagoras, Xenophanes, or any other philosopher could have acquired by relating the plain truth.* Καὶ ἦν πιθανώτερος ταῦτα λεγὼν ὁ Ἀριστεας ἢ ὁ Ξεναγόρας ἢ Ξενοφάνης, ἢ τις ἄλλος τῶν ἐξηγησαμένων τα ὄντα ὥς ἐχει. Lastly, the account Herodotus gives us is so much to the credit of his miracles, that one cannot imagine how the writer should think it to his purpose to refer to him. For he *was*, indeed, delivering the popular history of Aristeas; and therefore did, as might be expected, represent him, not only as a worker of miracles, but as much revered and *esteemed* for them. This he attests upon his own knowledge of several cities, all concurring in the firm belief of his miracles; and one of them in particular transported by so religious a veneration of him, as to erect a statue to his memory; which they also caused to be set up in the most public part of their city, and even close to one they had at the same time decreed to Apollo. And for the historian himself, though in truth the story be even foolish enough, yet so far is he from speaking of it with disregard, that I am not certain if he did not believe it, at least that part which relates to the Metapontini; which, after the mention of some

other things from hearsay only, he introduces in the following assured manner: “Thus far the report of these cities: But what I am now going to relate, I *certainly know* to have happened to the Metapontini in Italy, &c.” Ταυτα μεν αι πολεις αυται λεγουσι, τα δε οιδα Μεταποντινοισι εν Ιταλιη συγκυρησαντα, &c. L iv. 15; and then mentions the affair which gave occasion to the statue; which, he tells us, he saw himself, placed, as I have said, and inscribed to the memory of Aristeas.

64 The other impostors mentioned as not much esteemed for their miracles are *Pythagoras*, *Jamblichus*, and *Adrian*; though it is certain the writers of their lives lay great stress upon them. *Jamblichus* and *Porphyry*, after enlarging on several of Pythagoras’s miracles, which drew the applause and admiration of his followers, appeal to current fame for the credit of these, and of other still *diviner miracles*, which, say they, *are related of him with an uniform* and constant belief, μυρια δ’ ἑτερα θαυμαστοτερα και θειοτερα περι τ’ ανδρος ομαλως και συμφωνως ειρηται. (*Porph.* S. 28 and to the same purpose, and nearly in the same words, *Jambl.* S. 135). Jamblichus even goes so far, in speaking of the Pythagorean fondness for miracles, as to assure us, that they were conceived to prove the *divinity* of their authors, and by that means to give a sanction to their *opinions and doctrines*. την πιστιν των παρ’ αυτοις υποληψεων ηγγουνται ειναι ταυτην, &c. S. 140. *They conceive it, says he, to add a CREDIT and authority to their doctrines, that the author of them was a GOD; and therefore to the question, Who was Pythagoras? their answer was, The hyperborean Apollo; and in proof of this they alledge the miracle of his golden thigh. And yet, says the Inquirer, Pythagoras was not much more esteemed for his thigh of gold than one of flesh.* What pity is it, the wit of this antithesis should be no better supported!

As for *Eunapius*, though he plainly disbelieved the silly tale of the two boys of Gadara, yet, in relating it circumstantially as he does, he clearly enough expresses his own opinion of miracles,

and acknowledges thereby the credit they would bring his master, were they better attested, or but fairly received.

The miracles of the emperors are well known. And as their manifest intent was, of the one of them, to add a credit, or, as Suetonius more strongly expresses it, an *authority, and certain awfulness, befitting majesty*, to the person of *Trajan*, and of the *other*, to inspire the hopes of recovery into *Adrian*, so the relation of them by their historians, as useful and subservient to those ends, is a thorough confutation of what the author pretends about the little regard paid to them. And here it may be proper to observe, once for all, that the frequent narrations of prodigies and miracles, of which all Pagan story and antiquity is full, is infinitely a stronger argument for the high credit of miracles amongst the heathens in general, than any pretended *coolness, tranquillity, and indifference*, which the writer's warmth, in the prosecution of his favourite novelty, leads him to imagine in the narrations themselves, is, or can be, for the contrary opinion. Since *this* could only shew the incredulity of the relaters; whilst the *relating* them at all demonstrates the general good reception they met with from the people.

[65](#) This miracle was that of the fiery eruptions which hindered the building of the temple at Jerusalem by *Julian*; and which, falling into the hands of *Marcellinus*, might be expected to be spoken of as a natural event. But this is all: for, as to that *wonderful coolness and tranquillity*, which the writer pretends to have discovered in the narration, it is so far from appearing to me, that, on the contrary, I see not how the historian could have expressed himself with more emotion, without directly owning the miracle. His words are these: Quum itaque rei fortiter instaret Alypius, juvaretque provinciæ rector, *metuendi globi flammæ prope fundamenta crebris assultibus erumpentes, fecere locum, exustis aliquoties operantibus, inaccessum: hoc modo elemento destinatus repellente cessavit Inceptum.*

[66](#) Pp. 40, 54, 57.

[67](#) Epicurus, Democritus, &c. p. 58.

[68](#) For the passage referred to (Orig. contr. Cels. l. 8) is in answer to an harangue of Celsus, wherein he had expatiated largely on the heathen miracles, and opposed them with great confidence to the Christian. Upon which the excellent Father observes with much force, “I know not how it is that Celsus thinks proper to alledge the heathen miracles as incontestably evident, and undoubted facts; and yet affects to treat the Jewish and Christian miracles recorded in our books as mere fables. For why should not ours rather be thought true, and those which Celsus preaches up fabulous? Especially, since those were never *credited* by their own philosophers, such as *Democritus*, *Epicurus*, and *Aristotle*; who yet, had they lived with Moses or Jesus, on account of the exceeding great clearness and evidence of the facts, δια την εναργειαν, would in all probability have believed ours.” Having thus fairly laid the passage before the reader, it is submitted to his judgment with what colour of reason the learned writer could think of deducing a proof of the *low opinion of miracles in general amongst the philosophers* from it.

[69](#) P. 62.

[70](#) P. 63. Philost. L., v. c. 15.

[71](#) P. 64.

[72](#) This was remarkably the case of Mahomet and Numa; the former of whose *converse with the angel Gabriel, his journey to heaven, and the armies of angels attending on his battles*—as well as the other’s pretended *intercourse with the goddess Egeria*, is well known.

[73](#) It may seem odd that any of the Fathers of the Church should retain such a strong tincture of this *evil principle*; yet this, &c.

p. 66.

[74](#) Matthew, xxiv. 24. For there shall arise false Christs and false Prophets, and shall shew *great signs and wonders*, insomuch that (if it were possible) they shall deceive the very Elect.

[75](#) Our evidence is still increasing, and is in the next place confirmed even by Divine authority. P. 70.

[76](#) But I could not lay too great a stress on the authority of the Jews, because it *neither properly belongs to the present case*, nor, &c. P. 74.

[77](#) For this would shew that the *heathen* rejection of miracles *might* not be owing to any contempt of them as *such*, since the *Jewish* was plainly owing to a very different reason.

[78](#) 1 Cor. i. 22. The Jews require a *sign*, and the Greeks seek after wisdom, &c.

[79](#) V. 17.

[80](#) V. 19.

[81](#) V. 20, 21, 22.

[82](#) It is remarkable that Maimonides pushes this prejudice so far as to deny that the true Messiah was to work any miracles at all, except that of restoring the temporal dominion of Israel. *If he* (the person pretending to be the Messiah) *PROSPERS in what he undertakes, and subdues all the neighbouring nations round him, and rebuilds the Sanctuary in its former place, and gathers together the dispersed of Israel, then* HE IS FOR CERTAIN THE MESSIAH. Maimon. in Yad Hachazekah Tract. de Reg. et Bell. eorum. c. 11. s. 4.

[83](#) The right understanding of what is meant by the Jews *requiring a sign* is of such importance to the perfectly comprehending

several parts of the Gospel history, that I shall be allowed to justify and illustrate the interpretation here given by some further considerations. And,

1. If by σημειον is to be understood simply a *miracle*, then it is not true that Jesus, whom Paul preached, was or could be on that account a *stumbling block* to the Jews, it being allowed on all hands that many and great miracles *did shew forth themselves through him*. See John vii. 31. xi. 47. But,

2. Notwithstanding this, and though it was owned in the fullest manner by the chief priests and Pharisees themselves, yet we find them very pressing for a *sign*, σημειον [Matth. xii. 38. xvi. 1. Luke xi. 29.] and that too (which is very remarkable) at the instant our Saviour had been working a miracle before them; a degree of perversity not rashly to be credited of the Jews themselves.

It is true this *sign* is sometimes called σημειον απο του ουρανου, *a sign from Heaven*; which, if meaning any thing more than σημειον, as explained above, i. e. a *test* or credential of his heavenly or divine mission (and what can be more natural than that the Jews should express by this name the *only* mark they would admit of the Messiah's coming from Heaven?) I say, if any thing further be intended in it, it must be either, 1. An outward, sensible display of the Divine power, *indicating*, by some prodigious and splendid appearance in the heavens, or actually *interposing*, in some signal way, to *accomplish* the deliverance of Israel; and then either way it falls in with and includes the interpretation here given. Or else, 2. It must mean a *mere* prodigy, asked out of wantonness, and for no other end than to gratify a silly curiosity in beholding a wondrous sight from Heaven: an interpretation, which, though maintained by some good writers, is utterly unsupported by the sacred accounts, calling it σημειον indiscriminately, without as with the addition of του ουρανου; and shocking to common sense, which makes it incredible that so frivolous a reason as the being

denied a *sign*, thus understood, could be, as St. Paul asserts it was, *the stumbling-block* of infidelity to the Jewish nation.

3. But what above all confirms and fixes this interpretation is the tenor of our Saviour's answer to the question itself. For, upon the inquiry, *Master, shew us a sign, &c.* his constant reply was, *A wicked and adulterous generation seeketh after a sign, and there shall no sign be given them but that of the prophet Jonas: For, &c.* As though he had said, "A perverse and degenerate people, disregarding the wisdom of my doctrines, and the power of my miracles—the genuine marks and characteristics of the Messiah—are yet crying out for the *test*, σημειον, of my coming. I know the proud and ambitious sentiment of your heart: but assure yourselves, God will not accommodate his proceedings to your fond views and prejudices. No such *test* shall be given you. One sure and certain TEST indeed there shall be, over and above what has yet been afforded; but to shew you how widely different the Divine conduct is from your prescriptions, it is such a one as ye shall least expect; the very reverse of your hopes and expectations. It shall be that of the prophet *Jonas. For, as Jonas was three days and three nights in the whale's belly*, so shall Christ (sad contradiction to your conceit of temporal dominion!) be put to death by the Jews, and *lie three days and three nights in the heart of the earth*. And this event, so degrading of my character with you, and so repugnant to your wishes, shall, I readily foresee, so scandalize you, that, though my return from the grave, like that of *Jonas* from the whale, shall be in the demonstration of power, yet shall ye, through the inveteracy of that prejudice, be so hardened, as not to be convinced by it."

The answer of our Saviour is related by *Matthew* and *Luke* with some addition, but such as is further favourable to this interpretation. For, upon their asking a sign, it is plain he understood them to mean not a *miracle*, but a TEST, by the question immediately put to them: *When it is evening, ye say it will be fair weather; for the sky is red. And in the morning, it*

will be foul to-day; for the sky is red and lowering. O! ye hypocrites, ye can discern the face of the sky, but can ye not discern the face of the times? “Are the appearances which, in the order and constitution of nature, precede the changes of weather, a sign or test to you of those changes? And are ye stupid and perverse enough to neglect those which, by the Divine appointment, are made the *sign* or *test* of the TIMES, of the change of the Mosaic for the Christian dispensation? How is it that ye do not collect this from my *miracles* and *doctrine*, the ordinary and stated marks of this change, but ye must perversely demand a *test* of it, which the Scriptures nowhere promise, and the order and course of God’s Providence disclaim?”

If, after all this, there can yet remain any doubt of the truth of this comment, it will be effectually removed by an authority or two from the other Evangelist, which the reader will indulge me in just mentioning. In our Saviour’s exerting an act of civil power, in scourging and driving the money-changers out of the temple, the Jews require him to shew the credentials of his authority, *What sign shewest thou that thou doest these things?* The asking a miracle in this case were impertinent; for that, how extraordinary soever, could never prove to the Jews that he came invested with the powers of the civil magistrate. The sign they expected, then was evidently of another kind: an express declaration, or open display, of the regal character and office, evidencing his commission *to do such things*. Accordingly, the reply of our Saviour was to the same effect as before. *Jesus said unto them, destroy this temple, and in three days I will raise it up; for he spake, we know, of the temple of his body.* c. ii.

The next authority is in the sixth chapter, where we have an account of the miracle of feeding *the five thousand*. Upon the multitude’s following him after this, our Saviour objects to them their neglect of miracles, which he presses upon them as motives to their belief. *Ye seek me not, because ye saw the*

miracles, &c. Now what do the Jews return to this charge? Why, they fairly own it to be just, and, what is more, give a reason for their conduct. Their answer is to this effect: “Wherefore do you urge your miracles thus constantly to us, as motives for our belief? If you would have us trust and confide in you as the Messiah, *Where is the sign?* For, as to your miracles so often insisted on by you, we cannot admit them as proper evidences of your commission. And indeed how should we? for Moses wrought as great, if not greater wonders than you. To confront your late boasted miracle of feeding *the five thousand with five loaves*, did not he, as it is written, *give our fathers bread from heaven?* What miracle of yours can be more extraordinary? Yet *Moses* could do this. The Messiah, therefore, of whom greater things are promised, we expect to be *characterized by other signs*. What work takest thou in hand, τὴν ἐργαζῇ?” Here, at last, we see (and the reader will forgive the length of the note for the sake of so clear conviction) that the *sign* asked for, of what kind soever it might be, neither *was* nor *could* be a miracle, since all such *signs* were rejected by these inquirers upon *principle*.

[84](#) I have now done with this head [the low opinion of miracles in the heathen world] and am not aware that any reasonable exceptions can be made to the testimonies which have been brought to confirm it; but if any one should think otherwise, and maintain that something else is necessary for the establishment of so *singular* an opinion, he will be *gratify’d* in his expectations, as we *go along*; and will find the principles and practices of much the greater part of the heathens on this point *strengthening and confirming* each other. P. 77.

[85](#) For this he must say, and not that the credit of miracles would hereby be something weakened: a point, that, as we shall see hereafter, may be allowed, and yet be of no manner of service to his conclusion.

[86](#) I have said *bad Dæmons*; for miracles wrought by the assistance of *good Dæmons* were, as the Inquirer observes, p. 247, in great repute.

[87](#) For that this was the obvious and essential difference betwixt the genuine miracles of the gospel, and the tricks of magic, is apparent from many strong expostulations of the Christian apologists, who, when encountered with this frivolous, but *malicious* objection, used to exclaim: *Potestis aliquem nobis designare, monstrare ex omnibus illis magis, Qui unquam fuere per sæcula, consimile aliquid Christo millesimâ ex parte qui fecerit? Qui SINE ULLA VI CARMINUM SINE HERBARUM AUT GRAMINUM SUCCIS, SINE ULLA ALIQUA OBSERVATIONE SOLLICITA SACRORUM, LIBAMINUM, TEMPORUM? &c.* Arnob. contr. Gen. L. i. And again, *ibid.* Atqui constitit Christum SINE ULLIS ADMINICULIS RERUM, SINE ULLIUS RITUS ORSERVATIONE TEL LEGE, *omnia illa, quæ fecit, nominis sui possibilitate fecisse; et quod proprium, consentaneum, Deo dignum fuerat vero, nihil nocens, aut noxium, sed OPIFERUM, SED SALUTARE, SED AUXILIARIBUS PLENUM BONIS potestatis munificæ liberalitate donâsse.*

[88](#) Acts, C. viii. and xix.

[89](#) For as to the remaining chapters on the *idolatry of the Heathens, the parallel betwixt the Heathen and Protestant rejection of miracles, and his Conclusion*, they seem very little to concern either him, or me. For, 1. The influence of idolatry is urged to prove, that the *religion*, not *miracles*, of Jesus, *was hard to be admitted* (p. 352); which, though true, has nothing *new* in it, and is, besides, intirely foreign, if not contradictory, to his purpose. 2. *The parallel betwixt the Heathen and Protestant rejection of miracles* derives all its little illustrative force from this poor presumption, already confuted, that the Heathens had universally *a contempt of miracles*. I said the parallel drew its whole force from this fact, for unless it be true that the Heathens universally disbelieved all miracles said to be wrought amongst them, the case of their rejection of Christian

miracles, the reader sees, is widely different from that of the Protestant rejection of the Popish. This one circumstance then, to mention no others, overturns the whole use of his parallel. But, 3. As to his conclusion, the design and business of that is, I allow, something extraordinary. It is to shew us, that his whole force was not spent in this wearisome Inquiry, but that, was he disposed for it, he *could* go on to answer other objections against miracles (p. 408-9) and our common Christianity, which had been already confuted to his hands. For, having shewn us what he *could not* do with an argument of his *own*, he was willing, it seems, to shew us what he *could* do with those of *other writers*. For which meritorious service he has my compliments and congratulations:

Labore alieno magno, partam Gloriam
Verbis sæpè in se transfert, qua sal habet,
Quod in TE est.

[90](#) Page 348, and in another place he says, it has been fairly shewn from *their own accounts*, and from THE NATURE OF THEIR PRINCIPLES, that the Heathens neither *had*, nor *could* have an high opinion of miracles. P. 383.

[91](#) Matth. xi. 20. Luke x. 13.

[92](#) Page 172.

[93](#) 1 Cor. i. Col. ii. 8.

[94](#) Rom. i. Eph. v. and elsewhere *passim*.

[95](#) Mr. Addison of the Christian Religion, S. 1.

[96](#) Lord Chancellor Hardwicke.

[97](#) Page 70.

[99](#) Or, by *judicio suo* may be understood that the Chancellor is impowered to inflict which of the several censures mentioned in the Statute he shall think fit, on offenders. The words are *ignavos, &c. suspensione graduum, carcere, aut alio leviori supplicio, JUDICIO SUO castigandos*. And the same is the meaning of *PRO ARBITRIO SUO* in the Statute *de Officio Procuratorum*; on which the *Inquirer* affects to lay some stress (p. 32). “*Eum, qui deliquerit, primò pecuniâ præfinitâ mulctabit; iterum delinquenti duplicabit mulctam; tertio verò si deliquerit, gravius, pro ARBITRIO SUO, coercebit.*” But take it in which sense you will, either of *passing sentence by his single authority* or *determining the kind of punishment at his discretion*, neither way can this expression be made to serve the cause in hand. No art of construction can pick, out of the words *judicio suo*, the sense of *final determination*.

[100](#) Lord Chancellor Hardwicke.

[101](#) The ignorance of the *Inquirer*, who asserts that the University has nothing to do with ecclesiastical censures, and that suspension from degrees, in particular, is a punishment merely academical (p. 26), is amazing. Had he been in the least qualified to treat the matter he has undertaken, he would have known that *suspension* is not merely an usage of the University Court, as such, but was practised by the Ecclesiastical Court of the Bishops or Archbishops, as long as they had jurisdiction in the University. To let in one ray or two of light, in mere compassion, on that utter darkness which environs him, and shuts out all law, *canon* as well as *civil*, I will just refer him to *Arundel's Constitutions* in a provincial Council; where Members of the University offending in the premisses are declared *suspended, ab omni actu scholastico*, and *deprived, ab omni privilegio scholastico*. [Lyndwood, de *Hæret.* cap. *Finaliter.*] And the same appears in a Constitution of

Archbishop Stratford. [Ib. *De Vit. & Honest. Clericorum*, cap. *Exterior.*]

[102](#) So Mr. Attorney General Yorke, in his *Argument for the University in Dr. Bentley's Case*,—"The congregation are to be considered as the judges of the Court, and the *Vice-chancellor* as their *official*." The *Inquirer* hath himself desired the reader to observe (p. 10) that the V. C. in the absence of the *Chancellor*, hath all the power which the University delegates to this great officer.

[103](#) That his Court was directed by this law, appears from a determination of Delegates, concerning *second Appeals in the same cause*, which I will take the liberty to transcribe.

De Appellationibus à Delegatis.

In Dei nomine, Amen. Nos D. Buckmaister, Inceptor Dakyns, M'ri Myddylton, Longforth, et Pomell, autoritate nobis ab Universitate commissâ, decernimus ac pro firmâ sententiâ determinamus, quòd liceat unicuique in suâ causâ appellare à iudicibus delegatis per Universitatem ad eandem Universitatem, modò id fiat iuxta juris exigentiam, hoc est, si antea ab eodem secundâ vice in eâdem causâ appellatum non fuerit. Quod si antea bis appellaverit, neutiqum tertiò appellare licebit, quum id prorsus sit vetitum *tam per jus civile quàm canonicum*: Cæterum unicuique tam actori quàm reo maneat sua libertas appellandi in suâ causâ à iudicibus delegatis per Universitatem modo supradicto et à jure præscripto. [*Lib. Proc. Jun. fol. 132.*]

[104](#) See old Statutes *De Judiciis et Foro scholarium*; *De pænis Appellantium*; *De tempore prosequendi Appellationes*.

[105](#) See *Determination of Delegates*, before cited, p. 25.

[106](#) P. 26.

[107](#) P. 1.

[108](#) P. 62.

[109](#) *Delegates* are nominated by the *Caput*; and the *Caput* is, in effect, appointed by the Vice-chancellor and Heads of Colleges, who are commonly parties in all appellations. [See Stat. *De capite Eligendo*.] So (as the University complained, in their remonstrance against this very Statute of Q. *Elizabeth*) “when they [the V. C. and Masters of Houses] offer wrong, and themselves appoint judges to redress that wrong; it is too true, which *Livy* writeth in the state of *Decemvira*, *siquis Collegam appellaverit*, (meaning Appius’s judgment), *ab eo, ad quem venerit, ità discessurum, tanquam pæniteret prioris decreto non stetisse*.” [C. C. C. MSS.] So little reason is there on the part of the Vice-chancellor, to fear any thing from *partial Delegates*!

[110](#) The *Inquirer* hath even had the hardiness to advance this in the plainest terms. He harangues at large from p. 9. to 13. on the impropriety of appealing from the *determination of a superior to an inferior*; and, in another place, p. 39. derides the notion of *citing the supreme Magistrate before more supreme Delegates*. But how different were the sentiments of a late learned Civilian on this head, from those of this *little academical Lawyer*! Speaking of Mr. *Campbell*’s case, in 1725. “There is, says he, a subordination of jurisdiction in the University. The Vice-chancellor’s jurisdiction is *inferior* to that of the Senate; and upon Mr. C—’s saying, that he appealed to the University, the *inferior jurisdiction* ceased and devolved to the Senate, even before the inhibition. And, afterwards in considering the proctor’s inhibition; *upon the Appeal*, the Proctors represent the University, and are in that case superior to the Vice-chancellor. —And I am of opinion, that the Delegates in Mr. C—’s cause may, upon the Proctor’s applying to them, *primo et ante omnia* reverse the whole proceedings against him, in the V. C.’s court, *as an attentat upon the University’s jurisdiction*; and may likewise inflict such censures, as the Statutes empower them to make use of, for the breach of the inhibition; all inhibitions being by Law, *sub pænâ juris et contemptûs*.” Dr. ANDREWS.

[111](#) P. 70.

[112](#) We have this confession from the candid writer of *Considerations on the late Regulations, &c.* “I must enter, says he, upon this subject with acknowledging, as I do with equal truth and pleasure, that there never was, within my remembrance, nor, I believe, within any one’s memory, a set of more able and industrious tutors than we have at present; more capable of discharging that useful office, or more diligent and careful in the discharge of it,” p. 12. And, again, “I think there prevails in general and through all degrees among us, a great disposition to sobriety and temperance,” p. 14.

[113](#) P. 64.

[114](#) P. 13.

[115](#) P. 65.

[116](#) “You will urge—that, as a previous *oath* must be taken by the tutor, that he believes *in his conscience* that his pupil has a just cause of appeal, all Appeals would by this means be prevented, but such as were founded upon good reasons. But the force of this argument will not be thought very great, if, &c.”

Reader, I can easily guess the sentiments which must arise in thee, at the sight of this shocking paragraph. But think not I have abused thee in this citation. They are the author’s own words, as they lie in p. 65 of the *Inquiry*. Well, but his reason? Why, “if it be remembered, that, though oaths of this kind were exacted in order to prevent the frequency of Appeals, they by no means had their proper effect, the same number having been commenced for the three years next after this regulation, as in that towards the close of which it was first made.” This provision of *oaths had not*, he says, *its proper effect*. And how does this appear? Why, *because Appeals were as frequent afterwards as before*. Now, any other man would, surely, have inferred from hence, that “therefore the Appeals made were not

without good reason.” Not so the *Inquirer*. He is of another spirit. Rather than give any quarter to *Appeals*, let every tutor in the University be an abandoned perjured villain. In very tenderness to this unhappy writer, whoever he be, I forbear to press him farther on such a subject.

[117](#) P. 66.

[118](#) Diss. VI. p. 259.

[119](#) Diss. VI. p. 251.

[120](#) Hodges, Garnet, Chappelow.

[121](#) P. 296.

[122](#) P. 255.

[123](#) P. 296.

[124](#) Dr. Lowth.

[125](#) Page 261.

[126](#) Page 253.

[127](#) Page 269.

[128](#) Page 293.

[129](#) Julian, p. 316.

[130](#) *Essay on the Gift of Tongues*, Works, vol. ii. p. 91.

[131](#) DOCTRINE OF GRACE, b. i. c. viii. p. 41. 2^d Ed. 8^{vo}.

[132](#) Ib.

[133](#) D. G. p. 51.

- [134](#) P. 41, 42.
- [135](#) From p. 42 to p. 45.
- [136](#) Dissertation, p. 82.
- [137](#) Dissert. p. 82.
- [138](#) Dissert. p. 86.
- [139](#) *Doctrine of Grace*, p. 41.
- [140](#) *Doctrine of Grace*, p. 45.
- [141](#) *Doctrine of Grace*, p. 43.
- [142](#) Dissert. p. 88.
- [143](#) *Doctrine of Grace*, p. 52, 53.
- [144](#) *Doctrine of Grace*, p. 55, 56.
- [145](#) Dissert. p. 19.
- [146](#) Dissert. p. 4.
- [147](#) *Doctrine of Grace*, p. 52.
- [148](#) Dissert. p. 41.
- [149](#) Dissert. p. 45.
- [150](#) *Doctrine of Grace*, p. 53.
- [151](#) Dissert. p. 58.
- [152](#) Dissert. p. 80, n.
- [153](#) *Doctrine of Grace*, pp. 56, 57.

[154](#) Dissert. p. 20.

[155](#) Dissert. p. 80. n.

[156](#) *Doctrine of Grace*, p. 58.

[157](#) Dissert. p. 24.

[158](#) Dissert. p. 25.

[159](#) QUINCT. l. ix. c. 3.

[160](#) Dissert. p. 34.

[161](#) *Doctrine of Grace*, p. 52.

[162](#) Adv. to the Dissert.

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THE END.

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